



CHAPTER xciii.

An Act to authorise the mayor aldermen and citizens of the city of Bath to execute street works and to acquire certain toll bridges to confer further powers upon them in regard to their water and electricity undertakings to provide for the consolidation of the rates of the city to make further provision with regard to the health local government and improvement of the city and for other purposes.

A.D. 1925.

[7th August 1925.]

WHEREAS the city of Bath in the county of Somerset (in this Act called "the city") is a county borough under the government of the mayor aldermen and citizens of the city of Bath (in this Act called "the Corporation") and the Corporation acting by the council of the city are the sanitary authority for the city with the powers and obligations of an urban sanitary authority :

And whereas it is expedient to empower the Corporation to construct the street improvements and other works in this Act referred to :

And whereas by an Act passed in the year eighteen hundred and five intituled "An Act to enable the Trustees therein named to erect and build a new bridge over the River Avon on the north-west side of the manor of Bathwick in the county of Somerset to communicate with the parish of Walcot and the road from the city of Bath to London and also to raise

A.D. 1925. “ a sufficient sum of money for that purpose by a charge
— “ on the Trust Estates of the late General Pulteney ”
powers were conferred upon the persons named therein
to erect and build or cause to be erected and built a
bridge over the said River Avon but such powers were
not exercised and it is expedient to repeal the said Act :

And whereas there exist in the city bridges known
as the Cleveland (or Bathwick) Bridge the North Parade
Bridge the Widcombe Bridge the Victoria Bridge and
the Weston Bridge and there also exists partly in the city
and partly in the parish of Bath Hampton a bridge
known as the Grosvenor Bridge and tolls are demanded
by the respective owners of such bridges for the use
thereof respectively :

And whereas it is expedient to empower the Corpora-
tion to acquire all the said bridges and to make provision
with regard to such bridges when so acquired by the
Corporation as in this Act provided :

And whereas the Corporation are the owners of
waterworks and supply water within the city and in
certain parishes in the neighbourhood thereof their
powers in relation to the supply of water being regulated
by various Acts of Parliament and Orders confirmed by
Parliament and also by the Public Health Acts :

And whereas it is expedient to make further provi-
sion with regard to the water undertaking of the Corpora-
tion and the supply of water by them :

And whereas the Corporation are also the owners
of an electricity undertaking by means of which they
supply electricity within the city and within portions of
the Bath Rural District and it is expedient to make further
provision with regard to the electricity undertaking and
the supply of electricity by them :

And whereas it is expedient to confer further powers
upon the Corporation with regard to the provision
maintenance and management of public baths parks
recreation grounds and public buildings in the city :

And whereas it is expedient to make further and
better provision with regard to the health local govern-
ment and improvement of the city and that the powers
of the Corporation in regard thereto should be enlarged
as is provided in this Act :

And whereas it is expedient to provide for the consolidation of the rates levied in the city : A.D. 1925.

And whereas it is expedient to make further provision with regard to the finances of the Corporation and the application of the revenue derived from their several undertakings :

And whereas there are within the city several baths and springs of hot mineral waters belonging to the Corporation which baths and springs were granted and confirmed to the Corporation by Charter granted by Her late Majesty Queen Elizabeth on the fourth day of September fifteen hundred and ninety :

And whereas by the Act passed in the twenty-ninth year of His late Majesty King George III. intituled “ An Act for protecting and securing the hot baths and springs within the city of Bath from injury by encroachments and annoyances for enlarging or rebuilding the present pump rooms there for widening certain streets lanes and public passages and for making certain new streets and passages to render the approaches to the said hot baths springs and pump rooms more safe and commodious ” provision was made for preserving the said baths and springs from being encroached upon or rendered impure :

And whereas it is expedient to make further provision for the protection of the said baths and springs as in this Act provided and for preventing them from being destroyed polluted injured or affected :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

For the construction of the street works	
authorised by this Act	£150,000

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

A.D. 1925.

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the street works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Somerset and are hereinafter respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Bath Corporation Act 1925.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Street works and lands.

Part III.—Purchase maintenance and management by the Corporation of bridges over River Avon.

Part IV.—Water supply.

Part V.—Electricity.

Part VI.—Public baths parks and recreation grounds.

Part VII.—Streets buildings sewers and drains.

Part VIII.—Infectious disease and sanitary matters.

Part IX.—Maternity homes.

Part X.—Hackney carriages and police.

Part XI.—Rating.

Part XII.—Financial and miscellaneous.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exception and modification :—

A.D. 1925.
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Incorporation of Acts.

(1) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act :

(2) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpretation of terms.

(2) In this Act unless the subject or context otherwise requires—

“ The Corporation ” means the mayor aldermen and citizens of the city of Bath ;

“ The city ” means the city of Bath ;

“ The council ” means the council of the city ;

“ The mayor ” “ the town clerk ” “ the treasurer ” “ the surveyor ” “ the medical officer ” “ the waterworks engineer ” and “ the sanitary inspector ” mean respectively the mayor the town clerk the treasurer the surveyor the medical officer of health the waterworks engineer and any sanitary inspector of the city and respectively include any person duly authorised to discharge temporarily the duties of those offices ;

“ The tribunal ” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919 ;

A.D. 1925.

“The bridge-owner” means all or any of the following (namely) :—

(a) The executors of the late Joseph Barter or other the owner of the Grosvenor Bridge partly in the city and partly in the parish of Bath Hampton;

(b) The Bathwick Bridge Company Limited or other the owner of the Cleveland (or Bathwick) Bridge in the city;

(c) The North Parade Bridge Company (of Bath) Limited or other the owner of the North Parade Bridge in the city;

(d) The Widcombe Bridge Company Limited or other the owner of the Widcombe Bridge in the city;

(e) The Victoria Bridge Company (Bath) Limited or other the owner of the Victoria Bridge in the city;

(f) The Weston Bridge Company Limited or other the owner of the Weston Bridge in the city;

“The undertaking of the bridge-owner” includes in the case of each or any of the bridge-owners the bridge and works referred to in the last preceding paragraph of this section in connection with such bridge-owner together with the approaches to such bridge and any lands acquired by the bridge-owner in connection therewith and any toll-houses conveniences and appurtenances of the said bridge belonging to or therewith used or enjoyed and all or any rights of charging tolls and other the undertaking of the bridge-owner in relation to such bridge;

“The appointed day” means the thirty-first day of March or the thirtieth day of September whichever shall first happen after the expiration of two months after the amount of the purchase money to be paid by the Corporation to the bridge-owner has been determined either by agreement or by arbitration in pursuance of the

A.D. 1925.

section of this Act whereof the marginal note is " Bridge-owners to sell undertakings to Corporation " or such other day as may be agreed between the bridge-owner and the Corporation ;

" Telegraphic line " has the same meaning as in the Telegraph Act 1878 ;

" Infectious disease " means any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the city ;

" Child " means a person under the age of sixteen years ;

" Sunday school " means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not ;

" Cattle " includes horses asses mules sheep goats and swine ;

" Maternity home " means any premises in the city used or represented as being or intended to be used (whether regularly or on any occasion) for the reception of a woman or women for the purposes of childbirth where any payment or reward is made or given by or on behalf of any woman received therein in respect of such reception but does not include any house flat or other self-contained premises (not regularly so used) taken or held by or for any woman for the purpose of accommodating her during her confinement ;

" Daily penalty " means a penalty for each day on which an offence is continued by a person after conviction ;

" The city fund " and " the city rate " mean respectively the city fund and city rate of the city ;

" The parish " means the parish of Bath ;

" The overseers " means the overseers of the poor of the parish ;

" The poor rate " means the poor rate for the parish ;

A.D. 1925.
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“The Lands Clauses Acts” means the Lands Clauses Acts as amended by the Acquisition of Land (Assessment of Compensation) Act 1919;

“The Act of 1903” means the Bath Corporation Water Act 1903;

“Hackney carriage” means a hackney carriage as defined by the Town Police Clauses Act 1847 and shall not include an omnibus as defined by the Town Police Clauses Act 1889;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Statutory security” has the meaning assigned to it by section 3 (Interpretation) of the Act of 1903;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

PART II.

STREET WORKS AND LANDS.

Power to
execute
street works.

5. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands shown on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections

the street works in the city hereinafter mentioned with all proper and necessary junctions connections approaches sewers drains works and conveniences in connection therewith (namely) :—

A.D. 1925.
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Work No. 1 A widening and improvement of the corner of George Street and Lansdown Road :

Work No. 2 A new street from Terrace Walk to North Parade :

Work No. 3 A new street and a widening of the north-east side of Great Stanhope Street from Upper Bristol Road to the private street which is a continuation of James Street in a north-westerly direction :

Work No. 4 A widening and improvement of Westgate Buildings on the east side :

Work No. 5 A widening and improvement of the Sawclose on the west side and of West Gate on the north-west side :

Work No. 6 A widening and improvement of Monmouth Street on the south-west side and of Kingsmead Square on the north-east side at their junction with West Gate :

Work No. 7 A widening and improvement of Kingsmead Square :

Work No. 8 A new street from the western side of Westgate Buildings to the east side of Avon Street together with a widening of the east side of Avon Street and the south side of West Gate :

Work No. 9 A new street including a diversion of Peter Street and Little Corn Street from the junction of Peter Street with Saint James's Parade to Little Corn Street :

Work No. 10 A widening and improvement of Kingsmead Terrace on the westerly side :

Work No. 11 An improvement of New Street Trinity Street and James Street :

Work No. 12 A widening and improvement of Green Park on the side thereof adjacent to the open space known as Green Park :

A.D. 1925.
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Work No. 13 A widening and improvement of the Old Bridge spanning the River Avon from Lower Bristol Road to Broad Quay :

Work No. 14 A new street together with an alteration and diversion of Broad Quay and New Quay from Green Park to Southgate Street :

Work No. 15 A widening and improvement of Dorchester Street on both sides :

Work No. 16 A new street in continuation of Saint James's Parade extending from the junction of Somerset Street and Southgate Street to the junction of Saint James's Parade and Great Corn Street :

Work No. 17 A new street from the north-east side of Kingsmead Terrace to the junction of Peter Street with Great Corn Street :

Work No. 18 A new street together with a widening and improvement of Brook Road Twerton and the bridge carrying that road over the Great Western Railway extending from the south side of Lower Bristol Road to the southern end of the above-mentioned bridge and including a widening of that bridge.

Limits of
deviation.

6. In the construction of the works authorised by this Part of this Act the Corporation may deviate to any extent not exceeding the limits of deviation shown on the deposited plans and they may also deviate from the levels shown on the deposited sections to any extent not exceeding three feet upwards or downwards.

Power to
make sub-
sidiary
works.

7.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation in connection with and for the purposes of this Part of this Act and as part of the works to be executed under the powers of this Act may execute or do any of the following works or things (namely):—

(a) Make junctions and communications with any existing streets intersected or interfered with by or contiguous to the works authorised by this Part of this Act or any of them and may divert widen or alter the line or alter the level of any existing street for the purpose of connecting the same with any of such works ;

A.D. 1925.

- (b) Raise lower or alter any vault arch cellar or area under or adjoining any roadway or footway but so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit;
- (c) Execute any works for the protection of any adjoining land or buildings;
- (d) Execute any works and do any things necessary for the strengthening and supporting of any walls of adjoining buildings; and
- (e) Raise lower alter and interfere with any tramway light railway drain sewer channel or gas or water main or pipe or electricity wire or apparatus within the said limits providing a proper substitute before interrupting the traffic on any such tramway or light railway or the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus;

and shall make compensation for any damage done by them in the execution of the powers of this section :

(2) Provided that the Corporation shall not alter divert or otherwise interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

8.—(1) The Corporation during the execution of the powers of this Part of this Act may break up and also temporarily stop up divert and interfere with any street for the purpose of executing such powers and may for any reasonable time prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same. Temporary stoppage of streets.

(2) The Corporation shall provide reasonable access for foot passengers bonâ fide going to or returning from any such house and at all times during the execution of any such powers shall maintain a proper and sufficient access both for vehicular and pedestrian traffic to the passenger and goods stations of a railway company near to which any such power is being executed.

A.D. 1925.

Application
of road
materials
excavated in
construction
of works.

9. Any paving metalling or material excavated by the Corporation in the construction of any works authorised by this Part of this Act from any road under their jurisdiction and control shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit.

Land laid
into streets
to form part
thereof.

10. All lands acquired by the Corporation under this Act and laid into or appropriated as part of any street shall form part of that street and shall be maintained and repaired in all respects as the rest of that street is for the time being by law maintained and repaired.

Power to
take lands.

11.—(1) Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference.

(2) Provided that notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not except with the consent in writing of the Postmaster-General take or acquire any interest of the Postmaster-General in the property numbered on the said plans 58 (Work No. 17) in the city of Bath.

Use of part
of Institu-
tion Gar-
dens.

12. Notwithstanding any covenants conditions and restrictions contained in the deed of conveyance dated the twenty-fourth day of June eighteen hundred and sixty-three and made between the Right Honourable Sydney William Herbert Manvers of the one part and Thomas Barrett Jerom Murch Jacob Henry Cotterell and Charles Milsom of the other part or the deed of conveyance dated the seventh day of October eighteen hundred and sixty-three and made between Thomas Barrett Jerom Murch Jacob Henry Cotterell and Charles Milsom of the one part and the Corporation of the other part or any other deed or document relating to the lands known as the Institution Gardens or any part of those lands the Corporation may enter upon take and use or appropriate for the purposes of Work No. 2 authorised by this Act so much of the said lands as is shown upon the deposited plans in relation to the said Work No. 2 to be within the limits of deviation and land to be acquired.

As to com-
pensation in
respect of

13.—(1) Every claim for compensation in respect of the acquisition by the Corporation of the lands

numbered 8 upon the deposited plans and in the book of reference in respect of Work No. 2 authorised by this Act shall notwithstanding anything contained in this Act be referred to and determined (pursuant to the provisions of the Lands Clauses Acts as amended by the Acquisition of Land (Assessment of Compensation) Act 1919) by one and the same arbitrator to be appointed by the Minister of Transport on the application of the Corporation or any person making any such claim.

A.D. 1925.

—
Institution
Gardens.

(2) Every such claim for compensation shall be made in writing by the owners or reputed owners lessees or reputed lessees and occupiers of the said lands numbered 8 on the deposited plans and in the book of reference within six months of the date upon which the Corporation shall serve notice to treat upon such owner or reputed owner lessee or reputed lessee or occupier and no claim which is not so made shall be considered.

(3) In the event of the arbitrator so appointed dying or becoming unable or unwilling to act the Minister of Transport may appoint any person to take his office on the application of the Corporation or any claimant for compensation as aforesaid.

(4) Notice of this section shall be sent by the Corporation with every notice to treat served in respect of the said lands numbered 8.

14. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

Period for
compulsory
purchase of
lands.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons
under dis-
ability may
grant ease-
ments &c.

16. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or

Correction
of errors in
deposited

A.D. 1925.

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plans and
book of
reference.

occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the city for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Somerset and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Benefits to
be set off
against com-
pensation.

17. In estimating the amount of compensation or purchase money to be paid by the Corporation under this Part of this Act the benefits accruing to the person to whom the same shall be paid by reason of the construction of any new street or of the widening or improvement of any existing street shall be fairly estimated and shall be set off against the said compensation or purchase money.

Further
powers for
acquisition
of lands.

18.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the city and with the consent of the Minister of Health may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof Any moneys so borrowed shall be repaid within such period as may be prescribed by the Minister of Health.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be

appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the city fund and city rate. A.D. 1925.

19.—(1) Notwithstanding anything in any other Act or Acts or otherwise to the contrary the Corporation may retain hold and use for such time and for such purpose as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the city (other than the Housing Acts 1890 to 1924) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange : Retention and disposal of lands.

(2) Provided that—

- (a) The Corporation shall not without the consent of the Minister of Health sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests ;
- (b) Nothing in this section shall be taken to dispense with the necessity for obtaining the consent of any Government department to any sale lease or other disposition of any lands of the Corporation in any case in which such consent would be required if this Act had not been passed.

(3) Section 16 (Power to sell lands) of the Act of 1903 is hereby repealed.

A.D. 1925.

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Proceeds of
sale of
surplus
lands.

20.—(1) The Corporation may so far as they consider necessary apply subject to the approval of the Minister of Health any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act or any enactment repealed by this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health.

(2) Any capital moneys received by the Corporation on the re-sale or exchange of or by leasing any lands acquired under any Act other than this Act shall be applied in the same manner as capital moneys received under that Act are applicable or in such other manner as may be approved by the Minister of Health.

Power to
Corporation
to enter
upon pro-
perty for
survey and
valuation.

21. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Power to
stop up cer-
tain streets.

22.—(1) As from the date upon which the several street works (the construction of which is authorised by this Act) mentioned in the first column of the following table shall be completed the Corporation may stop up the streets or roads mentioned in the second column of that table opposite to those respective street works respectively and thereupon all public rights of way over those streets or roads respectively shall be extinguished.

(2) The table hereinbefore referred to is :—

A.D. 1925.

1. Street Work.	2. Street or Road.
Street Work No. 3	- Nile Street.
Street Work No. 5	- Passage at the rear of New Westgate Buildings.
Street Work No. 9	- Peter Street (part) Little Corn Street (part).
Street Work No. 16 } Street Work No. 17 }	- Corn Street.

23.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished.

Extinction
of private
rights of
way.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

24.—(1) Whereas in the construction of the works authorised by this Act or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

Owners may
be required
to sell parts
only of
certain pre-
mises.

(a) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are hereinafter in this section included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties” :

(b) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he

A.D. 1925.

alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (c) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed :
- (d) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (e) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred

by the owner incident to the determination of any matters under this section shall be borne and paid by the owner : A.D. 1925.
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(f) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not it shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

(g) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and its final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed on every notice given thereunder to sell and convey any of the scheduled properties.

25. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the first day of October nineteen hundred and twenty-four if in the

Compensa-
tion in case
of recently
acquired
interest.

A.D. 1925. — opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary or was made or created with a view to obtaining or increasing compensation under this Act.

For protec-
tion of St.
John's
Hospital.

26. Notwithstanding anything contained in this Act or shown upon the deposited plans the following provisions for the protection of the master co-brethren and sisters of the Hospital of St. John the Baptist with the Chapel of St. Michael annexed in the city of Bath (in this section referred to as "the owners") shall unless otherwise agreed in writing between the Corporation and the owners apply and have effect (that is to say):—

- (1) The Corporation shall not enter upon take or use any part of the lands numbered respectively 1 8 9 10 11 12 13 and 14 on the deposited plans relating to Work No. 6 referred to in the section of this Act of which the marginal note is "Power to execute street works":
- (2) The Corporation shall not acquire the estate or interest of the owners in any greater or other part of the lands numbered 2 on the deposited plans in respect of the said Work No. 6 than the portion of those lands which is coloured pink on the plan (in this section called "the signed plan") signed in duplicate by Sir Thomas Robinson Chairman of the Committee of the House of Commons to which the Bill for this Act was referred of which plan one copy has been deposited in the Private Bill Office of the House of Commons and the other in the Parliament Office House of Lords:
- (3) Forthwith upon the acquisition by the Corporation of the estate or interest of all parties (other than the owners) interested in the said lands numbered 2 on the deposited plans in respect of the said Work No. 6 the Corporation shall without compensation surrender to the owners all the estate or interest of the Corporation in such portion of the said lands as is coloured green on the signed plan:
- (4) The Corporation shall not enter upon take or use under the powers of this Act any house or part of a house for the time being belonging to

A.D. 1925.

the owners until they shall have provided such substituted dwelling accommodation (if any) for the persons occupying such house or part of a house as an arbitrator appointed by the Minister of Health may consider requisite but the provisions of this subsection shall not apply in respect of any house the occupiers of which are persons of the working class within the meaning of section 98 of the Housing Act 1925 and the Fifth Schedule thereto :

- (5) (a) The consideration for the purchase by the Corporation of the estate or interest of the owners in any lands shall be the issue by the Corporation to the owners of a mortgage or mortgages of the funds rates and revenues of the Corporation in the form set forth in the Fifth Schedule to this Act (bearing interest at the rate of four per centum per annum and redeemable at par at the expiration of sixty years from the date thereof with interest as aforesaid) for such a capital amount as will yield a sum of interest equal to the average net annual income derivable by the owners from the estate or interest so purchased by the Corporation ;

(b) For the purposes of this subsection the average net annual income derivable by the owners from any estate or interest so purchased shall be deemed to be the average net annual income which the owners might reasonably have expected to receive from such estate or interest having regard to all the circumstances relating or which may relate thereto if this Act (except the section thereof of which the marginal note is " Compensation in case of recently acquired interest ") had not been passed ;

(c) All the costs of and incident to any arbitration for determining the amount of any purchase money or compensation payable to the owners shall be borne and paid by the Corporation :

- (6) The provisions of the section of this Act of which the marginal note is " Benefits to be set off against compensation " shall not apply with

A.D. 1925.

reference to the determination of the amount of any compensation or purchase money to be paid by the Corporation to the owners :

- (7) If the Corporation shall under the powers conferred upon them by this Part of this Act have acquired any lands of the owners and shall not within a period of ten years from the passing of this Act commence the construction of the street work for or in connection with which such lands have been acquired by them the Corporation shall within six months after the expiration of such period of ten years offer to sell to the owners such lands and in default of the Corporation making such offer within twenty-eight days after notice in writing shall have been given by the owners to the Corporation that the said periods of ten years and six months have expired all such lands shall vest in and become the property of the owners. If the owners are desirous of purchasing such lands or any part thereof they shall signify their desire in that behalf to the Corporation within six weeks after such offer of sale. The price to be paid by the owners to the Corporation shall be such capital value as may be agreed between the owners and the Corporation or in default of agreement determined by arbitration. The price as agreed or determined by arbitration shall be satisfied by the discharge by the owners of mortgages granted by the Corporation to the owners to a face value equal to the said price. Any necessary deed or document in connection with such sale shall be prepared and executed by and at the expense of the Corporation :
- (8) If any question as to the amount of any consideration compensation or purchase money payable by or to the Corporation arises between the Corporation and the owners under the provisions of this section the same shall subject to subsection (5) of this section be determined by arbitration under and subject to the provisions of the Lands Clauses Acts and the Acquisition of Land (Assessment of Compensation) Act 1919 shall not apply to such determination or arbitration :

- (9) If any question (other than a question as to the amount of any consideration compensation or purchase money) arises between the Corporation and the owners under the provisions of this section the same shall be referred to and determined by an arbitrator to be appointed on the application of either party after notice in writing to the other by the President of the Surveyors' Institution and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.
- A.D. 1925:
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27. Notwithstanding anything contained in this Act the following provisions for the protection of the owner and the occupiers shall unless otherwise agreed in writing between the Corporation and the owner or the occupiers (as the case may be) apply and have effect (that is to say):—

For protec-
tion of Syd-
ney William
Bush and
Sydney Lee
Bush.

- (1) In this section unless the subject or context otherwise requires—

“ Plan No. 1 ” or “ plan No. 2 ” means the plan marked plan No. 1 or plan No. 2 as the case may be and signed in duplicate by the Lord Strachie the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred of which one copy has been deposited in the Parliament Office House of Lords and the other in the Private Bill Office of the House of Commons;

“ The blue lands ” means the lands coloured blue on plan No. 1;

“ The pink lands ” means the lands coloured pink on plan No. 1;

“ The protected lands ” means the blue lands and the pink lands;

“ The Corporation ” includes their successors in title;

“ The owner ” means Sydney William Bush and his successors in title as owner in fee simple of the protected lands;

“ The occupiers ” means Sydney William Bush and Sydney Lee Bush carrying on business together in partnership as whole-sale and retail grocers and provision

A.D. 1925.
—

merchants under the style of "S. W. Bush and Son" their executors administrators and assigns;

"Work No. 8" means Work No. 8 authorised by this Act;

"The period of reconstruction" means the period between the date when the Corporation obtain vacant possession of the occupiers' estate and interest in the protected lands and the date of completion of the erection of the buildings and premises referred to in subsection (6) of this section:

- (2) Notwithstanding anything shown on the deposited plans or described in the deposited book of reference the Corporation shall not purchase take or acquire any estate or interest of the owner in the pink lands:
- (3) Within seven days after the date of service on the owner of notice to treat in respect of the purchase of his estate and interest in the blue lands the Corporation shall serve on the occupiers notice to treat in respect of the purchase of their estate and interest in the protected lands and shall also serve notices to treat on or otherwise proceed to acquire the estate and interest of all other persons who are interested in the protected lands or any part thereof and thereafter shall take all such steps as may be reasonably necessary to secure vacant possession (subject to the estate and interest of the owner in the pink lands) of the whole of the protected lands as soon as possible. Provided that no fixtures and fittings (including grates tiles electrical apparatus and pavement lights) belonging to the owner or occupiers on the protected lands shall be purchased by the Corporation but the same shall remain the property of the owner or the occupiers (as the case may be). Provided also that the occupiers shall not be required to carry out the removal of their retail business from the protected lands to the temporary premises hereinafter provided for at any time other than between the months of March and August both inclusive:

- (4) As soon as the Corporation have obtained vacant possession of the protected lands they shall at their own cost forthwith commence and thereafter with all due diligence proceed to complete— A.D. 1925.
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(a) The construction of so much of Work No. 8 as requires to be carried out to the north of the line A-B shown on Plan No. 1 :

(b) The demolition of all buildings premises or other erections on the blue lands and the lands numbered 6 and 7 on the deposited plans in relation to Work No. 8 and the demolition down to and including the ground floor level of all buildings premises and other erections on the pink lands together with all necessary shoring of the undemolished parts of such buildings premises and other erections :

- (5) On the completion of the demolition of the buildings premises and other erections on the pink lands together with all necessary shoring thereof as referred to in paragraph (b) of the preceding subsection of this section the Corporation shall give the owner vacant possession of the pink lands and all the estate and interest of the Corporation in the pink lands shall be extinguished save in respect of any apportioned ground rent payable under the provisions of subsection (13) of this section :
- (6) The owner on obtaining vacant possession of the pink lands shall forthwith and with due diligence erect thereon buildings or premises in accordance with an elevation already submitted to and approved by the Corporation and the Corporation shall from time to time pay to the owner on demand the actual cost payable by the owner in respect of the erection of such buildings or premises as shown by the certificates from time to time issued by the architect employed by the owner for the purpose of superintending such erection :
- (7) Before obtaining vacant possession of the occupiers' estate and interest in the protected lands

A.D. 1925.
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the Corporation shall at their own cost erect or provide and thereafter so long as may be necessary maintain—

(a) on the lands numbered 1. on the deposited plans in relation to Work No. 7 authorised by this Act and over the whole or so much of the same as are shown on plan No. 2 temporary premises suitable for and containing all fittings reasonably necessary for carrying on the occupiers' retail business in accordance with such plans and specifications as the occupiers may approve;

(b) in the neighbourhood of the protected lands suitable premises reasonably approved by the occupiers for enabling them to carry on therein the remainder of their business and in particular of dimensions adequate for the provision of offices and storage accommodation and the installation and working of the existing machinery used by the occupiers for the purpose of packing and mixing flour roasting coffee and cleaning fruit and shall instal in such premises to the reasonable satisfaction of the occupiers gas electric light external telephone and the electric hoist now belonging to the occupiers and the Corporation shall at such times as the occupiers may require at their own cost remove such machinery from the protected lands and instal the same in the said premises and thereafter remove such machinery from the said premises and instal the same in the buildings or premises to be erected by the owner on the pink lands as provided for in subsection (b) of this section :

- (8) After the Corporation shall have installed gas electric light telephone and the electric hoist referred to in the preceding subsection the same shall be maintained by the occupiers or the owner (as may be agreed between them) who shall also pay all charges in connection with the user of the same including charges for gas or electricity supplied to the said premises :

- (9) (a) The occupiers shall be entitled to occupy the premises referred to in the preceding subsection of this section free of rent during the period of reconstruction; A.D. 1925.

(b) No person other than a person in occupation of any premises required for the purposes of works numbered 4 5 6 and 8 by this Act authorised shall at any time be permitted to occupy the temporary premises referred to in paragraph (a) of the preceding subsection of this section. The Corporation shall not permit any two persons carrying on the same class of business to occupy the said temporary premises in succession;

(c) So soon as the said temporary premises are no longer required in connection with the said works numbered 4 5 6 and 8 or on the expiration of two years from the date when the occupiers relinquish possession of the temporary premises whichever shall first occur the Corporation shall demolish and remove the said temporary premises:

- (10) During the period of reconstruction the occupiers may erect and maintain a notice board on the protected lands or on any hoarding erected thereon and may keep the same illuminated between the hours of sunset and sunrise:
- (11) (a) The value of the buildings premises and other erections on the protected lands and of the owner's and occupiers' estate and interest in the blue lands exclusive of the buildings premises or other erections thereon together with compensation for any disturbance of their business loss of profits or additional expense in carrying on their business incurred sustained or caused by or to the occupiers during the period of reconstruction or in consequence of the removals of their business immediately before and after such period shall be determined by arbitration under this section and the provisions of the sections of this Act of which the marginal notes are respectively "Benefits to be set off against compensation" and "Compensation in case of recently acquired interest" shall not apply to such determination;

A.D. 1899.

(b) If the occupiers at any time before the service upon them of a notice to treat carry out with the consent of the Corporation (which consent shall not be unreasonably withheld) any extensions or improvements of their existing premises on the protected lands and the Corporation shall commence to demolish the buildings premises or other erections on the protected lands within three years after the completion of such extensions or improvements the Corporation shall in addition to the compensation provided for in paragraph (a) of this subsection pay as additional compensation for the purchase of the occupiers' estate and interest in the protected lands the cost to the occupiers (to be determined in the manner provided for in paragraph (a) of this subsection) of carrying out such extensions and improvements and any question as to whether such consent is unreasonably withheld shall be referred on the application of either party to an arbitrator to be appointed by the President of the Surveyors' Institution whose decision shall be final:

- (12) (a) The Corporation shall set off against the total amount determined under the preceding subsection of this section the total amount paid by the Corporation to the owner under subsection (6) of this section and any difference between the amount so paid and the amount to be so set off if due to the Corporation shall be paid by the owner and if due to the owner and the occupiers shall be paid by the Corporation to the owner;

(b) In the event of any sum being due to the Corporation under paragraph (a) of this subsection the owner may elect to pay the same by equal annual instalments over such period not exceeding twenty years as he may determine;

(c) If the owner determines to pay any such sum by equal annual instalments as aforesaid the amount of each instalment shall be such that the total number of such instalments if accumulated at compound interest at the rate of three pounds and ten shillings per centum per

annum shall at the end of such period together be equal to the amount of such sum and in addition the owner shall in each year during such period pay to the Corporation interest at the rate of five per centum per annum on the portion of such sum which for the time being remains owing :

A.D. 1925.

- (13) Any ground rent or rents payable in respect of the protected lands or any part thereof shall be fairly apportioned between the Corporation and the owner in the proportion borne by the area of the blue lands to the area of the pink lands excluding in each case the area of any cellars which form part thereof and are situate under an existing street and the owner shall pay to the Corporation that portion of the said ground rent or rents which is or are so attributable to the pink lands. In the event of the existing ground rent or rents being acquired by the Corporation the pink lands shall stand charged with an annual sum payable to the Corporation equivalent to the proportion of the existing ground rent or rents so attributable thereto unless and until the owner shall pay to the Corporation such amount as may be agreed or determined by arbitration under this section to represent the capital value of such annual sum :
- (14) Any question arising between the Corporation and the owner or the occupiers or both the owner and the occupiers under the provisions of this section or as to anything to be done or not to be done thereunder shall be referred to and determined by a single arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of any party after notice in writing to the other or others by the President of the Surveyors' Institution and subject as aforesaid the Arbitration Act 1889 shall apply to such reference and determination.

28. For the protection of the Great Western Railway Company (hereinafter referred to as "the company") the following provisions shall unless otherwise agreed between the company and the Corporation apply and

For protection of the Great Western Railway Company.

A.D. 1925. have effect with reference to the exercise by the Corporation of the powers of this Part of this Act (that is to say) :—

- (1) In constructing Work No. 18 by this Act authorised the Corporation shall carry out the widening of the bridge carrying Brook Road Twerton over the company's railway (hereinafter referred to as "the widening") by means of a wrought iron or steel girder bridge with wrought iron or steel flooring having a span not less than that of the existing bridge and such widening shall be constructed and for ever maintained by the Corporation with a clear headway throughout of not less than fifteen feet above the existing level of the upper surface of the rails upon the railway of the Company at the point of crossing and with such constructional depth as the Company may reasonably require :
- (2) The widening shall be constructed so as not to injure the stability of and so as to leave undisturbed at all times the lines of railway and other works connected therewith of the company and so as in no way to obstruct impede endanger or interfere with the free uninterrupted and safe use of the railway of the company or with the traffic thereon and if any such obstruction impediment damage or interference shall be caused or take place the Corporation shall pay compensation to the company in respect thereof :
- (3) The Corporation shall construct the widening and any temporary works in connection therewith in accordance with such plans sections drawings and specifications and of such quality and strength of materials as shall be previously submitted to and reasonably approved in writing by the engineer of the company (hereinafter called "the engineer") and the Corporation shall not commence the construction of the widening or enter upon or interfere with any lands works or property for the purposes thereof belonging to or used by the company until such plans sections drawings and specifications have been so submitted and

approved or settled by arbitration under this section. Provided that if within six weeks of the receipt of such plans sections drawings and specifications the engineer has not signified his disapproval he shall be deemed to have approved thereof :

A.D. 1925.

- (4) The widening and any temporary works in connection therewith shall be executed by and in all things at the expense of the Corporation and under the superintendence (if given) and to the reasonable satisfaction of the engineer. Provided that if the company so elect they may themselves construct the widening and may recover the reasonable costs of so doing from the Corporation (including compensation payable to any workmen or their legal representatives or dependents who may be injured or killed whilst employed by the company in and about such works) :
- (5) The widening shall be maintained by the company and the reasonable costs of their so doing shall be repaid to them by the Corporation (including any compensation payable as aforesaid) but the Corporation shall at their own expense maintain the roadway and footpaths over the widened bridge and the approaches to such bridge :
- (6) The Corporation shall bear and on demand pay to the company the reasonable expenses (including any compensation payable as aforesaid) of the employment by the company during the construction of the widening of such inspectors watchmen and signalmen to be appointed by the company as may be reasonably necessary for watching their railways and works and the conduct of the traffic thereon with reference to and during the construction of the widening for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of the Corporation or of their contractors with reference thereto or otherwise :

A.D. 1925.
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- (7) As from the date of the passing of this Act the Corporation shall take over and relieve the Great Western Company from all liability in respect of the maintenance of the roadway upon the said bridge and the same shall become a highway repairable by the inhabitants at large but nothing in this subsection shall deprive the Great Western Company of any right possessed by them at the date of this Act to widen their railway at any time to the full extent of their existing property :
- (8) The Corporation shall not enter upon take or use for the purposes of Work No. 14 by this Act authorised any portion of the property of the company within a distance of fifteen feet from the present general line of the bank of the River Avon and in constructing such work they shall to the reasonable satisfaction of the engineer erect a suitable fence with all necessary or convenient openings between the company's property and the said work and thereafter maintain the same to the like satisfaction :
- (9) Except for the purposes of Work No. 14 the Corporation shall not under the powers of this Act acquire compulsorily any lands of the company Provided that the Corporation may acquire and the company on being requested so to do by the Corporation shall sell or grant to the Corporation such rights and easements as may be necessary to enable the Corporation to construct and maintain Works Nos. 13 and 18 by this Act authorised over or under the railways and other property of the company and the Corporation shall pay to the company for any rights and easements which they may so require the company to sell or grant such sum as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement :
- (10) If by reason of the construction of any of the works by this Act authorised it shall become necessary to add to alter or remove any signal

A.D. 1925.

cabin signal posts signals telegraph and telephone posts and wires mooring posts dolphins or other works or apparatus on or connected with the railways or navigation of the company or substitute other works therefor the company may carry out such additions alterations removal or substitution and the reasonable expense thereof shall be repaid to them by the Corporation :

(11) The Corporation shall repay to the company any additional expense which the company may reasonably and properly incur—

(a) in repairing and maintaining the tow-path along the River Avon and the river walls and banks or other works in connection with the River Avon Navigation by reason of the construction or user of Works Nos. 13 and 14; and

(b) in widening their railway upon their existing property or in altering reconstructing repairing or maintaining the same by reason of the construction of Work No. 18 :

(12) Any difference between the Corporation and the company respecting any of the matters referred to in this section shall be referred to and determined by an arbitrator to be appointed at the request of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

29. For the protection of the Bath Gas Light and Coke Company (in this section called "the company") the following provisions shall notwithstanding anything in this Part of this Act contained and unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say) :—

For protection of Bath Gas Light and Coke Company.

(1) In this section "apparatus" means and includes all or any mains pipes syphons tubes fittings or other apparatus belonging to the company and "authorised work" means and includes any work authorised by this Part of this Act :

A.D. 1925.
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- (2) Before commencing to execute any authorised work in any road in which any apparatus is laid the Corporation shall give fourteen days' notice to the company of their intention to execute such work and shall at the same time deliver to the company for their reasonable approval a plan and section of such authorised work and such work shall not be executed except in accordance with such plan and section as may be so approved or as determined by arbitration under this section. Provided that in the event of such plan and section not being objected to within fourteen days from the receipt thereof they shall be deemed to have been approved by the company. The Corporation shall also if required to do so by the company give them any such further information in relation to such authorised work as they may reasonably require :
- (3) If it should appear to the company that the execution of such authorised work as proposed would interfere with or endanger any such apparatus or interfere with the access thereto or impede the supply of gas the company may within a period of fourteen days from the receipt by the company of the notice referred to in subsection (2) of this section give notice to the Corporation to alter the position of such apparatus in such manner as may be reasonably necessary and any difference as to the necessity of any such alteration or the manner of carrying out the alteration shall be settled by arbitration under this section and all such alterations shall save as hereinafter provided be carried out by and at the expense of the Corporation with as little detriment and inconvenience to the company as the circumstances will admit and to the reasonable satisfaction of the engineer of the company and under his superintendence if he think fit to attend after receiving not less than three days' notice for that purpose which notice the Corporation are hereby required to give :
- (4) The Corporation in executing any authorised work shall not remove or displace any apparatus

A.D. 1925.

or do anything to endanger such apparatus or impede the passage of gas into or through any apparatus or interfere with the access thereto without the consent of the company or in any other manner than the company shall approve until good and sufficient apparatus and other works necessary or proper for continuing the supply of gas as sufficiently as the same was supplied by the apparatus proposed to be removed or displaced shall at the expense of the Corporation have been first made and laid down in lieu thereof and ready for use and to the reasonable satisfaction of the engineer of the company :

- (5) Wherever by virtue of this Part of this Act any public rights of way over any existing road or footway in which any apparatus shall be placed shall be extinguished the Corporation shall if reasonably required by the company remove such apparatus to and re-lay the same in the road or footway (if any) intended to be substituted for such existing road or footway or in such other position as may be reasonably required by the company or shall provide in such substituted road or other position similar apparatus equally suitable in lieu thereof under the superintendence (if given) and to the reasonable satisfaction of the engineer of the company and in such a manner as not to cause without the consent in writing of the company any interruption in the continuous supply of gas through or by means of such apparatus or similar apparatus :
- (6) Whenever by reason of the exercise by the Corporation of the powers of this Part of this Act any apparatus (other than apparatus for which new apparatus has been substituted by or at the expense of the Corporation under the provisions of this section) shall be rendered derelict useless or unnecessary the Corporation shall forthwith pay to the company such a sum as may be agreed between the Corporation and the company or as failing such agreement may

A.D. 1925.

be determined by arbitration as hereinafter provided to be the then value of such apparatus as apparatus and such apparatus shall thereupon become the property of the Corporation and in addition to such payment the Corporation shall pay to the company the reasonable cost of and incidental to the cutting off of any such derelict useless or unnecessary apparatus from any other apparatus of the company and of and incidental to any other works or things rendered necessary or expedient in consequence of such apparatus being rendered derelict useless or unnecessary by the exercise by the Corporation of the powers of this Act :

- (7) Wherever by reason of the exercise by the Corporation of the powers of this Part of this Act any replacement of old apparatus by new apparatus or any addition to existing apparatus shall be rendered reasonably necessary the Corporation at their own expense shall provide all such apparatus of a quality equal to that replaced or added to and lay and connect the same in such position as may be reasonably required by the company to the reasonable satisfaction of the engineer of the company and in such manner as not to cause without the consent in writing of the company any interruption in the continuous supply of gas to the inhabitants of the district :
- (8) The Corporation in executing any authorised work shall make good all damage done by them to any apparatus and shall make full compensation to the company for any loss (other than loss of revenue) damage costs or expenses which they may sustain by reason of any interference with such apparatus or the access thereto or with the private service pipes of any person supplied by the company with gas :
- (9) If the company shall desire to execute the works connected with any alteration of position removal displacement or renewal of or necessary additions to any apparatus under this section or shall desire to provide such new or additional

apparatus and shall give not less than seven days' notice in writing thereof to the Corporation before they commence the works the company may themselves carry out the works and all reasonable expenses properly incurred by them in connection with the works or provision of apparatus shall be repaid to them by the Corporation :

A.D. 1925.

- (10) If any difference shall arise with respect to any matter under this section between the Corporation and the company or their respective engineers the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party (after notice thereof in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration. In settling any question under this section an arbitrator shall have regard to any duties or obligations which the company may be under in respect of their apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the company's apparatus is used.

30.—(1) The powers conferred upon the Corporation by the Public Health Act 1875 (including any powers conferred upon them by section 176 (Regulations as to purchase of land) of that Act) with respect to the purchase of lands for the purposes of that Act are hereby extended so as to enable the Corporation to acquire land for the purposes of burial grounds.

As to lands
for burial
grounds.

(2) The provisions of the said section 176 shall be extended so as to enable the Minister of Health in cases where he may think fit and subject to such conditions as he may impose by Provisional Order to empower the Corporation to put in force with respect to lands referred to in any application submitted to him for the purposes mentioned in subsection (1) hereof the powers of the Lands Clauses Acts with respect to the purchase and taking of land otherwise than by agreement.

A.D. 1925.

PART III.

PURCHASE MAINTENANCE AND MANAGEMENT BY THE
CORPORATION OF BRIDGES OVER RIVER AVON.Confirma-
tion of
scheduled
agreements
&c.**31.**—(1) The following agreements (namely)—

- (a) the agreement made the fourteenth day of July nineteen hundred and twenty-five between the Corporation of the one part and the Bathwick Bridge Company Limited of the other part;
- (b) the agreement made the fourteenth day of July nineteen hundred and twenty-five between the Corporation of the one part and the North Parade Bridge Company (of Bath) Limited of the other part; and
- (c) the agreement made the twenty-first day of July nineteen hundred and twenty-five between the Corporation of the one part and the Widcombe Bridge Company Limited of the other part;

which are respectively set forth in the first second and third parts of the Second Schedule to this Act are hereby confirmed and made binding on the parties thereto respectively and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the said parties respectively in writing under their respective common seals.

(2) The sections of this Part of this Act of which the respective marginal notes are hereinafter mentioned shall not (to the extent specified) apply to the bridge-owners who are parties to the agreements referred to in subsection (1) of this section or in respect of the undertakings of the bridge-owners which are to be transferred to the Corporation in pursuance of the agreements which are confirmed by this section (namely):—

Bridge-owners to sell undertakings to Corporation
(subsections (1) (2) and (3));

Receipt for purchase money (subsection (1));

Bridge-owners to be entitled to receipts and to pay
outgoings until transfer (the whole section);

Exercise of bridge-owners' powers until transfer (the whole section); A.D. 1925.

Liabilities to be defrayed by bridge-owners (the whole section).

(3) For the purposes of and in connection with the undertakings of the bridge-owners to be transferred to the Corporation in pursuance of the agreements referred to in subsection (1) of this section "the day of transfer" within the meaning of the said agreements respectively shall be deemed to be "the appointed day" for the purposes of this Part of this Act.

32.—(1) If within three years after the passing of this Act the Corporation give to the bridge-owner notice in writing of their intention to purchase the undertaking of the bridge-owner the bridge-owner shall sell to the Corporation and the Corporation shall purchase the undertaking of the bridge-owner for such price or consideration being a sum in gross and on such terms and conditions as may be agreed on between the bridge-owner and the Corporation or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

Bridge-owners to sell undertakings to Corporation.

(2) Provided that if the bridge-owner and the Corporation so agree any sum payable by the Corporation to the bridge-owner in pursuance of this Act may be discharged wholly or partly by the issue by the Corporation to the bridge-owner or to such persons as the bridge-owner may nominate of stock created under the Public Health Acts Amendment Act 1890 or of mortgages or other securities which the Corporation are by this Act authorised to grant or issue for the purpose of raising the sums payable by the Corporation to the bridge-owner.

(3) The Corporation shall pay the purchase money to the bridge-owner on the appointed day and upon such payment the undertaking of the bridge-owner with all rights powers and privileges in relation to that undertaking shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Corporation free from all charges debts and liabilities upon or affecting the same and such transfer and vesting are in this Act referred to as "the transfer."

A.D. 1925.

(4) The production of a King's printers copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by one of the executors of the late Joseph Barter (in the case of the purchase of the Grosvenor Bridge) and of two directors of the company owning the bridge undertaking (in the case of each of the other bridges) or by the cashier of the Bank of England shall be evidence in all courts and proceedings of the transfer to and vesting in the Corporation of the undertaking of the bridge-owner.

Receipt for
purchase
money.

33.—(1) The receipt in writing of one of the executors of the late Joseph Barter (in the case of the purchase of the Grosvenor Bridge) and of two directors of the company owning the bridge undertaking (in the case of each of the other bridges) for any money paid to them by the Corporation shall effectually discharge the Corporation from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof.

(2) Provided that if from any cause the Corporation are unable to obtain such receipt from the bridge-owner they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Corporation by the cashier of the said bank for the money which shall have the same effect as the receipt of one of the executors of the late Joseph Barter (in the case of the purchase of the Grosvenor Bridge) and of two directors of the company owning the bridge undertaking (in the case of each of the other bridges).

Bridge-
owners to
be entitled
to receipts
and to pay
outgoings
until trans-
for.

34.—(1) The bridge-owner shall be entitled to all receipts and sums of money accrued due in respect of the bridge undertaking up to and including the appointed day.

(2) As from the appointed day all liabilities and outgoings incurred after that day shall be borne and paid by the Corporation who shall be entitled as from that day to all receipts and sums of money in respect of the said undertaking and so far as may be necessary such

liabilities outgoings receipts and sums of money shall be apportioned between the bridge-owner and the Corporation up to the appointed day.

A.D. 1925.

35. After service of the notice referred to in the section of this Act whereof the marginal note is " Bridge-owners to sell undertakings to Corporation " until the appointed day the bridge-owner shall maintain and carry on the bridge undertaking as heretofore in the ordinary course of business but the bridge-owner shall not without the previous consent of the Corporation under the hand of the town clerk make or enter into any new contract agreement liability or other obligation in respect of the bridge undertaking which shall extend beyond the appointed day.

Exercise of bridge-owners' powers until transfer.

36. All charges debts and liabilities upon or affecting the undertaking or due from or payable by the bridge-owner which at the appointed day shall remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the bridge-owner.

Liabilities to be defrayed by bridge-owners.

37. If at the appointed day any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the bridge-owner the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the bridge-owner as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not been passed.

Actions &c. not to abate.

38. Subject to the provisions of this Act all agreements conveyances contracts deeds and other instruments entered into or made with or by the bridge-owner and in force at the appointed day shall be as binding and of as full force and effect in every respect against or in favour of the Corporation and may be enforced as fully and effectually (both before and after the expiration of the period of seven years from the passing of this Act referred to in the section thereof of which the marginal note is " As to cesser of tolls ") as if instead of the bridge-owner the Corporation had been a party thereto.

Contracts with bridge-owners to be binding on Corporation.

39. All books and documents which if the transfer had not been made would have been evidence in respect

Books &c. to remain evidence.

A.D. 1925.

— of any matter for or against the bridge-owner shall be admitted in evidence in respect of the same or the like matter for or against the Corporation.

Winding up
of Bridge
Company.

40.—(1) From and after the date of the transfer the bridge-owner (other than the owners of the Grosvenor Bridge) shall subsist only for the purpose of discharging paying and satisfying the charges debts and liabilities upon or affecting the undertaking of the bridge-owner or due from or payable by the bridge-owner and of receiving and recovering the sums payable to the bridge-owner as provided by this Act and distributing the same and the purchase money and any other moneys payable to the bridge-owner in accordance with the provisions of this Act and for winding up the affairs of the bridge-owner and carrying into effect the purposes of this Act so far as they relate to the bridge-owner and the directors of the bridge-owner who are in office at the date of the transfer and the survivors or survivor of them shall continue without re-election to hold the office of directors of the bridge-owner and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section.

(2) If in any case the number of directors of the bridge-owner be reduced by death resignation or otherwise below three before the completion of such winding up the continuing directors shall from time to time choose a shareholder or shareholders of the bridge-owner to fill the vacancy or vacancies so caused.

(3) Forthwith after the date of the transfer the directors of the bridge-owner (other than the owners of the Grosvenor Bridge) shall proceed to wind up the affairs of the bridge-owner and after discharging paying and satisfying the charges debts and liabilities upon or affecting the undertaking or due from or payable by the bridge-owner shall pay and distribute their net moneys to and among the several persons who at the date of the transfer are the registered holders of stock or shares in the capital of the bridge-owner or their respective executors administrators and assigns according to the amount of the stock or shares held by them respectively and for the purpose of such distribution the several persons whose names shall appear in the books of the bridge-owner at the date of the transfer to be the proprietors of stock or shares therein shall unless the contrary be proved

A.D. 1925.

to the satisfaction of the directors of the bridge-owner be considered to be stockholders or shareholders of the bridge-owner and the receipt in writing of such persons or of their executors or administrators or of the committee or guardian of the estate of any such person who shall be an idiot lunatic or minor shall be an effectual discharge to the bridge-owner for the money therein expressed to be received and shall exonerate them from any obligation affecting the stock shares or interest in respect whereof that money is paid.

(4) If the directors of the bridge-owner are for six months after the date of the transfer unable after diligent inquiry to ascertain the person to whom any money ought to be paid or who can give an effectual receipt for the same they may pay the same into the High Court or if not exceeding five hundred pounds into the county court of Somerset holden at Bath under any Act for the time being in force for the relief of trustees and every such payment shall effectually discharge the bridge-owner from all further liability with respect to the money so paid in.

41. The bridge-owner (other than the owners of the Grosvenor Bridge) may by resolution passed at a general meeting provide for the payment of any sum to any officer or servant of such bridge-owner who by reason of the transfer of the undertaking of such bridge-owner to the Corporation under or pursuant to the provisions of this Act suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for the payment of any sum in recognition of any special services rendered to such bridge-owner.

As to compensation &c. to officers and servants of certain bridge-owners.

42. As from the appointed day and subject to the provisions of this Act the following provisions shall so far as applicable apply in relation to any bridge or bridges acquired by the Corporation under this Part of this Act (namely):—

Power to maintain bridges &c. and charge tolls.

- (a) The Corporation may and shall repair and maintain the bridges and the roads thereover and may from time to time alter and improve the same and may maintain alter improve and renew the toll-houses toll-gates and buildings in connection therewith and may construct and maintain all works and conveniences which may be

A.D. 1925.

necessary and proper for the working and user of the bridges and the accommodation and convenience of passengers animals and vehicles using the same and do all other matters and things necessary and convenient for those purposes or any of them ;

(b) The Corporation may for a period not exceeding seven years from the passing of this Act demand and take in respect of the bridges comprised in the undertakings of the bridge-owners purchased by them tolls not exceeding the respective tolls set out in the Third Schedule to this Act ;

(c) The Act passed in the year 1805 and intituled
“ An Act to enable the Trustees therein named
“ to erect and build a new bridge over the
“ River Avon on the north-west side of the
“ manor of Bathwick in the county of Somerset
“ to communicate with the parish of Walcot
“ and the road from the city of Bath to London
“ and also to raise a sufficient sum of money for
“ that purpose by a charge on the Trust
“ Estates of the late General Pulteney ” shall be repealed.

(d) The Great Western Railway Company shall permit the Corporation at all reasonable times to enter upon their towpath or other property relating to the River Avon Navigation for the purpose of repairing or reconstructing any of the bridges Provided that the Corporation shall at all times keep open the towpath for traffic while their works are in progress and shall make good to the reasonable satisfaction of the engineer of that company any damage caused to their property by the said works.

Composition
of tolls.

43.—(1) The Corporation may during the subsistence of the tolls enter into and carry into effect agreements with any persons or bodies providing for the charging of such annual or other sums to any person or persons or any class or classes of persons by way of compounding for the tolls.

(2) In the exercise of the powers conferred by subsection (1) of this section or for the purpose of giving effect to any agreement thereunder the Corporation may

issue season tickets at prepaid rates to tradesmen farmers and other persons who or whose tollable vehicles habitually use the bridge.

A.D. 1925.

(3) All compounding under this section shall be made on the same terms for all persons in like circumstances.

44. A list of the tolls from time to time authorised to be taken shall be published by the same being painted upon a board in distinct letters or by the same being printed in legible characters on paper affixed to such board and such board shall be exhibited at the toll gates of the bridge or bridges where such tolls shall be payable.

List of tolls to be exhibited near each end of bridge.

45. No tolls shall be demanded or taken by the Corporation during any time at which the list of tolls hereinbefore directed to be exhibited shall not be so exhibited and if any person wilfully pull down deface or destroy any such board or list of tolls he shall be liable on summary conviction to a penalty not exceeding five pounds for every such offence.

Tolls to be taken only whilst board exhibited.

46. The Corporation may require all tolls to be paid before any person animal vehicle or other thing is entitled to pass over the bridge in respect of which the same are payable.

Tolls to be paid before passing over bridge.

47. The tolls shall be paid to such persons and at such places upon or near the bridge in respect of which the same are payable and in such manner as the Corporation shall appoint and the Corporation may recover any unpaid tolls in a summary manner as a civil debt or by action in any court of competent jurisdiction.

Taking and recovery of tolls.

48. If any person shall knowingly and wilfully and with intent to defraud refuse or neglect to pay any toll when the same shall be demanded from him by virtue of this Act he shall for every such offence be liable to a penalty not exceeding forty shillings.

Penalties on persons practising frauds.

49. Every toll collector who shall commit any of the following offences shall be liable to a penalty not exceeding ten pounds for each such offence (that is to say):—

Penalties on toll collectors.

If he refuse to tell his Christian name and surname to any person demanding the same who shall have paid or tendered the toll demanded of him or if he give a false name to any such person;

A.D. 1925.

If he wilfully and with intent to defraud demand or take a greater or less toll from any person than he shall be authorised to do by virtue of this Act and of the orders of the Corporation made in pursuance thereof or shall take no toll.

Exempting
officers of
Crown from
toll.

50.—(1) Without prejudice to any existing right of His Majesty nothing in this Act shall be deemed to authorise any tolls to be demanded or taken from any person when on duty in the service of the Crown or for any animal or vehicle the property of or when being used in or for the service of the Crown or returning after being so used or from any police officer acting in the execution of his duty. Provided that any person claiming exemption from toll by virtue of this provision shall if called upon so to do give his name address and official position to the toll collector.

(2) If any person shall claim or take the benefit of any such exemption as aforesaid without being entitled thereto he shall for every such offence be liable on summary conviction to a fine or penalty of not exceeding ten pounds.

(3) In this section the expression "the Crown" includes any Government department.

Byelaws as
to bridges.

51. The Corporation may subject to the provisions of this Act make alter and repeal byelaws for all or any of the purposes following (that is to say):—

- (a) For regulating controlling and limiting the use of the bridges acquired by them under this Act;
- (b) For preventing the commission of nuisances in or upon such bridges or the approaches thereto;
- (c) For preserving such bridges and works forming part thereof and preventing injuries and damage to the same;
- (d) For regulating the duties and conduct of all persons whether officers and servants of the Corporation or not who shall be employed in and about such bridges;
- (e) For regulating the passage and conveyance of passengers animals vehicles or goods across such bridges and providing for the issue of tickets as receipt for tolls paid to a toll collector and the giving of the same up on request to any toll collector and against the transfer of season or other tickets issued and using the same again;

(f) For regulating and controlling or preventing if thought fit the fastening or mooring of boats of every description to such bridges and other works; A.D. 1925.

(g) For preventing persons with horses or carriages or other vehicles or otherwise negligently or wilfully obstructing the approaches to such bridges or doing anything to hinder or interfere with the proper working of the same;

(h) For the preservation of order among the passengers and persons using such bridges.

And the Corporation may by the byelaws so to be made by them impose such reasonable penalties as they think fit not exceeding five pounds for each breach of such byelaws. Provided that no such byelaws except such as relate solely to the officers or servants of the Corporation and do not impose penalties for the breach thereof shall come into operation until the same shall have been confirmed by the Minister of Transport.

52. Notice of the application to the Minister of Transport for the confirmation of any byelaws with respect to the bridge shall be given in one or more newspapers published or circulating in the city naming a place or places within the city where a copy of the proposed byelaws may be seen at all reasonable times and any person desiring to object to any byelaws so submitted for approval or confirmation shall give notice in writing to the Minister of Transport and to the Corporation stating the nature of his objections within twenty-one days after the first publication of the notice as hereinbefore provided and the Minister of Transport may if he thinks fit hold such inquiry locally or otherwise in reference to such application as he sees fit and the expenses of the Minister of Transport in connection with such inquiry shall be defrayed by the Corporation out of moneys received by them in respect of the bridges or out of the city fund.

Notice of application to Minister of Transport to be given.

53. A copy of any byelaws made under this Part of this Act signed and certified by the town clerk to be a true copy and to have been duly confirmed shall be evidence until the contrary is proved in all legal proceedings of the due making confirmation and existence of such byelaws without further or other proof.

Evidence of byelaws.

A.D. 1925.

As to cesser
of tolls.

54. Within a period of seven years from the passing of this Act the tolls payable in respect of the bridge comprised in the undertaking of the bridge-owner shall cease to be so payable. Provided that the Corporation may at any time during the said period of seven years by resolution of the council declare that the bridges comprised in any of the undertakings so purchased or any of those bridges shall be open to the public free of toll or free of any particular class or classes of the tolls applicable thereto and specified in such resolution (whether for foot passengers vehicles or any class or classes of traffic) without being free of any other class or classes of such tolls not so specified and as from the date in that behalf named in such resolution any bridge or bridges specified therein shall be open to the public without payment of toll or without payment of the class or classes of toll specified in such resolution and thereupon the provisions of the Public Health Acts relating to streets which are highways repairable by the inhabitants at large shall so far as applicable and subject to the provisions of the section of this Act of which the marginal note is "Contracts with bridge-owners to be binding on Corporation" apply to the roadways over any such bridge or bridges so specified.

Application
of revenue
of bridges
undertaking
and defi-
ciency of
receipts.

55.—(1) The Corporation shall apply all money received by them on account of revenue in respect of the bridges undertaking of the Corporation authorised by this Part of this Act in manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking;

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of the undertaking;

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Corporation for the purposes of the undertaking;

Fourthly In extending and improving any of the bridges (if the Corporation think fit);

Fifthly In providing a reserve fund for the purposes of the undertaking by setting aside the balance remaining in any year of the revenue

of the undertaking or any part of that balance and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest.

A.D. 1925.

(2) Any reserve fund formed under this section shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the works forming part thereof or otherwise for the benefit of the undertaking or for the redemption of the moneys borrowed by the Corporation for the purposes of the undertaking.

(3) Any deficiency in the revenue of the undertaking which is not made good out of the reserve fund shall be made good and any expenses incurred by the Corporation for the purposes of the undertaking (other than expenses defrayed out of the revenue or reserve fund thereof or out of borrowed money) shall be defrayed out of the city fund and the next city rate shall be increased so far as may be necessary to raise the money to recoup the city fund the amount so made good or defrayed out of that fund.

56. The Corporation shall keep separate accounts in respect of the bridges undertaking of the Corporation authorised by this Part of this Act and in such accounts shall distinguish capital from revenue. Separate accounts to be kept.

PART IV.

WATER SUPPLY.

57.—(1) The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him whether by way of sale or hire and repair or alter but shall not manufacture any such water fittings as are required or permitted by their byelaws and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Corporation for the sale or hire of such materials and for executing such work shall be paid by the person requiring the same. Power to supply fittings.

A.D. 1925.
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(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be :

Provided that such fittings other than meters have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners thereof.

(3) Provided that—

(a) The Corporation shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed);

(b) Every sum charged by the Corporation in respect of the provision of such fittings or the fixing repairing or removal thereof shall be clearly stated in every demand note rendered by the Corporation to the consumer ;

(c) The total sums expended and received by the Corporation in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking for such year.

(4) Any payment due to the Corporation for the sale or hire of such fittings or materials or for executing such work may be recovered summarily as a civil debt provided the amount thereof does not exceed twenty pounds.

Power to
sell meters.

58. The Corporation may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

59.—(1) The Corporation shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

A.D. 1925.

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Corporation
not bound
to supply
several
houses by
one pipe.

(2) If the owner of any house supplied with water by the Corporation when so required in pursuance of the preceding subsection fails within a period of one month after the receipt of such requirement to provide a separate pipe from the main pipe into such house the Corporation may themselves do the work necessary in that behalf and may recover the cost incurred by them in so doing from such owner.

60. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer.

Mainten-
ance of
common
pipe.

61.—(1) If it should appear to the Corporation that by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to person or property or to the health of any person it shall be lawful for the Corporation by or under the direction of their duly authorised officer to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and where any such injury or defect has been found to exist the expense incurred by the Corporation for the purposes of ascertaining the injury or defect and executing the repairs (including the expense of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Corporation from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier.

Power to
Corporation
to repair
communica-
tion pipes.

(2) Provided that except in case of emergency the Corporation shall not under the powers of this section

A.D. 1925.

enter into any house or private premises unless they shall have given to the owner and occupier of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

Power to
person liable
to maintain
pipes &c.
to open
ground.

62.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 or under any other Act relating to the Corporation to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) By agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the water limits the Corporation may execute such works on behalf of such owner or occupier and any expenses incurred by the Corporation in so doing shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

Notice to
Corporation
of connect-
ing or dis-
connecting
meters.

63. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Meters may
be placed in
streets to
measure
water or
detect
waste.

64.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the Corporation may for the purpose of measuring the quantity of water supplied or of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Corporation and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that

purpose break up and interfere with temporarily public and private streets sewers gas or water pipes electric lines wires and apparatus. A.D. 1925.

(2) Provided that the Corporation shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

(3) Provided also that the Corporation shall not without the previous consent of a railway company exercise the powers of this section in respect of any street road lane footway court or passage which is the property of or maintained by such railway company but such consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by a single arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers.

65. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the waterworks engineer or be given by the consumer personally at the office of the said engineer. Notice of discontinuance.

66. The Corporation may make byelaws for securing the cleanliness and freedom from pollution of tanks cisterns and other receptacles in the city for storing water used or likely to be used by man for drinking or domestic purposes or for manufacturing drink for the use of man. Cleansing of cisterns.

67.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage sustained by them. Injuring meters &c.

A.D. 1925.
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(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *primâ facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Penalty for
closing
valves and
apparatus.

68. Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off or interfere with any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable on conviction to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

Supply to
houses
partly used
for trade.

69.—(1) The Corporation shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required or any hospital school or similar institution club boarding-house capable of accommodating twelve or more persons including the

persons usually resident therein hotel hydropathic restaurant public-house or inn. A.D. 1925.

(2) Subsection (1) of section 35 (Supply by meter in certain cases) of the Act of 1903 is hereby repealed.

70. The price to be charged for a supply of water by meter shall not exceed two shillings per thousand gallons. Price of supply by meter.

71.—(1) The Corporation may supply water throughout their area of supply for the time being from any works for the time being belonging to them whether such works were constructed by them under the provisions of the Public Health Acts or under the provisions of any Act of Parliament or Provisional Order confirmed by Parliament. Power to supply from all works throughout area of supply.

(2) The Corporation shall have and shall be deemed always to have had throughout their area of water supply all the powers of an urban authority under the Public Health Acts in relation to the supply of water as if the said area of supply were the district of the Corporation within the meaning of the said Acts. Provided that the provisions of the said Acts shall not apply in respect of matters relating to the supply of water for which provision has been expressly enacted in the Acts and Orders relating to the water undertaking of the Corporation which are inconsistent with or render unnecessary such provisions.

PART V.

ELECTRICITY.

72. The Corporation may in connection with and for the purposes of the electricity undertaking of the Corporation fit up showrooms and offices and exhibit specimen installations and give demonstrations of the uses to which electricity can be put and may appoint and pay persons for the purposes aforesaid. As to offices and show-rooms.

73.—(1) The Corporation may with the consent of the owner of any building or bridge attach thereto (but in the case of a bridge only to the underside thereof) Attachment of brackets &c. to buildings.

A.D. 1925. such brackets pipes wires and attachments as may be required for lighting any street in the limits of the Corporation for the supply of electricity.

(2) Provided that—

(a) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a court of summary jurisdiction who shall have power having regard to the character of the building or bridge and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid;

(b) Any consent of an owner and any order of a court of summary jurisdiction under this section shall not have effect after the owner ceases to be in possession of the building or bridge but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the court of summary jurisdiction shall have the same powers as under proviso (a);

(c) The owner may require the Corporation temporarily to remove the attachments where necessary during any reconstruction or repair of the building or bridge.

(3) For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

(4) Notwithstanding anything contained in this section no brackets wires or attachments shall be attached to any bridge or building belonging to or forming part of the railway undertaking of a railway company without the previous consent in writing of

that company or if in the opinion of an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers such consent is unreasonably withheld the consent of such engineer.

A.D. 1925.

74. Subject to the provisions of the Electricity (Supply) Acts 1882 to 1922 and the schedule to the Electric Lighting (Clauses) Act 1899 the Corporation may in or under any street repairable by the inhabitants at large or dedicated to public use and (with the consent of the persons liable to repair the same) in or under any street not so repairable or not dedicated to the public use construct and maintain sub-stations transforming stations and other works in connection with the electricity undertaking of the Corporation and may in any such street as aforesaid provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient Provided that where in the opinion of the Corporation the consent of the person liable to repair any street not repairable by the inhabitants at large or not dedicated to the public use is unreasonably withheld the Corporation may appeal to a court of summary jurisdiction who shall have power to allow the construction and maintenance of such sub-stations transforming stations and works subject to such terms and conditions as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

Power to construct electrical sub-stations under streets.

Provided also that the Corporation shall not construct any such sub-station transforming station or work so as to interfere with or render less convenient the access to or exit from any station or depôt of a railway company.

75.—(1) The Corporation may upon the application of the owner or occupier of any premises in the limits of the Corporation for the supply of electricity abutting on or in process of erection in any street laid out or made and whether dedicated to public use or not supply such premises with electricity and may lay down take up alter relay or renew in across or along such street such electric lines and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electricity (Supply) Acts 1882 to 1922 and of

Power to lay electric lines &c. in private streets.

A.D. 1925. the schedule to the Electric Lighting (Clauses) Act 1899 so far as they are applicable for the purposes of this section shall extend and apply to and for the purposes hereof and to any works constructed or executed by the Corporation under the powers of this section.

(2) Provided that nothing in this section contained shall apply to any street belonging to and forming the approach to any station or depôt of a railway company nor shall the Corporation in carrying out the works authorised by this section unreasonably obstruct or interfere with the convenient access to any such street.

As to maximum power which may be demanded.

76.—(1) The maximum electrical power with which any consumer shall be entitled to be supplied by the Corporation shall not include any supply of electricity taken on extraordinary occasions or as a stand-by supply unless such consumer shall pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Corporation in order to meet the possible maximum demand for his premises the sum to be so paid to be determined in default of agreement by arbitration in the manner provided by section 28 of the Electric Lighting Act 1882.

(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

Period of error in defective meters.

77.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade or the Minister of Transport used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

78.—(1) Any person who shall hinder an officer appointed by the Corporation from entering any premises in pursuance of section 24 (Power to enter lands or premises for ascertaining quantities of electricity consumed or to remove fittings) of the Electric Lighting Act 1882 or from exercising the powers contained in that section shall be liable to a penalty not exceeding forty shillings.

A.D. 1925.

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Entry upon
premises
Penalty for
obstruction.

(2) Where any premises which the Corporation are entitled to enter in pursuance of the said section 24 are unoccupied the Corporation may after giving not less than forty-eight hours' notice to the owner thereof or if he is unknown to the Corporation and cannot be ascertained after diligent inquiry after affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

79.—(1) The Corporation may if they think fit purchase provide sell let for hire and fix set up alter repair and remove and otherwise deal in (but not manufacture) lamps electric lines electric motors fittings apparatus and things for generating transforming distributing and utilising electricity and may provide all materials and do all work necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such lamps electric motors electric lines fittings apparatus and things as aforesaid and for securing (both as regards the consumer and third parties) their safety and return to the Corporation as the Corporation may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed.

For supply
of electric
motors
fittings
apparatus
&c.

(2) Provided as follows :—

- (a) The Corporation shall so adjust the charges to be made by them for any electric fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed);

A.D. 1925.

- (b) Every sum charged by the Corporation in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Corporation to the consumer;
- (c) The total sums expended and received by the Corporation in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the electricity undertaking of the Corporation for that year.

Power to
recover
charge for
re-connec-
tion.

80. Any expenses reasonably incurred by the Corporation in re-connecting any electric line or other work through which electricity may be supplied which may have been lawfully cut off or disconnected by reason of any default of the consumer may be recovered by the Corporation in like manner as expenses lawfully incurred by them in such cutting off or disconnecting.

Provisions
as to supply
of elec-
tricity by
agreement.

81.—(1) If any consumer of electricity supplied by the Corporation under the terms of any agreement uses the electricity supplied to him by the Corporation in any manner contrary to the terms of such agreement the Corporation may if they think fit discontinue to supply electricity to such consumer until they are satisfied that any electricity so supplied will be consumed in accordance with the terms of such agreement. Provided that before discontinuing any such supply the Corporation shall give to the consumer taking the same seven days' notice in writing of their intention so to do and shall in such notice specify the respect in which the electricity is used contrary to the terms of such agreement.

(2) A consumer supplied with electricity by the Corporation under the terms of any agreement shall be deemed to be a person to whom the Corporation may be and are required to supply energy within the meaning of section 30 of the schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply to the supply afforded by the Corporation under such agreement unless the provisions of that section are expressly excluded from application in any such agreement and if the Corporation fail to supply energy to such consumer they shall not be liable for any damages

occasioned to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Corporation : A.D. 1925.
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Provided that the provisions of this subsection shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

82. The Corporation may make byelaws for the purpose of preventing fire in any building or premises supplied with electricity by the Corporation with respect to the nature material workmanship and mode of arrangement of the wires apparatus and fittings in any such building or premises and required or used for the purpose of such supply and the provisions of section 6 of the Electric Lighting Act 1882 shall apply to any byelaws made under this section : Byelaws as to apparatus and fittings.

Provided that nothing contained in any byelaw to be made under this section shall apply to or in respect of any building or premises (other than a dwelling-house) belonging to a railway company and used by such company primarily for railway purposes.

83.—(1) A notice to the Corporation from a consumer for the discontinuance of a supply of electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and left with or sent by post to the electrical engineer of the Corporation or be given by the consumer personally at the office of the said engineer. Notice to discontinue supply of electricity.

(2) Notice of the effect of this section shall be endorsed upon any demand note for charges for electricity.

84.—(1) Any expenses incurred by the Corporation in carrying into effect the provisions of this Part of this Act and not otherwise provided for shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses. Receipts and expenses.

(2) Any moneys received by the Corporation under this Part of this Act shall be deemed to be moneys received in respect of the electricity undertaking and shall be applicable accordingly.

A.D. 1925.

PART VI.

PUBLIC BATHS PARKS AND RECREATION GROUNDS.

Use of
swimming
baths for
exhibitions
and enter-
tainments.

85. The Corporation may close to the public and may reserve the exclusive use of any swimming bath or open bathing-place belonging to them and may grant the use thereof either gratuitously or for payment for swimming contests practices aquatic exercises or for any other entertainments or exhibitions or for meetings and may demand and take or authorise to be demanded and taken at the door or entrance of such swimming bath or open bathing-place such sums for the exclusive use of such bath or place or for admission of persons thereto as they may think fit.

Byelaws as
to family
and mixed
bathing.

86. Notwithstanding anything to the contrary contained in the Baths and Washhouses Acts 1846 to 1899 the following provisions shall have effect:—

(1) The power of the Corporation to make byelaws for the management use and regulation of the public baths shall extend to enable them to permit any swimming bath to be used for the purpose of family bathing (that is to say by any males and females members of families bathing together at the same time) or of mixed bathing (that is to say by males and females bathing together at the same time) during such hours and subject to such regulations as shall be prescribed in such byelaws provided that by such byelaws provision shall be made for ensuring that separate dressing accommodation shall be provided for and used by males who have attained the age of eight years and females respectively and proper costumes worn:

(2) The provisions of sections 10 and 11 of the Baths and Washhouses Act 1878 shall apply in reference to such byelaws as if the same were made under that Act and the Corporation may accordingly exercise all the powers conferred upon them by the said sections in reference to the enforcement of such byelaws.

Power to
provide
public build-
ings &c.

87. The Corporation may provide or acquire or may on any pleasure ground or subject to the approval of the Minister of Health on any lands of which for the time

being they may be the owners erect and construct or allow to be erected and constructed and hold furnish equip maintain insure and carry on public halls pavilions bandstands assembly rooms and other public buildings with all necessary and suitable offices committee rooms entertainment rooms reading rooms shelters ante-rooms refreshment rooms kitchens cloak rooms lavatories conveniences and appurtenances and may for any such purposes maintain alter adapt extend or otherwise deal with existing buildings for the time being belonging to the Corporation and may provide erect and maintain shops and offices as part of any such building or buildings.

A.D. 1925.

88.—(1) The Corporation may arrange for the provision or carrying on of suitable concerts entertainments exhibitions performances and amusements and for the sale of programmes and refreshments in any public buildings halls or rooms belonging to them and may make such reasonable charges as they may think fit for admission thereto and the Corporation may let any such premises as aforesaid for the purposes of such concerts entertainments exhibitions performances or amusements or for the sale of refreshments for such periods or occasions and upon such terms and conditions as the Corporation may think fit or upon the like terms and conditions they may lease any such premises for any term not exceeding twenty-one years :

Provision of entertainments and letting of buildings.

Provided that any letting other than for a period of less than one month under this section of any building for the purpose of an entertainment shall be by tender and the Corporation shall secure the best rent reasonably obtainable.

(2) The Corporation may make byelaws for securing good and orderly conduct during any concerts entertainments exhibitions performances or amusements provided or carried on in pursuance of the provisions of this section.

89.—(1) The Corporation may from time to time let for terms not exceeding twelve months to any club company body or persons any portion of any park set apart by them for any purpose under paragraph (b) of subsection (1) of section 76 (Powers as to parks and pleasure gardens) of the Public Health Acts Amendment Act 1907 and may upon such portions so set apart erect

Power to let parks to clubs &c.

A.D. 1925.

construct and maintain all proper and convenient houses pavilions dressing-rooms and other buildings works and conveniences.

(2) Provided that nothing in this section shall empower the Corporation to let at one and the same time more than fifty per centum of the total area of the parks and places of public resort and recreation for the time being belonging to them and under their control.

Charge for
use of parts
of parks set
apart for
certain pur-
poses.

90. When any portion of a park is set apart by the Corporation for any purpose under paragraph (b) of subsection (1) of section 76 of the Public Health Acts Amendment Act 1907 and specially laid out and maintained for any such purpose the Corporation may charge reasonable sums for the use thereof for that purpose.

Advertising
of band per-
formances.

91. The Corporation may for the purposes of paragraphs (d) and (e) of subsection (1) of section 76 of the Public Health Acts Amendment Act 1907 pay or contribute towards the cost of providing and maintaining in the city and in newspapers published in the city advertisements of any concerts entertainments or performances given in pursuance of the said subsections and any such expenses shall be deemed to be expenses within the meaning of subsection (3) of the said section 76.

Closing of
certain
parks &c.

92.—(1) Notwithstanding anything contained in the Bath Act 1879 or any other enactment the Corporation shall have power to close to the public parks or gardens belonging to them and known respectively as “the Royal Victoria Park” “the Royal Avenue” “the Middle Common” “the High Common” and “the Sydney Gardens” and any public footpaths or rights of way thereover respectively for the purpose of granting the use of those parks or gardens or any of them either gratuitously or for payment to any public charity or institution or for any agricultural horticultural or other show.

(2) Provided that none of the said parks or gardens shall be closed on a Sunday or public holiday or for more than twenty-four days in any one year or for more than four consecutive days on any one occasion.

Receipts
and ex-
penses
under this
Part of Act.

93. Any moneys received by the Corporation under the provisions of this Part of this Act shall be carried to the credit of the city fund and the expenses incurred by them in the exercise of the powers contained therein shall be paid out of the same fund.

PART VII.

A.D. 1925.

STREETS BUILDINGS SEWERS AND DRAINS.

94. The Corporation may by order from time to time determine and declare the points or limits at or within which any street existing prior to the twenty-first day of April nineteen hundred and fourteen is to be taken as beginning and ending and any continuation of such an existing street shall be deemed to be a new street within the meaning of section 17 (Power to vary position or direction and to fix beginning and end of new streets) of the Public Health Acts Amendment Act 1907.

Power to
define
streets.

95.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to obstruct vehicular traffic or passengers or where any tree is dangerous to such traffic or passengers the Corporation may serve a notice on the owner or occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within fourteen days so as to prevent such obstruction interference or danger and such notice shall be sufficient authority to the person so served to execute the work prescribed in the notice. In default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage and the expenses incurred by them shall be repaid by the person in default.

Lopping of
trees over-
hanging
highways.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a court of summary jurisdiction within fourteen days after the service of such notice provided he gives three clear days' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(3) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section.

96.—(1) Where any street or road repairable by the inhabitants at large or any part of such street or road is in the opinion of the Corporation narrow or inconvenient or without any sufficiently regular line of frontage or where at the corner of any street or road it is in their opinion desirable to set back the line of frontage in order

Corporation
may fix line
of existing
streets.

A.D. 1925. to facilitate traffic or where in any other case it is in their opinion necessary or desirable that the line of frontage should be altered the Corporation may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road or any part thereof.

(2) The line which in any case the Corporation propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Corporation formally prescribe and define the line they shall give notice in writing of the deposit of the said plan and of the liabilities imposed by this section to every occupier and to every owner interested whose name and address they can ascertain and in cases where such name and address cannot with reasonable diligence be ascertained by fixing such notice to or on the premises.

(3) No new building erection excavation or obstruction shall be made or placed nearer to the centre of the street or road than such line except with the consent in writing of the Corporation which may be given for such period and upon and subject to such terms and conditions as they may deem expedient.

(4) The Corporation may and if required so to do by the owner shall purchase and the owner and all other persons interested shall if required so to do by the Corporation sell the land for the time being unbuilt upon lying between any line prescribed by the Corporation under this section and the street or road and the same when purchased shall vest in the Corporation as part of the street or road. Provided that the Corporation shall not be required by an owner to purchase any land under the provisions of this section until a building shall have been erected on the land immediately behind the land to be purchased.

(5) Whenever in any of the above cases the Corporation shall require the said line to be observed and kept they shall make compensation to the owner and other persons interested in any land for any loss or damage which he or they may sustain in consequence of the line of frontage being set back and the Corporation shall also make to the owner of any adjoining land or

building and to all other persons interested in any such adjoining land or building compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Corporation requiring the said line to be observed and kept. A.D. 1925.

(6) The amount of any purchase money or compensation payable under subsection (4) or subsection (5) of this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts and in determining the amount thereof the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said purchase money or compensation.

(7) If after any such line has been prescribed and defined as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

97.—(1) The Corporation may at any time after prescribing and defining the line of frontage of any street in pursuance of the power conferred upon them by the section of this Act of which the marginal note is "Corporation may fix line of existing streets" on giving six months' previous notice in writing to the owner require that any building or erection which or any part of which was beyond or in front of any such line of frontage at the date when the same was so prescribed or defined shall be pulled down set back or altered so that the same shall not project beyond or in front of such line of frontage. Further powers as to future line of street.

(2) The owner may and if so required by the Corporation shall notwithstanding any contract lease or agreement or any provision therein contained enter upon any land building or erection affected by any requirement of the Corporation under this section and carry out such requirement.

(3) In the event of any building or erection being pulled down set back or altered in accordance with any requirement of the Corporation under this section the Corporation shall make compensation to the owner lessee and tenant of any such building or erection and

A.D. 1925. — to any or either of them for any loss or damage sustained by such owner lessee or tenant in consequence of such building or erection being pulled down set back or altered as aforesaid.

(4) The amount of any compensation payable under this section and any other question under this section the determination whereof is not otherwise provided for by this Act shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts but in estimating the amount of any such compensation the benefit arising from the widening or improvement of the street and accruing to the property in respect of which such compensation shall be payable shall be fairly estimated and set off against such compensation.

(5) Any person who shall fail to comply with a requirement of the Corporation under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Building
line in
streets.

98.—(1) Every person who intends to form a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings in force within the city distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building line") and the Corporation shall be deemed to have approved any building line unless within six weeks after the date of submission thereof they shall have signified to the person submitting the same their disapproval thereof.

(2) The Corporation may also prescribe the building line to be observed in those parts of any street already formed upon which buildings have not already been erected.

(3) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof or any addition to any house or building if the building line for such street has been disapproved by the Corporation or before the expiration of the six weeks aforesaid without their approval nor beyond or

in front of the building line approved or prescribed by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings. A.D. 1925.

(4) The provisions of section 3 (Buildings not to be brought forward) of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been approved or prescribed by the Corporation.

(5) In the event of the Corporation requiring as a condition for their approval of any such plan the setting back of the building line shewn on the plan to a greater distance from the centre of a new street than one-half of the width of the street and ten feet in addition or in the case of a street already formed to a greater distance from the centre of the street than the line at which buildings could be erected having regard to the provisions of the Public Health (Buildings in Streets) Act 1888 the Corporation shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(6) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

(7) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

99.—(1) Whenever application shall be made to the Corporation to approve the laying out of or notice shall be given to the Corporation of intention to lay out a new street the Corporation may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Corporation with plans and particulars showing the general scheme (if any) for the development or laying out of such estate or lands and in such case the date of the making of application or of the giving of notice as aforesaid shall for the

Develop-
ment
scheme in
connection
with new
streets.

A.D. 1925.
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purposes of any enactments or provisions in force for the time being with respect to the laying out of new streets be deemed to be the date on which plans and particulars required as aforesaid shall be so furnished.

(2) In this section the expression “lay out a new street” includes the formation of a new street or the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street.

Appeal to
court of
summary
jurisdiction.

100.—(1) Any person deeming himself aggrieved by any requirement of or by the Corporation under any of the last two preceding sections of this Act may within fourteen days from the date of such requirement appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(2) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

Adjustment
of bound-
aries.

101.—(1) For the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which plans for any new street (including in that expression the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) are submitted to the Corporation for approval the Corporation may require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land and the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands as may be necessary or convenient for such purposes and the provision to be so made and the terms and conditions upon which such provision is to be made shall failing agreement between the Corporation and the respective persons interested in such estates or lands be determined on the application of the Corporation or any such person by an arbitrator to be appointed by the Minister of Health and the Corporation may for securing the execution of any such purposes agree to pay and may and shall pay to any such person or persons such sums as may be agreed upon or in default of agreement be

determined by arbitration as aforesaid. Provided that the payment of money by any such person shall not be made a term or condition of any award made under this section otherwise than with his consent. A.D. 1925;
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(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands or the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as the award shall otherwise provide be borne and paid by the Corporation.

(3) Any lands or moneys received by any person in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provisions of this section shall be held by such person subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the lands exchanged therefor. Where any such covenants restrictions or conditions shall in any case be agreed to be inapplicable or be determined by the arbitrator to be inapplicable the same shall be indicated in any agreement or award made under the provisions of this section.

(4) For the purpose of the adjustment or alteration of the boundaries of any such estate or lands as aforesaid the Corporation may themselves purchase any land and may sell or lease the land so purchased in whole or in part at such time or times at such price or prices and on such conditions as they may think fit or may appropriate the same for any public purpose approved by the Minister of Health and until such sale or appropriation may occupy manage or let the same or any part thereof in such manner as the Corporation may think reasonable.

102.—(1) When a road footpath or way is about to become a new street within the meaning of the Public Health Acts but the land on only one side of such road footpath or way has been or is in course of being built on the Corporation may in any case in which they Widening roads when only one side is built upon.

A.D. 1925. would be empowered to require the owner of the land built on or in course of being built on to widen such road footpath or way to a width prescribed by the byelaws in force in the city require such owner to widen such road footpath or way so as to give a width not less than one-half of such prescribed width from the old centre line of such road footpath or way to the boundary thereof adjoining such land.

(2) If and when the land on the opposite side of such road footpath or way shall be in course of being built on the owner of such land shall complete the widening of such road footpath or way so as to comply in all respects with the byelaws of the Corporation Provided that he shall not under this subsection be required to pull down any building erected before the passing of this Act.

Power to
determine
width of
carriage-
ways and
footways.

103. The Corporation may if they think fit in any case vary the relative widths of the carriageway and footway or footways in any street in the city repairable by the inhabitants at large Provided that twenty-one days before commencing any work under this section which will materially reduce the width of any carriageway or footway the Corporation shall send notice of the proposed work to the Minister of Transport.

Power to
license
bridges over
streets.

104.—(1) The Corporation may grant to the owner or with the consent of the owner to the lessee or occupier of any premises abutting upon any street repairable by the inhabitants at large or any public highway a licence to construct and use a way (exclusive or otherwise) for himself his servants and agents at all times with or without trucks by means of a bridge over such street or highway for such term as shall be co-extensive with or less than the interest of such owner lessee or occupier in the premises in respect of which such licence shall be given on such terms and with under and subject to such covenants conditions and agreements as to the Corporation may seem fit Provided that—

(a) No fine rent or other sum of money (except a reasonable sum in respect of legal or other expenses incurred) shall be payable for or in respect of such licence;

A.D. 1925.

- (b) Any licence given under this section shall not in any way interfere with the convenience of persons using such street or highway or affect the rights of the owners of the property adjoining and up to the line of the street or highway;
- (c) It shall be a condition of every such licence that the licensee shall at the request of the Corporation and at his own expense remove or alter such bridge in such manner as the Corporation require in the event of their considering such removal or alteration necessary or desirable in connection with the carrying out of improvements to such street or highway at any time and the decision of the Corporation that such removal or alteration is necessary or desirable shall be final and conclusive;
- (d) In the event of the construction removal or alteration of any such bridge involving the alteration of a telegraphic line of the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to such alteration and any such bridge shall for the purposes of the placing or maintenance of over-ground telegraphic lines under the powers conferred by the Telegraph Acts 1863 to 1924 be deemed part of the street or road which it crosses.

(2) If any person shall construct a bridge over any such street or highway without such licence or shall construct or use the same otherwise than in accordance with the terms and conditions of the licence or shall fail to remove or alter the same when required so to do under the provisions of this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

(3) In this section the expression "the owner" shall include the Corporation where they are the owners of any such premises as are mentioned in subsection (1) hereof.

105.—(1) Before placing or erecting any hoarding or fence at or within a distance of ten yards from the corner of any street the person proposing to place or erect such hoarding or fence shall give notice of his

As to erection of hoardings &c. at street corners.

A.D. 1925. intention so to do to the Corporation and such notice shall be accompanied by plans and particulars of the hoarding or fence proposed to be so placed or erected.

(2) If the placing or erection of such hoarding or fence would constitute a danger to the traffic in the streets of the city upon adjoining or near to which the same is proposed to be placed or erected by obstructing the view of any foot passenger or the driver of any vehicle in a street of vehicular or pedestrian traffic the Corporation may within one month of the receipt of the said notice prohibit such placing or erection or may allow the same subject to such conditions or modifications of the said plans and particulars as they may think fit. If within one month of the receipt of the said notice the Corporation shall not have prohibited such placing or erection or allowed the same subject to a condition or to a modification of such plans or particulars they shall be deemed to have allowed such placing or erection.

(3) Any person who places or erects any hoarding or fence in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and the Corporation may remove the hoarding or fence so placed or erected and may recover the expense incurred by them in so doing from such person.

(4) (a) Any person deeming himself aggrieved by any prohibition or by the withholding of any approval of or by the Corporation under this section may within one month from the date of such prohibition or refusal of approval appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(b) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

Height of
fences and
hedges at
street
corners.

106.—(1) For the purpose of facilitating traffic by removing obstructions to view the Corporation may give notice to the owner of any land situate at or within a distance of ten yards from the corner of any street or at or near any bend in any street prescribing the height of fences hoardings boundary walls hedges trees and shrubs at such corner or within such distance from

the corner or bend as may be prescribed in the notice and thereupon the following provisions shall have effect :— A.D. 1925.

(a) Unless such notice is withdrawn by the Corporation no person shall erect a fence hoarding or wall or permit a hedge tree or shrub to grow at a greater height than that prescribed contrary to the requirements of the notice ;

(b) If required by the Corporation the owner of such land shall reduce the height of any fence hoarding wall hedge tree or shrub which exceeds that prescribed by the notice to a height not exceeding that so prescribed.

(2) Any person who contravenes the provisions of paragraph (a) of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may reduce the height of such fence hoarding wall hedge tree or shrub to the height prescribed by them and the expense incurred by the Corporation shall be repaid to them by the owner of the land.

(3) If any person for the period of one month after the service of a notice upon him by the Corporation of a requirement under paragraph (b) of subsection (1) of this section fails to comply therewith the Corporation may themselves carry out the requisition of their notice.

(4) The Corporation shall make compensation to the owner or other persons interested in any land for any loss or damage which he or they may sustain in consequence of the giving of any notice under this section but such compensation shall not include the expenses incurred by the Corporation and to be repaid to them under subsection (2) of this section and no compensation shall be paid a second time in consequence of the growth of any hedge tree or shrub above the height prescribed in the notice The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

(5) Any person aggrieved by any notice given by the Corporation under this section may appeal to a court of summary jurisdiction within one month after

A.D. 1925. the service of such notice provided he gives written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. Notice of the right to appeal shall be endorsed on every notice given by the Corporation under this section.

(6) The owner of the land shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any notice of the Corporation under this section.

Direction
signs.

107.—(1) The Corporation may cause to be put up or painted on a conspicuous part of any house building or place at or near to the corner of any street signs indicating the direction or the distance to towns railway stations public buildings and other places of a public character.

(2) Before putting up or painting a sign on a house building or place the Corporation shall give notice thereof to the owner of such house building or place and such owner if aggrieved by such notice may appeal to a court of summary jurisdiction within one month after the service of such notice provided he gives written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

Notice of the right to appeal shall be endorsed on every notice given by the Corporation under this section.

(3) Any person who shall wilfully and without the consent of the Corporation obliterate deface obscure remove or alter any such sign shall be liable to a penalty not exceeding forty shillings and the Corporation may recover the expenses of replacement and making good from such person.

Meaning of
"corner of
any street."

108. For the purposes of the sections of this Act of which the marginal notes are respectively "Corporation may fix line of existing streets" "As to erection of hoardings &c. at street corners" "Height of fences and hedges at street corners" and "Direction signs" the corner of any street or road shall be deemed to be the point at which the frontage or boundary line of that street or road (if necessary continued in a straight line) intersects the frontage or boundary line of any other street or road (if necessary similarly continued).

109.—(1) It shall not be lawful for any person to fix or place any overhead rail beam pipe cable wire or other similar apparatus over across or along any street without the consent of the Corporation which consent the Corporation may give Such consent shall be in writing under the hand of the town clerk and may contain such reasonable terms and conditions as the Corporation think fit.

A.D. 1925.

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Restriction
on placing
rails beams
&c. over
streets.

(2) Any person acting in contravention of the provisions of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) Nothing in this section shall extend to—

(a) Any works of any undertakers within the meaning of the Electric Lighting Act 1882 to which the provisions of that Act apply;

(b) Any apparatus belonging to the Postmaster-General;

(c) Any apparatus lawfully fixed and placed for telegraphic telephonic (other than wireless telegraphic and telephonic) purposes or for railway signalling purposes or for railway working by electricity.

110.—(1) If the Corporation shall by resolution determine that any banner streamer sign or lettering suspended across or hung over any street for the purposes of advertisement or announcement is a nuisance or objectionable by reason of its size construction or situation or an injury to the amenities of the city they may by notice in writing require the owner of or person responsible for the suspension or hanging of such banner streamer sign or lettering to remove the same within such period not being less than seven days as may be specified in the notice.

Banners and
signs over
streets.

(2) Any person neglecting or refusing to comply with the requirement of any such notice and any person who shall have removed any such banner streamer sign or lettering as is referred to in any such notice (whether the removal be effected before or after the receipt of the notice) and shall after such removal suspend or hang the same or any similar banner streamer sign or lettering without the permission in writing of the Corporation or

A.D. 1925 without complying with any conditions attaching to any such permission shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings.

(3) For a period of two years from the passing of this Act the foregoing provisions of this section shall not apply to any such banner streamer sign or lettering as is referred to in subsection (1) hereof which was in use on the fifteenth day of November nineteen hundred and twenty-four.

(4) The withholding of any permission by the Corporation under this section shall be deemed to be the withholding of a consent within the meaning of the section of this Act of which the marginal note is "As to appeal."

Prevention
and removal
of projec-
tions over
streets.

111. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Corporation may determine to be dangerous or an obstruction to the safe or convenient use of any street.

No building
allowed
until street
defined.

112.—(1) No person except with the consent of the Corporation shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Forecourts
to be fenced
off from
streets.

113.—(1) Whenever any person erecting any building shall be desirous of leaving an opening which may be a source of danger to the public or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Corporation be well and sufficiently fenced off from the footpath or street.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

114.—(1) The Corporation may provide and maintain orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper and the storage of sand grit or shingle in upon or under the streets of such dimensions and in such positions as the Corporation may from time to time determine.

A.D. 1925.

Street
orderly bins.

(2) Provided that the Corporation shall not place or maintain any bin or receptacle in such a position as to interfere with or render less convenient the access to or exit from any station or depôt of a railway company nor except with the consent in writing of that company on any bridge carrying any street or road over the railway of such company.

115. Every person who negligently or wilfully breaks throws down or otherwise damages any public lamp or lamp-post or orderly bin or other receptacle for the collection and temporary deposit of street refuse and waste paper or the storage of sand grit or shingle shall make full compensation to the Corporation for the damage done and the amount of such compensation to an amount not exceeding five pounds shall be recoverable summarily as a civil debt.

Compensa-
tion for
injuring
lamps &c.

116.—(1) From and after the passing of this Act it shall not be lawful for the owner or occupier of any property to construct in any pavement forming part of any street in the city any work for the admission of light through such pavement to any room or premises situate under or adjoining the same (in this section referred to as "pavement lights") without the consent in writing of the Corporation.

As to pave-
ment lights.
Section
116
1925

(2) In giving their consent to the construction of any pavement lights the Corporation may attach thereto such terms and conditions as they may think fit.

(3) Any agreements entered into by the Corporation with any person prior to the passing of this Act which would have been valid under the provisions of this section if made after the passing thereof are hereby confirmed.

117.—(1) The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon any private street communicating with any public street shall so fence off channel or embank their lands as to prevent soil sand clay cinders or other like substances from such lands from falling

For pre-
venting soil
&c. from
being
washed into
streets.

A.D. 1925. upon or being washed or carried into any public street or sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully or cause the houses in such street to be flooded.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) For the purpose of this section "public street" means so much of a street repairable by the inhabitants at large as is sewered and "private street" means a street not so repairable.

(4) Provided that—

(a) Such owner or occupier shall not be responsible for any soil sand clay cinders or other substances from land other than his own although such soil sand clay cinders or other substances may have passed over the land of such owner or occupier ;

(b) This section shall not apply to any land of a bonâ fide agricultural character or to any woodland.

Width of
streets in
certain
cases.

118.—(1) Whenever application shall be made to the Corporation to approve the formation on any estate or lands of a new street (including in that expression the widening of an existing street so as to form a new street) which in the opinion of the Corporation will form a main thoroughfare or a continuation of a main thoroughfare or means of communication between main thoroughfares in the city or the continuation of a main approach or means of communication between main approaches to the city it shall be lawful for the Corporation to require that the new street shall be formed of or widened to such a width not exceeding fifty feet as they shall determine.

(2) Nothing contained in this section shall require an owner to incur any greater expense in the execution of any street works than he would have been required to incur if the new street had been of no greater width than the width required for such street under any byelaw for the time being in force within the city and any additional expense incurred in the execution of street works by reason of the new street being of such greater width shall be borne by the Corporation.

(3) The Corporation shall determine in any case what proportion of the width of any such new street shall be laid out as carriageway and as footway or footways respectively and any such new street shall be formed accordingly. A.D. 1925.
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119. The power of the Corporation to make byelaws with respect to new streets under section 157 of the Public Health Act 1875 shall extend to enable them to require intersecting streets in connection with the laying out of new streets at such intervals as the byelaws may determine. For the purposes of this section "intersecting street" means a side or cross street forming a junction with another street. Byelaws as to intersecting streets.

120. Where premises abutting upon any street are so situate that the surface water from such premises flows on to or over the footpath of such street the owner of such premises shall within fourteen days after service of a notice by the Corporation for that purpose execute such works as may be reasonably practicable to prevent the water from such premises from flowing over the footpath and in default of compliance with such notice within the period aforesaid such owner shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. For preventing water flowing on footpath.

121.—(1) The owner or owners of any premises the water from which is carried away by any covered or uncovered drain or channel crossing the footpath in any street dedicated to the public use but not repairable by the inhabitants at large shall keep such drain or channel and all gullies traps grates and appurtenances thereto belonging unobstructed and in good repair and any person who after reasonable notice in writing from the Corporation shall fail to comply with the provisions of this section shall be liable to a penalty not exceeding forty shillings and the Corporation may themselves if they think fit do the work and recover the expense incurred by them in that behalf from such owner or owners. Surface water channels to be kept in good repair.

(2) The provisions of this section shall apply to any covered channel crossing any new means of access provided by any person pursuant to the provisions of section 18 (Crossing for cattle &c. over footways) of the Public Health Acts Amendment Act 1907.

A.D. 1925.

Courts to be
flagged and
drained.

122.—(1) The owner or owners of premises the occupiers of which use in common any court or yard or passage (not being a highway repairable by the inhabitants at large) or any part of such court yard or passage shall if so required by the Corporation flag asphalt concrete or pave such court yard or passage or any part thereof and make a drain through or along the same and provide gullies and grids in suitable positions and at proper levels and keep such flagging asphalt concrete or paving and drain gullies and grids in good repair.

(2) If such owner or owners shall for two months after notice in writing from the Corporation fail in any respect to comply with any requirements of the Corporation under the provisions of subsection (1) of this section he or they shall be liable to a penalty not exceeding forty shillings and the Corporation may themselves if they think fit do the work and recover the expenses incurred by them in that behalf from such owner or owners.

As to erection of retaining walls.

123.—(1) Before any person shall erect on any land a retaining wall of greater height than six feet abutting on or adjacent to any street or road he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as approved by the Corporation.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Adjustment of boundaries of streets.

124.—(1) The Corporation may enter into and carry into effect agreements with any owner of lands adjoining any street for the adjustment of the boundary of any such street and for such purpose may give up to such owner land including land forming part of the street in exchange for other land For the purposes of this section the Corporation shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey the same in accordance with an agreement entered into in pursuance of this section.

A.D. 1925,
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(2) Provided that no such agreement shall be entered into until the expiration of one month from the date on which notice of the proposals has been given by advertisement in some local newspaper circulating in the city and if during such period of one month any four inhabitant householders of the city by themselves or their agent give notice to the Corporation of their intention to appeal under the provisions of this section the Corporation shall not proceed with their proposals (unless the notice of appeal is withdrawn) pending a decision on or a withdrawal of the appeal. The advertisement in the newspaper shall include notice of this proviso.

(3) Any four inhabitant householders of the city may appeal to a court of summary jurisdiction against any proposal of the Corporation as to an adjustment of the boundaries of a street under this section within the period mentioned in subsection (2) of this section.

(4) On any such appeal the court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(5) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

125.—(1) The provisions of the Lands Clauses Consolidation Act 1845 with respect to the purchase-money or compensation coming to parties having limited interests or prevented from treating or not making title shall apply to any purchase-money or compensation payable under the provisions of this Part of this Act to any such party.

Application
of certain
provisions
of Lands
Clauses
Acts.

(2) The provisions of the Lands Clauses Consolidation Act 1845 with respect to the entry upon lands by the promoters of the undertaking (except section 92 of the said Act) shall apply with any necessary modifications to any lands which any person may hereafter lawfully be required to sell or exchange under or in pursuance of the foregoing provisions of this Part of this Act.

(3) For the purposes of this Part of this Act the expression "the promoters of the undertaking" where used in the said Act of 1845 shall be deemed to mean the Corporation.

A.D. 1925.

Erection of
buildings to
greater
height than
adjoining
buildings.

126.—(1) In case any building is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the ridge or parapet of such last-mentioned building or the top of the flues and chimneys thereof whichever may be the higher.

(2) The owner of any building or other the person authorising the erection or raising of any building in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Byelaws as
to materials
and con-
struction of
buildings
&c.

127.—(1) The Corporation may make byelaws with respect to the following matters (namely):—

(a) The materials with which new buildings shall be constructed and the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings or be newly set or reset in existing buildings and the thickness and construction of walls of all ovens and furnaces wholly or partially built after the commencement of this Act;

(b) The uniting of buildings and the making and stopping up of openings in party walls of buildings and the provision of fire-resisting doors in connection therewith and as to the occupation of buildings when united;

(c) The testing of drains of new buildings;

(d) For securing that waterclosets constructed after the making of such byelaws shall be so constructed and supplied with water that they can be adequately flushed by mechanical means and the provision to be made for securing the protection of the same from frost.

(2) The plans and sections deposited with the Corporation or the surveyor in pursuance of any enactment for the time being in force in the city shall be drawn on tracing cloth or other material approved by the Corporation.

128.—(1) (a) For the purpose of assisting the Corporation in the exercise of the powers conferred upon them by this section a standing advisory committee of three members (in this section called “the advisory committee”) shall be constituted for the city of whom one member shall be a Fellow of the Royal Institute of British Architects to be nominated by the President of the said Institute one member shall be a Fellow of the Surveyors’ Institution to be nominated by the President of the said Institution and one member shall be a justice of the peace to be nominated by the council:

A.D. 1925.
Further
power to
make bye-
laws as to
new build-
ings &c.

Provided that a member of the council shall be disqualified from being a member of the advisory committee.

(b) Subject as aforesaid the members of the advisory committee shall be appointed by the council and any vacancy occurring on the advisory committee shall be filled by the council on the nomination of the person or body by whom the member causing the vacancy was nominated. The Corporation shall pay the members of the advisory committee such reasonable fees and expenses as the Corporation think fit.

(c) The advisory committee may determine any matter referred to them in such manner as they in their discretion shall think fit and they shall within one month after the receipt of the reference give their decision thereon and any such decision shall have effect as if it were an approval or disapproval (as the case may be) of the Corporation and in the latter case shall contain a statement of the grounds on which the decision is arrived at.

(d) Every such decision shall forthwith be reported to the Corporation and upon receipt thereof by the Corporation a copy shall forthwith be sent by the Corporation to the person or persons affected thereby.

(e) In the event of a division of opinion among the members of the advisory committee upon reference to them the matter shall be decided by a majority of votes of the members of the committee but save as aforesaid the advisory committee shall act by their whole number.

(f) The costs of any reference to the advisory committee shall be paid as the advisory committee may

A.D. 1925.

direct Where such costs or part thereof shall be payable to any person other than the Corporation they shall be recoverable by that person and where such costs or part thereof shall be payable to the Corporation they shall be recoverable by the Corporation and in both cases summarily as a civil debt.

(2) Section 157 (Power to make byelaws respecting new buildings &c.) of the Public Health Act 1875 is hereby extended so as to enable the Corporation to make byelaws providing in such manner as they may think necessary for the deposit by a person intending to construct—

- (a) a building within the city; or
- (b) an addition to an existing building within the city (including the reconstruction of an existing addition to any such building); or
- (c) a chimney exceeding forty-five feet from the ground in height;

of drawings of the elevations and particulars as to the materials of such building or addition or chimney (in this section called collectively "elevations").

(3) Where elevations are required to be submitted to the Corporation by a byelaw made under the said section 157 as extended by this section the Corporation shall within one month after the delivery of the elevations—

- (a) approve the elevations; or
- (b) if they shall consider that having regard to the general character of the buildings in the city or of the buildings proposed therein to be erected or of the building upon or to which the addition is to be constructed or reconstructed the building or addition or chimney to which the elevations relate would seriously disfigure the city whether by reason of the height of the building or addition or chimney or its design or the materials proposed to be used in its construction refer the question of the approval of the elevations to the advisory committee for their decision thereon and the reference shall be accompanied by a statement of the grounds on which the proposed building or addition or chimney is considered to be objectionable.

(4) The Corporation shall forthwith send notice in writing to the person by whom the elevations were deposited of their approval thereof or if the building or addition or chimney is considered to be objectionable on any of the grounds mentioned in this section of the reference of the elevations to the advisory committee and the notice shall be accompanied by a statement of the objections to the building or addition or chimney. A.D. 1925.

(5) The person by whom the elevations were deposited shall be entitled to send to the advisory committee a statement of his answers to the objections of the Corporation and if he does so he shall at the same time send a copy thereof to the town clerk.

(6) Where the elevations of a building or addition or chimney have been disapproved under this section it shall not be lawful to erect the building or addition or chimney until the elevations thereof have been approved by the Corporation and any person who acts in contravention of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds.

(7) The provisions of paragraph (b) of subsection (2) of this section shall not apply to a wooden hoarding which is used solely for the purposes of bill posting.

129. Section 23 of the Public Health Acts Amendment Act 1890 in its application to the city shall have effect as if the words "space about buildings" had been inserted therein before the words "drainage of buildings" in subsection (2) of that section. Provided that no byelaw with respect to the space about buildings shall be made so as to affect buildings erected before the times mentioned in section 157 of the Public Health Act 1875 unless such buildings or the curtilage thereof shall be altered after the making of such byelaw. As to restriction of air space.

130. The power given by subsection (4) of section 23 of the Public Health Acts Amendment Act 1890 to make byelaws with respect to the alteration of buildings shall be extended so as to authorise byelaws with respect to the alteration of buildings whether or not erected in accordance with byelaws and with respect to the submission in respect of the alteration of such plans and sections as can be required in relation to the erection of a new building. Byelaws as to alterations to old buildings.

A.D. 1925.

Food
storage
accommo-
dation to
be provided.

131.—(1) Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated food storage accommodation and any owner who shall occupy or allow to be occupied any dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(2) (a) Every dwelling-house erected before the passing of this Act shall where reasonably practicable be provided with sufficient and properly ventilated food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(b) Any owner aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(c) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

(d) If in any case the owner alleges that the occupier of any dwelling-house in respect of which any work is required to be executed under the provisions of this subsection ought to bear or contribute to the expenses of the execution of such work he may apply to a court of summary jurisdiction and such court shall have power to make such order as the court may think fit.

Restrictions
on adver-
tisement
hoardings
&c.

132.—(1) For the purpose of preserving the amenities of the city it is hereby enacted that it shall not be lawful to erect any hoarding or similar structure in or abutting on or adjoining any street to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such terms and conditions as

to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding as the Corporation may determine. A.D. 1925.

(2) The owner or other person using any hoarding wall or similar structure for advertising purposes whether erected before or after the commencement of this Act shall at all times keep and maintain the same in proper and safe repair and condition and if any papers affixed for advertising purposes to such hoarding wall or other structure fall away become detached or are stripped off shall forthwith remove and clear away such papers.

(3) It shall not be lawful to erect or place illuminated advertisements which flash or are at intervals extinguished and lit or re-lit on any building or structure which is situate in or abutting on or adjoining any street without the consent of the Corporation and such consent may be given subject to such terms and conditions as the Corporation may determine.

(4) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any person aggrieved by the refusal of the Corporation to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction within seven days after service upon him of notice of such refusal provided he gives twenty-four hours' written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

133.—(1) Every person intending to erect any stand or structure for affording sitting or standing accommodation for a number of persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Corporation a plan and section thereof and shall comply with such regulations as the Corporation may prescribe for securing the stability of such stand or structure and for securing the safety of persons to be accommodated thereon. Restriction on erection of temporary stands &c.

(2) Any person acting in contravention of this section or offending against any such regulation shall

A.D. 1925. be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Means of
escape from
buildings in
case of fire.

134.—(1) Every new building which exceeds two storeys in height and in which the upper surface of the floor of any upper storey is above twenty feet from the street level and which is used or intended to be used as flats or as a tavern hotel hospital boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant shall be provided on each of the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in case of fire for the persons dwelling sleeping or employed in each such upper storey or resorting thereto as may be reasonably required by the Corporation under the circumstances of the case and the owner shall not permit such building to be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) The Corporation in the case of every existing building exceeding two storeys in height and used or intended to be used as a tavern hotel hospital boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant if in their opinion such building is not provided with proper and sufficient means of escape from each storey the upper surface of the floor whereof is above twenty feet from the street level in case of fire for the persons dwelling or sleeping therein may at any time serve on the owner of such building a notice requiring him within a reasonable time to be specified in such notice to provide such means of escape as in the circumstances of the case can reasonably be required and the owner shall thereupon take the necessary steps to provide the means of escape so required.

(3) Where the means of escape in case of fire provided in connection with any such building as aforesaid shall become inadequate in consequence of any alteration in the circumstances or conditions affecting such building the owner of the building shall upon the requirement of the Corporation make such alterations in the said

A.D. 1925.

means of escape as may be reasonably necessary and shall if so required by the Corporation provide further or other means of escape.

(4) (a) Any person aggrieved by any requirement of the Corporation under subsection (2) or subsection (3) of this section may appeal to a court of summary jurisdiction within seven days after the receipt of the requirement provided he give twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(b) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under either of the said subsections.

(5) The owner of the building shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any requirement of the Corporation under this section.

(6) If the owner alleges that the occupier of the building ought to bear or contribute to the expenses of complying with any requirement of the Corporation under this section he may apply to the county court and thereupon the county court after hearing the occupier may make such order as appears to the court just and equitable under all the circumstances of the case.

(7) The means of escape in case of fire provided in connection with any such building as aforesaid shall not be altered without the consent in writing of the Corporation and shall at all times be maintained and kept by the occupier of the building in good and efficient condition and free from obstruction.

(8) This section shall not apply to premises to which section 14 (Provision of means of escape in case of fire) and section 15 (Byelaws for means of escape from fire) of the Factory and Workshop Act 1901 or any enactment amending those sections apply.

(9) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(10) Where an existing building is newly converted after the passing of this Act into flats it shall be deemed to be a new building within the meaning of this section.

A.D. 1925.

Dilapidated
and neg-
lected
buildings.

135.—(1) Where an unoccupied building is ruinous or so far dilapidated as thereby to have become and to be unfit for use or occupation or is from neglect or otherwise in a structural condition prejudicial to the property in or the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Corporation may order the owner at his option either to take down or to repair such building (in this section referred to as a “neglected structure”) or any part thereof or otherwise to put the same or any part thereof into a state of repair and good condition to the satisfaction of the Corporation within a reasonable time to be fixed by the order and may also make an order for the costs incurred up to the time of the hearing.

(2) If the order is not obeyed the Corporation may with all convenient speed enter upon the neglected structure and execute the order.

(3) Where the order directs the taking down of a neglected structure or any part thereof the Corporation in executing the order may remove the materials to a convenient place and (unless the expenses of the Corporation under this section in relation to such structure are paid to them within fourteen days after such removal) sell the same if and as they in their discretion think fit.

(4) All expenses incurred by the Corporation under this section in relation to a neglected structure may be deducted by the Corporation out of the proceeds of the sale and the surplus (if any) shall be paid by the Corporation on demand to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Corporation or if the proceeds of the sale are insufficient to defray the said expenses the Corporation may recover such expenses or such insufficiency from the owner of the structure together with all costs in respect thereof but without prejudice to his right to recover the same from any lessee or other person liable to the expenses of repairs.

As to dan-
gerous
buildings.

136.—(1) In any case where a building shall have been reported to the Corporation as dangerous to the inmates thereof or persons working therein or in the case of any building which may appear to the Corporation on the report of the surveyor to be dangerous to such

A.D. 1925.

inmates or persons the Corporation may order a complete external and internal inspection and examination of any such building to be made by a competent person and for that purpose such person may on giving not less than twenty-four hours' notice to the occupier of the building and on producing written authority from the town clerk enter at any hour of the day between nine o'clock in the morning and six o'clock in the afternoon with such other persons as he may deem necessary upon such building and examine and inspect the same.

(2) If upon such examination and inspection it shall appear necessary that any works should be executed or alterations made for the purpose of putting such premises into a safe and proper condition for the purposes for which the same are used the Corporation in respect of such building and the works to be carried out therein shall have and may exercise all or any of the powers vested in the Corporation with respect to dangerous structures in the city.

137.—(1) The contractor or builder engaged in or upon the erection of a new building or the construction or reconstruction of any works shall where practicable provide to the reasonable satisfaction of the Corporation and until the completion of any such erection construction or reconstruction such water or other closets and urinals in or in connection with such building or works as may be sufficient for the accommodation of the workmen employed.

Sanitary conveniences for workmen engaged on buildings.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

138.—(1) The owner of any dwelling-house or tenement in the city which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house or tenement shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings unless the dwelling-house or tenement was erected before the commencement of this Act and such supply is not available.

As to houses without water supply.

(2) Provided that the owner of any dwelling-house erected before the passing of this Act shall not be liable to the penalties provided by subsection (1) of this section

A.D. 1925. — unless the Corporation shall have given to such owner one month's notice in writing requiring him to provide such dwelling-house with a proper and sufficient water supply within such dwelling-house.

(3) Section 62 (Local authority may require houses to be supplied with water in certain cases) of the Public Health Act 1875 shall be read and have effect as if the words "or the medical officer of health" were inserted therein after the words "the surveyor."

Closet accommodation in houses occupied by more than one family.

139.—(1) The power of making and enforcing byelaws under section 90 (Local Government Board may empower local authority to make byelaws as to lodging-houses) of the Public Health Act 1875 shall be deemed to include the making of byelaws for requiring the provision in every building constructed or reconstructed by way of conversion so as to comprise two or more separate or self-contained flats or tenements of closet accommodation adequate for the use of and readily accessible to the persons occupying each such flat or tenement and where necessary for securing separate accommodation as aforesaid for every part of such building which is occupied as a separate dwelling.

(2) The provisions of subsections (1) (2) and (3) of section 7 of the Housing Act 1925 shall apply with any necessary modifications as if the same were set out in this section.

Prohibiting entry of petroleum spirit &c. into sewers.

140.—(1) Every person who wilfully or negligently turns or permits to enter into any sewer of the Corporation or any drain communicating therewith any petroleum spirit or carbide of calcium from any workshop motor garage or other like premises shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds.

(2) In this section the expression "petroleum spirit" means such crude petroleum oil made from petroleum coal shale peat or other bituminous substances and other products of petroleum and mixtures containing petroleum as when tested in manner set forth in Schedule I. to the Petroleum Act 1879 gives off an inflammable vapour at a temperature of less than seventy-three degrees of Fahrenheit's thermometer.

Soil pipes to be ventilated.

141.—(1) The soil pipe of any watercloset shall be properly ventilated and if the same be within a house

A.D. 1925.

or building it shall be carried up therefrom by means of a pipe to a height of not less than two feet above the eaves of the house or building and of any adjoining house or building or (subject to the provisions of section 37 (Water or stack pipe not to be used as ventilating shaft) of the Public Health Acts Amendment Act 1907) by such other method as the Corporation shall direct.

(2) Any owner or occupier of such house or building who shall neglect or fail to comply with any requirement of the Corporation under this section for a period of twenty-eight days after notice in writing of such requirement and the mode in which the same is to be complied with shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

142.—(1) If it appears to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners subject to a right of appeal under subsection (4) of this section. Combined drains.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Corporation shall not except by agreement with the owners exercise the powers conferred by this section in respect of any house for the drainage of which plans shall have been previously approved by them.

(4) Any person deeming himself aggrieved by the amount of any costs and expenses proposed to be recovered by the Corporation under this section or the amount to be borne and paid by him may appeal to a court of summary jurisdiction provided that such appeal be

A.D. 1925. made within two months from the date of the service of notice by the Corporation intimating the amount payable or their apportionment thereof. On any such appeal the court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

As to houses connected with single private drain.

143.—(1) Where two or more houses or premises are connected with a single private drain which conveys their drainage into a public sewer or into a cesspool or other receptacle for drainage the Corporation shall have all the powers conferred by section 41 of the Public Health Act 1875 and the Corporation may recover any expenses incurred by them in executing any works under the powers conferred on them by that section from the owners of the houses in such proportions as shall be settled by the surveyor or (in case of dispute) by arbitration under the Public Health Act 1875 or by a court of summary jurisdiction and such expenses shall be recoverable summarily as a civil debt or the Corporation may declare them to be private improvement expenses and may recover them accordingly.

(2) Section 19 of the Public Health Acts Amendment Act 1890 shall cease to be in force within the city.

(3) For the purposes of this section the expression "drain" includes a drain used for the drainage of more than one building whether owned or occupied by the same person or not.

Power to require specially enlarged sewer in new street.

144. If in any street not repairable by the inhabitants at large the Corporation for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street or the lands draining thereto the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Corporation and the additional cost thereof as ascertained by the surveyor shall be paid by the Corporation.

Power to lay drains in private streets.

145. The Corporation may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter re-lay or renew in across or

along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation to be ascertained by and recovered before a court of summary jurisdiction. A.D. 1925.

146. Where any person has been convicted of causing any drain to be constructed in contravention of section 25 of the Public Health Act 1875 the court may in addition to imposing a penalty under that section order that the drain be laid or relaid or amended or re-made as the case may require in accordance with the provisions of that section and if such person shall not comply with the order within one month after the date thereof the Corporation may cause the drain in respect of which such conviction has been obtained to be laid relaid or amended or re-made as the case may require and may recover from such person the expense incurred by them in so doing. Power to reconstruct drain if laid in contravention of Public Health Act 1875.

147.—(1) In any case where it appears to the medical officer or sanitary inspector that any drain watercloset or soil pipe is stopped up or otherwise defective the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to remedy such defect and if such notice is not complied with within twenty-four hours from the service thereof the Corporation may carry out the work necessary to remedy such defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier. As to defective drains &c.

(2) Upon any proceedings under this section the court may inquire whether any requirements contained in any notice given under this section or work done by the Corporation was reasonable and whether the expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

148. If any drain (including any joint or combined drain) shall not be well and sufficiently maintained and kept in good repair to the satisfaction of the Corporation As to repair of private drains.

A.D. 1925. — it shall be lawful for the Corporation if in their opinion such drain can be sufficiently repaired at a cost not exceeding thirty pounds to cause the same to be repaired and the expenses of such repairs may be recovered by them from the owner or owners thereof in such proportions as the surveyor shall determine. Provided that where such expenses do not exceed twenty shillings the Corporation may remit the payment of the same by the owner or owners if they think fit.

Water-courses to be culverted in certain cases.

149.—(1) If any watercourse or ditch situate upon any land laid out for building or on which any such land abuts requires in the opinion of the Corporation to be wholly or partially filled up or covered over the Corporation may by notice in writing require the owner or owners of such lands to substitute for such watercourse or ditch a pipe drain or culvert with all necessary gullies pipes and means of conveying surface water thereinto. Provided that nothing in this section shall authorise the Corporation to require the filling up or covering over of any watercourse or ditch wholly or partly belonging to any person other than the owner of the land so laid out for building.

(2) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Streams not to be covered over obstructed or diverted except in accordance with plans.

150.—(1) It shall not be lawful to culvert cover over stop up obstruct or divert any stream or watercourse except in accordance with plans and sections to be submitted to and approved by the Corporation such approval not to be unreasonably withheld or delayed and any person acting in contravention of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Provided that—

(a) no requirement of the Corporation in relation to such plans and sections shall operate to compel any such owner to receive upon his land or to make provision for the passage of a greater quantity of water than he would have been obliged to receive or to permit to pass if this section had not been enacted;

(b) if with the consent of such owner the Corporation shall require him to make provision for the passage of a larger quantity of water than he is obliged to permit to pass at the time of the commencement of any work under this section any additional cost occasioned by such requirement shall be borne by the Corporation. A.D. 1925.

(2) If any difference shall arise between the Corporation and such owner as to the expediency or necessity of the works required by the Corporation to be executed under this section such difference shall be referred to arbitration and the provisions of the Arbitration Act 1889 shall apply thereto.

151. Nothing in this Part of this Act except the sections whereof the marginal notes are— Saving for railway companies.

- “ Lopping of trees overhanging highways ” ;
- “ Development scheme in connection with new streets ” ;
- “ Restriction on placing rails beams &c. over streets ” ;
- “ Prevention and removal of projections over streets ” ;
- “ Forecourts to be fenced off from streets ” ;
- “ For preventing soil &c. from being washed into streets ” ;
- “ For preventing water flowing on footpath ” ;
- “ Restrictions on advertisement hoardings &c. ” ;
- “ Sanitary conveniences for workmen engaged on buildings ” ;

shall extend or apply to any building (not being a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory powers or to any land held or acquired or which may hereafter be held or acquired by any such company with the authority of Parliament so long as any such building railway work or land is used or held by such company primarily for railway purposes.

152. For the further protection of the Bath Gas Light and Coke Company (in this section called “ the company ”) the following provisions shall notwithstanding For further protection of Bath

A.D. 1925.
—
Gas Light
and Coke
Company.

anything in this Part of this Act contained and unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say):—

(1) In this section “apparatus” means and includes all or any mains pipes syphons tubes fittings or other apparatus belonging to the company :

(2) The provisions of subsection (3) of the section of this Act of which the marginal note is “Corporation may fix line of existing streets” shall not extend to any excavation made by the company for the purposes of or in connection with their undertaking or to any obstruction caused by apparatus or in the process of laying such apparatus :

(3) (a) Wherever the Corporation shall in the exercise of the powers of the section of this Act of which the marginal note is “Power to determine width of carriageways and footways” add to the roadway any portion of the footway in which there shall be any apparatus the Corporation at their own expense shall alter the position of such apparatus to such a depth below the surface of the roadway or to such other position as may be reasonably required by the company or at the option of the Corporation shall provide in such position as may be reasonably approved by the company apparatus equally suitable in lieu thereof under the superintendence (if given) and to the reasonable satisfaction of the engineer of the company and in such manner as not to cause without the consent of the company any interruption in the continuous supply of gas through or by means of such apparatus and shall pay to the company the reasonable cost of and incidental to the cutting off of any such apparatus as is first referred to in this subsection from any other apparatus of the company and of and incidental to any other work or thing rendered necessary or expedient in consequence of the alteration of the position of any such apparatus ;

(b) The provisions of subsections (8) and (9) of the section of this Act of which the marginal

note is "For protection of Bath Gas Light and Coke Company" shall extend and apply in reference to the alteration of the position of apparatus or the provision of new apparatus under this subsection as though such alteration and provision were an authorised work;

A.D. 1925.

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(c) The provisions of subsection (10) of the section of this Act of which the marginal note is "For protection of Bath Gas Light and Coke Company" shall extend and apply to any difference which shall arise between the Corporation and the company or their respective engineers with respect to any matter under this subsection as if those provisions were with all necessary modifications re-enacted in this subsection :

- (4) No agreement shall be entered into under the section of this Act of which the marginal note is "Adjustment of boundaries of streets" with respect to any street or lands in which any apparatus is laid until the expiration of one month from the date on which notice in writing of the proposals has been given to the company and the company shall have the same right of appeal against any such proposals as is conferred by the said section on any four inhabitant householders of the city :
- (5) The provisions of the sections of this Act of which the marginal notes are respectively "Erection of buildings to greater height than adjoining buildings" and "Further power to make byelaws as to new buildings &c." shall not extend or apply to any building (not being a dwelling-house or showroom) work or chimney constructed by or belonging to the company in the exercise of their powers under any Act of Parliament or special order or to any lands held or acquired or which may hereafter be held or acquired by the company with the authority of Parliament or the Board of Trade so long as such building work chimney or land is used or held by the company primarily for the purposes of their undertaking.

A.D. 1925.

PART VIII.

INFECTIOUS DISEASE AND SANITARY MATTERS.

Power to
close Sun-
day schools
and exclude
children
from enter-
tainments.

153.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of infectious disease require the closing of any Sunday school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

Restriction
on attend-
ance of
children at
Sunday
schools and
places of
assembly
when infec-
tious disease
prevails.

154.—(1) No person over the age of sixteen years who has the custody charge or care of a child who is or has been attending any school or any part thereof which for the time being is closed by order of the Corporation or of the education committee of the council with the view of preventing the spread of infectious disease or of a child who is suffering from an infectious disease or who with the view of preventing the spread of infectious disease has been prohibited from attending school by the medical officer or any assistant school medical officer of the Corporation shall permit such child to attend any Sunday school or place of public entertainment or assembly in the city without having procured from the medical officer or any such assistant school medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings.

Extended
meaning of
“infectious
disease”

155.—(1) For the purposes of the foregoing provisions of this Part of this Act the expression “infectious disease” includes measles German measles whooping

cough chicken pox ringworm and influenza as well as infectious disease as defined by the section of this Act of which the marginal note is "Interpretation of terms." A.D. 1925.
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for certain purposes.

(2) For the purposes of section 126 of the Public Health Act 1875 as amended by section 62 of the Public Health Acts Amendment Act 1907 the expression "dangerous infectious disorder" includes infectious disease as defined by the section of this Act of which the marginal note is "Interpretation of terms" and also (in the case of exposure in covered buildings or public conveyances) measles and whooping cough.

156. If any person shall at the request of the Corporation or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Corporation may make compensation to him for any loss he may sustain by reason of such stoppage. Power to compensate persons for ceasing employment to prevent spread of disease.

157.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease. Penalty on withholding information from medical officer.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) For the purposes of this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

158.—(1) If the medical officer certifies in writing that any person is suffering from pulmonary tuberculosis and is in an infectious state and that by reason of the lodging or accommodation with which such person is provided being such that proper precautions to prevent the spread of infection cannot be taken or by reason of such precautions not being taken serious risk of infection is caused to other persons and that thorough inquiry and consideration have shown the necessity in the public interest for the compulsory isolation of the person the medical officer may make Removal of persons suffering from pulmonary tuberculosis to hospital.

A.D. 1925. — application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination by a registered medical practitioner to be nominated by them if they think fit may make an order for the removal of such person to a suitable hospital or place for the reception of the sick provided within the city or within a convenient distance of the city subject to the consent of the superintending body of such hospital or place and subject to the like consent for the retention and maintenance of such persons therein for such period not exceeding three months as may be determined by such order or such further period not exceeding three months as may be determined by any further order made under and in accordance with the provisions of this section.

(2) The medical officer shall give to the person so suffering or some person being in charge of the person so suffering three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) (i) Where—

(a) any person suffering as aforesaid is removed to any such hospital or place as aforesaid under an order made under this section; or

(b) any person resident in the city and suffering as aforesaid voluntarily goes for treatment to any hospital or place for the reception of the sick;

the Corporation may if they think fit and if satisfied that the necessities of the case so require make payments for or towards the maintenance of any relative of or person actually dependent on the person so suffering.

(ii) On the hearing of any application under this section the court shall take into consideration the amount necessary for such maintenance and shall not make an order unless they are satisfied that the Corporation will make a sufficient payment in any case in which it appears that a contribution is necessary for the support and maintenance of such relatives or dependents.

(4) An order under this section may be addressed to such constable or officer of the Corporation as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a fine not exceeding ten pounds. A.D. 1925.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper that such rescission order should be made. Such person or other person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

159.—(1) (a) Where the medical officer certifies that the cleansing and disinfecting of any building (including in that term any boat tent van or similar structure used for human habitation) or any part thereof would tend to prevent or check tuberculosis the town clerk shall give notice in writing to the owner or occupier of such building that the same or such part thereof will be cleansed and disinfected by and at the cost of the Corporation unless the owner or occupier of such building informs the Corporation within twenty-four hours from the receipt of the notice that he will cleanse and disinfect the building or the part thereof to the satisfaction of the medical officer within the time to be fixed in the notice. If within twenty-four hours from the receipt of such notice the owner or occupier of such building has not informed the Corporation as aforesaid or if having so informed the Corporation as aforesaid he fails to have the building or the part thereof cleansed and disinfected as aforesaid within the time fixed by the notice the building or the part thereof shall be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer: Disinfection in case of tuberculosis.

Provided that any such building or part thereof may without any such notice being given as aforesaid but with

A.D. 1925. — the consent of the owner or occupier be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer.

(b) For the purpose of carrying into effect the provisions of this subsection the Corporation may by any officer who shall be authorised in that behalf in writing under the hand of the town clerk and who shall produce his authority enter on any premises between the hours of ten o'clock in the forenoon and six o'clock in the afternoon.

(c) Every person who shall wilfully obstruct any duly authorised officer of the Corporation in carrying out the provisions of this subsection shall be liable to a penalty not exceeding forty shillings and if the offence is a continuing one to a daily penalty not exceeding twenty shillings.

(2) (a) The medical officer if generally empowered by the Corporation in that behalf may by notice in writing require the owner of any household or other articles books things bedding or clothing which have been exposed to the infection of tuberculosis of the lung or other forms of tuberculosis with discharges to cause such articles books things bedding or clothing to be delivered to an officer of the Corporation for removal for the purpose of disinfection and any person who fails to comply with such requirements shall be liable to a penalty not exceeding five pounds.

(b) Such articles books things bedding and clothing shall be disinfected by the Corporation and returned to the owners free of charge.

(3) If any person sustains any damage by reason of the exercise by the Corporation of any of the powers of this section in relation to any matter as to which he is not himself in default full compensation shall be made to such person by the Corporation and the amount of the compensation shall be recoverable in and in any case of dispute may be settled by a court of summary jurisdiction.

Prohibition
of blowing
or inflating
carcases.

160. It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within the city or to bring into the city any carcase or part of a carcase so blown or inflated and any person so blowing or inflating any carcase or any part of a carcase or bringing into the city or exposing or depositing for sale a carcase or any part thereof so blown or inflated shall be liable to a penalty not exceeding five pounds.

161.—(1) From and after the passing of this Act the following provisions shall apply to any room shop or other part of a building within the city in which any article whether solid or liquid intended or adapted for the food of man is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale :—

A.D. 1925.

Sanitary
regulations
for premises
used for
sale &c. of
food for
human con-
sumption.

- (a) No such room shop or other part of the building shall be used as a sleeping place;
- (b) No urinal watercloset earthcloset privy ashpit or other like sanitary convenience shall be within such room shop or other part of the building or shall communicate therewith except through the open air or through an intervening ventilated space;
- (c) No drain or pipe for carrying off faecal or sewage matter shall have any inlet or opening within such room shop or other part of the building;
- (d) Refuse or filth whether solid or liquid shall not be deposited or allowed to accumulate in any such room shop or other part of the building except so far as may be reasonably necessary for the proper carrying on of the trade or business;
- (e) Due cleanliness shall be observed in regard to such room shop or other part of the building and all articles apparatus and utensils therein and shall be observed by persons engaged in such room shop or other part of the building.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of the building wherein any of the conditions prohibited by this section exist or does or knowingly permits any act or thing therein in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings.

(3) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall be entitled at all reasonable times to enter into and inspect any premises on which he suspects that there is any contravention of the provisions of this section and any person refusing entry into or inspection

A.D. 1925. — of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

(4) The provisions of this section shall not apply to any factory within the meaning of the Factory and Workshop Act 1901.

Public notice to be given of foregoing provisions of this Part of Act.

162. Public notice of the effect of the foregoing provisions of this Part of this Act shall be given as soon as is reasonably practicable after the passing of this Act by advertisement in two successive weeks in a newspaper published or circulating in the city.

Provision of public slaughter-houses and prohibition of private slaughter-houses thereafter.

163.—(1) At any time after the passing of this Act the Corporation may—

(a) Acquire by agreement any premises within the city used for the purpose of slaughtering cattle (hereinafter referred to as a “slaughter-house”) and the interest or interests of any owner lessee or occupier of such premises;

(b) Agree with the owner lessee and occupier of any slaughter-house for the abolition of slaughtering therein on such terms and conditions as may be arranged between the parties.

(2) At any time after the expiration of three years from the passing of this Act and after the Corporation have provided an adequate slaughter-house in a convenient position (to the satisfaction of the Ministry of Health) and after the expiration of six months from the date of publication by the Corporation in a local newspaper circulating in the city of notice to that effect no person shall slaughter in the way of trade any cattle within the city except in slaughter-houses provided by the Corporation but this restriction shall not apply to the slaughtering on premises by the owner lessee or occupier thereof of any cattle belonging to him and not slaughtered for the purpose of trade or by a farmer on premises occupied by him for agricultural purposes only and if any person acts in contravention of this section he shall be liable for each offence to a penalty not exceeding five pounds.

(3) The Corporation shall pay or tender compensation to the owner and occupier of any slaughter-house registered prior to the passing of the Public Health Act 1875 and of any slaughter-house the licence in respect of

which is not required to be renewed periodically and closed under the provisions of this section and the amount of such compensation shall in case of difference be settled as cases of disputed compensation are settled under the Lands Clauses Acts and the provisions of those Acts shall apply accordingly Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in respect of the closing of such slaughter-house. A.D. 1925.

(4) The fees and charges to be demanded and received by the Corporation in respect of the use of any slaughter-house provided by them or of any convenience connected therewith shall be regulated by byelaws to be approved by the Minister of Health and the Corporation may make byelaws accordingly provided that the Corporation shall have power to charge for any slaughter-house let at a weekly monthly or other rent such sum as may be agreed upon by the Corporation and the renters.

(5) Nothing in this section shall interfere with the operation or effect of the Diseases of Animals Act 1894 or of any order or licence of the Minister of Agriculture and Fisheries made or granted thereunder.

164.—(1) (a) The Corporation may by written notice to the owner and occupier of any registered slaughter-house within the city which from its situation or construction is in the opinion of the Corporation injurious or dangerous to the public health require that the premises shall cease to be used as a slaughter-house on and after such date (not being less than six months from the service of such notice) as may be specified in the notice and no person shall after such date slaughter in the way of trade any cattle on the said premises : Power to close slaughter-houses if injurious to public health.

(b) Provided that not less than three months before making any such requirement in the case of any slaughter-house which from its construction is in their opinion injurious or dangerous to the public health the Corporation shall give notice in writing to the owner or occupier thereof specifying the respects in which such slaughter-house is in their opinion so injurious or dangerous and also specifying their requirements in regard thereto and if within the said period of three months the owner or occupier of such slaughter-house or either of them shall

A.D. 1925. have removed the grounds of objection thereto no such written notice as is first above mentioned shall be given to them by the Corporation :

(c) Provided also that any such owner or occupier may within one month after receiving any such notice in writing from the Corporation object thereto on the ground that the requirements contained therein are unreasonable and unnecessary in the interests of public health and any such objection shall failing agreement between the Corporation and the owner or occupier making the same be determined on appeal to the Minister of Health by that Minister and unless and until that Minister shall have determined that the said requirements are reasonable and necessary no such written notice as is first above mentioned shall be given to the owner or occupier of the slaughter-house in question.

(2) The Corporation shall make compensation to the owner and occupier of any registered slaughter-house which shall cease to be used for slaughtering under subsection (1) of this section such compensation in case of difference to be settled in manner provided by the Public Health Act 1875 Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in pursuance of this section.

(3) If any person acts in contravention of the provisions of subsection (1) of this section he shall be liable for each offence to a penalty not exceeding five pounds.

As to filthy premises.

165.—(1) If the owner of any dwelling-house or premises occupied therewith represents to the Corporation that the occupier of such dwelling-house or premises habitually maintains the same in a filthy condition any officer of the Corporation duly authorised in that behalf may enter upon such dwelling-house or premises and inspect the same and if the Corporation are satisfied of the truth of the representation of such owner the occupier shall be liable on the information of the medical officer to a court of summary jurisdiction to be ordered to quit the dwelling-house or premises within such time as may be specified in the order and any such order may be

enforced in the manner provided by section 34 (Summary order to do act other than a payment of money) of the Summary Jurisdiction Act 1879. A.D. 1925.
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(2) Any expenses incurred by the Corporation under this section and not paid by the occupier shall be recoverable from the owner of the dwelling-house or premises.

166.—(1) If the medical officer or sanitary inspector has reasonable cause to suppose that any house is infested with vermin he may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin. Houses infested with vermin to be cleansed.

(2) Where on the certificate of the medical officer or sanitary inspector it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wall paper or other covering from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as hereinafter provided) be recoverable from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs

A.D. 1925. — and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

(6) For the purposes of this section the word "house" includes any boat tent van shed or similar structure used for human habitation and the word "vermin" includes bugs fleas lice and itchmites and their eggs larvæ and pupæ.

Cleansing of
verminous
persons.

167.—(1) The Corporation may from time to time provide free of charge temporary shelter or house accommodation with any necessary attendants and apparatus for cleansing and freeing from vermin the person and clothes of any person who shall be certified by the medical officer to be infested with vermin or in a foul or filthy condition or suffering from any contagious or infectious disease of the skin and may on the certificate of the medical officer cause any such person who consents to leave his house to be removed therefrom to such temporary shelter or house accommodation for the purpose of disinfecting and cleansing his person and clothing and in the like case and on the like certificate may cause any such person who does not consent to his leaving the house to be removed therefrom to and detained in any such temporary shelter or house accommodation where a court of summary jurisdiction on the application of the Corporation and on being satisfied of the necessity of the removal and detention make an order for the removal and detention subject to such conditions (if any) as are imposed by the order. The Corporation shall in every case cause the removal and detention to be effected and the condition of any order satisfied without charge to the person removed or to the parent or guardian of that person.

(2) Any person who wilfully disobeys or obstructs the execution of an order under this section shall be liable to a penalty not exceeding five pounds.

(3) If any person at the request of the Corporation or under an order of such court shall cease his employment in order to comply with such order the Corporation may and in case of an order of the court shall make compensation to him for any loss he may suffer thereby.

(4) The examination or cleansing of females under this section shall only be effected either by a person duly qualified as a medical practitioner or by a female person being a member of the staff of the medical officer. A.D. 1925.

(5) For the purpose of this section the word "house" includes any vessel boat tent van shed or similar structure used for human habitation.

(6) This section shall not apply to any child.

168.—(1) The medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may examine the person and clothing of any child (other than children in boarding schools including reformatory and industrial schools) and if on examination the medical officer or any such authorised person as aforesaid shall be of opinion that the person or clothing of any such child is infested with vermin or is in a foul or filthy condition the medical officer may give notice in writing to the parent or guardian or other person who is liable to maintain or has the actual custody of such child requiring such parent guardian or other person to cleanse properly the person and clothing of such child within twenty-four hours after the receipt of such notice. Cleansing of children and their clothing.

(2) If the person to whom any such notice as aforesaid is given fails to comply therewith within the prescribed time he shall be liable to a penalty not exceeding ten shillings and the medical officer or some person provided with and if required exhibiting the authority in writing of the medical officer may remove the child referred to in such notice and may cause the person and clothing of such child to be properly cleansed in suitable premises and with suitable appliances and if necessary for that purpose may without any warrant other than this Act convey to such premises and there detain such child until such cleansing is effected.

(3) Where after the person or clothing of a child has been cleansed under this section the parent or guardian or other person liable to maintain the child allows him to get into such a condition that it is again necessary to proceed under this section the parent guardian or other person shall be liable to a penalty not exceeding twenty shillings.

A.D. 1925.

(4) The examination or cleansing of females under this section shall only be effected either by a person duly qualified as a medical practitioner or by a female person being a member of the staff of the medical officer.

(5) Any notice required to be given under this section shall be deemed to be properly served by giving it to the person to whom it is addressed or leaving it for him with some inmate of his residence or by sending the same by post in a registered letter to his usual or last known residence.

In any such notice it shall be sufficient to designate the person to be served as the parent guardian or other person liable to maintain or having the actual custody of such child whose person or clothing requires to be cleansed.

Defining
establish-
ment of a
new busi-
ness for pur-
poses of
section 112
of Public
Health Act
1875.

169.—(1) For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and by this Act a trade business or manufacture shall be deemed to be established not only if it is established for the first time but also if without the consent of the Corporation—

- (a) it is removed from one set of premises to any other premises; or
- (b) it is renewed on the same set of premises after having been discontinued for a period of six months or upwards; or
- (c) any premises on which it is for the time being carried on are enlarged;

but a trade business or manufacture shall not be deemed to be established for the first time on any premises by reason only that the ownership or occupation of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

(2) Any consent of the Corporation to the establishment of any offensive trade or to the enlargement of any premises on which any offensive trade is carried on may be given so as to continue in force for such period only as the Corporation may prescribe by such consent and section 112 of the Public Health Act 1875 and this section shall be construed accordingly.

(3) If any person shall carry on such offensive trade beyond the period aforesaid he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1925.
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170.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and by this Act and in the opinion of the Corporation it is inexpedient in the interests of public health that such trade should be carried on in such premises the owner or occupier of the same may be required after six months' notice in writing by the Corporation under the hand of the town clerk to cease to use such premises for the carrying on of such offensive trade. Provided that the formation or expression by the Corporation of an opinion under this subsection shall be deemed to be a determination of the Corporation within the meaning of the section of this Act of which the marginal note is "As to appeal" and that the provisions of that section shall accordingly apply with respect to such opinion as well as to any requirement by the Corporation under this subsection. Discontinu-
ance of
offensive
trade.

(2) Any person who fails or neglects to comply with the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Corporation require any person to cease to use such premises for the carrying on of an offensive trade they shall pay to such person such compensation for any loss sustained by him in consequence of the action of the Corporation as may be agreed upon between the Corporation and such person or as failing agreement shall be determined by arbitration under the provisions of the Arbitration Act 1889. Provided that this subsection shall not apply in the case of any premises with respect to which the consent of the Corporation shall have been given for a period only unless the Corporation shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period.

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Corporation with reference to offensive trades.

A.D. 1925.

Power to
order altera-
tion of
chimneys.

171. It shall be lawful for a court of summary jurisdiction upon complaint by the Corporation upon a report by the medical officer or sanitary inspector that any smoke gas or vapour from any chimney of a wash-house or outbuilding forming part of or in proximity to a dwelling-house is a nuisance to any of the inhabitants of the city to make an order requiring the owner of such chimney to cause the same to be raised or a funnel or pipe to be placed thereon for conveying away such smoke gas or vapour or such other means to be adopted as may seem fitting to such court and as shall not exceed an expenditure of ten pounds for preventing or mitigating such nuisance within such time as shall be specified in such order and any such owner as aforesaid who shall neglect or refuse to obey such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Regulation
dustbins.

172.—(1) The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide portable covered galvanised-iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such dustbins shall be of such size and construction as may be approved by the Corporation.

(2) Every owner or occupier having provided any receptacle pursuant to this section shall maintain the same in good order and condition.

(3) Provided that the foregoing provisions of this section shall not apply to any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition.

(4) From and after the passing of this Act it shall not be lawful for any person to use any dustbin or ashtub for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Corporation.

(5) The owner or occupier of all premises in connection with which a dustbin has been provided as required by this section shall if so required by the Corporation pay to the Corporation on each first day of April after such provision such sum not exceeding five shillings as

the Corporation may from time to time by resolution determine for or towards the maintenance repair and renewal by them of such dustbin. Such payments shall be in satisfaction of the obligation of such owner or occupier in regard to the maintenance of such dustbin. A.D. 1925.
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(6) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation under subsection (1) of this section or who fails to comply with his obligation under subsection (2) of this section as the case may be shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings and any person contravening the provisions of subsection (4) of this section shall be liable to a penalty not exceeding ten shillings and to a daily penalty not exceeding ten shillings.

(7) Nothing in this section shall apply to or in respect of any premises (other than a dwelling-house) belonging to or used by any railway company primarily for railway purposes and from which the Corporation do not remove the refuse.

PART IX.

MATERNITY HOMES.

173.—(1) On and after the first day of January nineteen hundred and twenty-six (which date is in this Part of this Act referred to as “the prescribed date”) it shall not be lawful for any person to carry on a maternity home within the city unless the name of such person and the premises used or represented as being or intended to be used for the purpose of such home are registered with the Corporation. Registra-
tion of
maternity
homes.

(2) Any person requiring registration in respect of any such home shall make application in writing to the Corporation and shall in such application state—

(a) his full name;

(b) his age nationality and technical qualifications (if any);

(c) his private address or in the case of an application by or on behalf of a company society association or body the registered or principal office (if any) of such company society association or

A.D. 1925.
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body and so far as may reasonably be required the names and private addresses of the persons directly or indirectly responsible for the management of such company society association or body;

(d) the name under which and the address at which such home is carried on or proposed to be carried on; and

(e) such further information (if any) as the Corporation may reasonably require with respect to the person or premises to be registered or the number of patients to be accommodated at any one time and the equipment in such premises;

and when making such application shall pay to the Corporation such fee as they may fix not exceeding five shillings.

(3) Every person carrying on any such home at the date of the passing of this Act and requiring registration in respect thereof shall make application for such registration within one month after the date or (if more than one) the latest date of publication of the advertisements with regard to this Part of this Act referred to in the section of this Act whereof the marginal note is "Notice of provisions to be given."

(4) Subject as in this section provided the Corporation shall as soon as reasonably practicable after the receipt of an application under the provisions of this section (and not later in the case of an application under subsection (3) of this section than the prescribed date) register the name of the applicant and the premises specified in his application.

(5) The Corporation by order to be served on the person carrying on or proposing to carry on any such home may refuse to register the name of such person or the premises used or represented as being or intended to be used for the purposes of such home or may cancel the registration of such person or premises on the ground that—

(a) such person is under the age of twenty-one years;
or

(b) such person is unsuitable to carry on such home;
or

(c) the premises or their equipment are unsuitable for the purposes of a maternity home; or A.D. 1925.

(d) the premises are used or intended to be used for the accommodation at any one time of an excessive number of patients; or

(e) the premises or any other premises used for any purpose in connection with such first-mentioned premises or with any business or occupation carried on therein are being used for any immoral purpose.

(6) Before making any such order the Corporation shall give to the person proposed to be served therewith not less than seven days' previous notice in writing stating their intention to make the order and the grounds on which the order is proposed to be made and on written application made to them by such person within seven days after the giving of such notice they shall afford to such person an opportunity of being heard against the order.

(7) Any such order cancelling any registration shall take effect at the time specified in the order not being less than fourteen days after the service thereof but in the event of an appeal against any such order the order shall not come into operation unless and until it has been confirmed on appeal or the appeal has been abandoned.

(8) Any person aggrieved by any such order may appeal to a court of summary jurisdiction provided that such appeal is made within fourteen days after the order has been served upon him.

The court after considering any representations made on behalf of the Corporation may if it thinks fit confirm such order or direct the Corporation to withdraw such order and as soon as reasonably practicable the Corporation shall give effect to such direction.

174.—(1) The Corporation may make byelaws prescribing the records to be kept with respect to the patients received the children born and the business carried on at a maternity home and also with respect to the cause of death of any patient or child dying in such home and the holding of any inquest on any such patient or child and requiring the notification to the Corporation of any death occurring thereat. Byelaws as to homes.

A.D. 1925.

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(2) Every person carrying on a maternity home shall keep exhibited in a suitable place (to be approved by the Corporation) in such home a copy of the byelaws in force under this Part of this Act. Provided that the provisions of this subsection shall not apply in the case of any hospital or home towards the maintenance of which any grant is made from the Exchequer.

Powers as
to entry and
inspection.

175. Any officer duly authorised by the Corporation in that behalf may subject to such regulations (if any) as may be made by the Corporation at all reasonable times enter and inspect any premises which are used or which such officer has reasonable cause to believe are used for the purposes of a maternity home and the entries in any records required to be kept in connection therewith.

Penalties
for offences
in respect of
maternity
homes.

176. Subject to the provisions of this Part of this Act—

(1) Every person who carries on a maternity home in contravention of the provisions of this Part of this Act shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding twenty pounds and in respect of a second or subsequent offence the court may in lieu of or in addition to inflicting a penalty impose any period of imprisonment not exceeding three months :

(2) Every person who—

(a) refuses to permit any officer of the Corporation to enter or inspect any premises which such officer is authorised under the provisions of this Part of this Act to enter and inspect or the records to be kept pursuant to any byelaw made under the said provisions or obstructs any such officer in the execution of his duty under such provisions or under the provisions of any such byelaw as afore-said; or

(b) carries on a maternity home in contravention of the provisions of any such byelaw; or

(c) issues publishes or displays or causes to be issued published or displayed any advertisement relating to a maternity home which is not registered in accordance with

A.D. 1925.

the provisions of this Part of this Act after the expiration of a period of seven days from the receipt of notice in writing from the Corporation that the registration of such home has been refused or cancelled under the provisions of this Part of this Act; or

(d) fails to comply with the provisions of subsection (2) of the section of this Act of which the marginal note is "Byelaws as to homes";

shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds :

- (3) The court may in addition to imposing a penalty under this section order the cancellation of the registration :

Provided that a person who has appealed to a court of summary jurisdiction in accordance with the provisions of this Part of this Act against an order made by the Corporation thereunder cancelling registration shall not until such order has been confirmed on appeal or has been abandoned be liable to any proceedings under this section for the offence of carrying on a maternity home in contravention of the provisions of this Part of this Act or of any byelaw made thereunder.

177. Where any company registered under the Companies Acts 1862 to 1907 or under the Companies Acts 1908 to 1917 or any Act amending the same commits any offence for which a penalty is provided by this Part of this Act proceedings may be taken in respect of such offence against all or any of the directors and managers of such company as well as or instead of against the company and each such director or manager shall be liable on conviction to the like penalty as if he were the person committing the offence unless he proves to the satisfaction of the court—

Directors of companies to be personally liable for penalties.

- (1) that the act which constituted the offence took place without his knowledge consent or connivance; and
- (2) that he was not guilty of any negligence in regard to securing the proper execution of this Part of this Act.

A.D. 1925.

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Saving for
homes car-
ried on by
medical
practi-
tioners.

178.—(1) Subject as hereinafter provided the provisions of this Part of this Act shall not apply in the case of a maternity home carried on by a duly registered medical practitioner with respect to which there has been lodged with the Corporation a certificate in a form to be approved by them and signed by two duly registered medical practitioners practising or residing in the city not being in partnership with such first-mentioned medical practitioner or with each other and not having any financial or other interest in such home to the effect that the premises used or represented as being or intended to be used for such home and the equipment provided at such premises are in all respects suitable for the purpose and that the medical practitioner carrying on or proposing to carry on such home is a suitable person to carry on the same.

(2) Provided that any such certificate shall not be valid—

- (a) with respect to any person or premises other than the person or premises specified therein; or
- (b) for a period extending beyond the thirty-first day of January in the year next following the date of the certificate.

Saving for
certain pre-
mises.

179.—(1) Notwithstanding anything contained in this Part of this Act the foregoing provisions thereof shall not apply in the case of—

- (a) any hospital infirmary institution or other establishment maintained or controlled by any Government department or local authority or any other authority or body constituted by Parliament or incorporated by Royal Charter; or
- (b) any hospital for the time being recognised by the Voluntary Hospitals Commission; or
- (c) any institution or home for the training of persons desirous of becoming midwives which is for the time being approved by the Central Midwives Board constituted under the Midwives Acts 1902 and 1918; or
- (d) any maternity home in which only relatives of the person carrying on such home are received for the purposes of childbirth.

(2) For the purposes of this section the expression "relatives" means sisters daughters granddaughters nieces aunts or mothers by consanguinity or affinity and in the case of persons of illegitimate birth persons who would be so related if legitimate.

A.D. 1925.

180. The Corporation shall give public notice of the effect of the provisions of this Part of this Act by advertisement in two successive weeks in one or more newspapers circulating in the city and otherwise in such manner as they think sufficient.

Notice of provisions to be given.

PART X.

HACKNEY CARRIAGES AND POLICE.

181.—(1) The Corporation may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage regularly plying for hire within the city to be tested and inspected and they may also require any taximeter or other similar apparatus to be re-tested and re-inspected at such reasonable intervals of time as the Corporation may prescribe and no such taximeter or other similar apparatus shall be used or be continued in use unless the same be certified to register correctly and the expenses of such testing and certificate not exceeding five shillings in any one year shall be borne by the owner of the hackney carriage.

Inspection and certification of taximeters.

(2) The Corporation shall issue a certificate in respect of any taximeter found by them to register correctly and such certificate shall be dated with the date upon which such taximeter was last tested and inspected.

(3) Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable to a penalty not exceeding forty shillings.

182. The provisions of the Town Police Clauses Act 1847 and the byelaws of the Corporation for the time being in force with respect to hackney carriages shall be as fully applicable in all respects to hackney carriages and other horse-drawn or motor vehicles

As to public vehicles taken at railway stations.

A.D. 1925. standing or plying for hire at any railway station or railway premises within the city as if such station or premises were a stand for hackney carriages or a street :

Provided always that the provisions of this section shall not apply to any such vehicle which is kept and used solely for the purpose of being let on hire by the day or for longer periods of time or for journeys under special contract on special occasions or to an omnibus as defined in the Town Police Clauses Act 1889 or to any vehicle belonging to and used by any railway company for the purpose of carrying passengers and their luggage to or from any of their railway stations or railway premises or to the drivers or conductors of such vehicle :

Provided also that nothing in this section shall empower the Corporation to fix the site of the stand or starting place of any hackney carriage or other vehicle in any railway station or railway premises or in any yard belonging to a railway company except with the consent of the railway company owning such station yard or premises.

Byelaws as
to hackney
carriages.

183. The power to make byelaws conferred upon the Corporation by section 68 of the Town Police Clauses Act 1847 shall be extended so as to include power to make byelaws for all or any of the following purposes (that is to say) :—

(a) For the examination and inspection of hackney carriages at such time and place as the Corporation may appoint within one month before the annual licensing day :

(b) For the inspection of every hackney carriage at all reasonable times when required by the inspector of hackney carriages appointed by the Corporation :

(c) For the cessation of user of a hackney carriage which at any time fails in any way to comply with the requirements of the byelaws respecting the fitness of hackney carriages for public hire :

(d) For the furnishing by the owner of every hackney carriage to the inspector of hackney carriages or any police constable on request being made by him of the name and place of abode of any

person who was authorised to drive such carriage at any specified time within seven days previous to such request being made :

A.D. 1925.

- (e) For the notification in writing to the town clerk by the driver of any hackney carriage of any change in his place of abode.

184. An occasional licence for a public vehicle to ply for hire may be granted by the Corporation to be in force for such day or days or other periods less than one year as may be specified in the licence.

Power to grant occasional licences.

185.—(1) For the purposes of sections 51 to 61 (both inclusive) 63 and 65 to 67 (both inclusive) of the Town Police Clauses Act 1847 the whole of the city and any area outside the city but within five miles from the guildhall of the city shall be within the prescribed distance for hackney carriages duly licensed by the Corporation and hired within the city.

Further provisions as to hackney carriages.

(2) The power of the Corporation to make byelaws under section 68 of the Town Police Clauses Act 1847 shall be extended so as to enable them also to make byelaws thereunder with respect to hackney carriages duly licensed by the Corporation and hired within the city when outside the city but within five miles of the guildhall of the city.

(3) (a) Any offence committed or claim arising outside the city but within five miles of the guildhall of the city against or under the Town Police Clauses Act 1847 or any byelaws made by the Corporation thereunder and relating to a hackney carriage duly licensed by the Corporation and hired within the city may be brought before and determined by any person who would have had jurisdiction to hear and determine the offence or claim had it occurred or arisen at the place within the city where the hiring was effected.

(b) In addition to any persons authorised by section 253 of the Public Health Act 1875 the Corporation may take proceedings for the recovery of any penalty for any offence specified in the preceding paragraph (a).

(4) Nothing in this section shall apply to omnibuses as defined in the Town Police Clauses Act 1889.

A.D. 1925.

Regulations
for con-
trolling
traffic.

186.—(1) The Corporation may from time to time make regulations prescribing that in certain streets within the area comprised within a radius of half a mile from the guildhall vehicular traffic shall pass in one direction only.

(2) (a) No regulations made under this section shall come into operation except with the approval of the Minister of Transport and the said Minister may approve the same with or without modifications or may disallow the same. Any regulations approved by the Minister shall take effect as so approved and shall come into force on a date to be fixed by him.

(b) Within seven days of making any such regulations the Corporation shall publish the same by advertisement in the London Gazette and in a newspaper circulating in the city with notice that any person deeming himself aggrieved thereby may make representations to the Minister of Transport within fourteen days of the publication of the advertisement and that such person shall at the same time send a copy of such representations to the town clerk.

(c) Before considering any regulation the Minister may direct a local inquiry to be held.

(3) The Corporation shall cause notice to be given of all regulations made and approved under this section by advertisement in a newspaper circulating in the city and otherwise in such manner as may be prescribed by the Minister.

(4) A copy of any regulations made under this section purporting to be signed by the town clerk and certified by him to be a true copy shall be evidence until the contrary is proved in all legal proceedings of the making and existence of such regulations without further or other proof.

(5) Any person who shall contravene any such regulation after warning given by word or signal by a police constable in uniform shall be liable to a penalty not exceeding forty shillings.

(6) The provisions of this section shall not apply to tramway or light railway cars.

187. Where a police constable in uniform in pursuance of any instructions general or special is regulating the traffic at any junction or crossing in any street any person driving or propelling any vehicle who wilfully neglects or refuses to stop the vehicle or to make it proceed or to make it keep to a particular line of traffic when so directed (by word of mouth or sign) by any such police constable in execution of his duty shall on summary conviction be liable in respect of each offence to a fine not exceeding forty shillings or in the case of a second or subsequent conviction to a fine not exceeding five pounds.

A.D. 1925.

As to control of traffic by police.

188.—(1) For the better regulation of persons desiring to travel in carriages used on tramways (which expression shall be deemed to include light railways) and in omnibuses the Corporation may make byelaws applicable within the city or any part thereof requiring persons waiting to enter such carriages and omnibuses at any stopping place or terminus to stand in lines or queues and to enter the carriage or omnibus in which they respectively desire to travel in the order in which such persons stood in such lines or queues. If the Corporation make any such byelaws they may erect and maintain barriers and posts at any such stopping place or terminus and for that purpose may with the consent of the road authority use part of the highway.

Power to require intending passengers to wait in lines or queues.

(2) Provided that no barrier or post shall be erected maintained or provided nor shall the Corporation require persons waiting at any stopping place or terminus to wait in any line or queue so as to cause interference with or render less convenient the access to or exit from any station or depôt belonging to any railway company without the consent of such company nor shall any such barrier or post be erected maintained or provided on any bridge carrying any street or road over the railways of any railway company or the approaches to any such bridge without the consent of such company.

189.—(1) The Corporation may provide suitable places within the city (hereinafter called "parking places") on any land not forming part of a street repairable by the inhabitants at large at which vehicles or vehicles of any specified class or description may wait and may take such steps as may be necessary to adapt any such place for use as a parking place.

As to lands for parking places.

A.D. 1925.

(2) The Corporation may make regulations imposing conditions subject to which vehicles may be admitted into any parking place provided under this section and may by regulations prescribe a table of reasonable charges to be taken by them for the use of any such parking place and for the services of any attendant provided by them thereat and may prescribe different charges for different classes or descriptions of vehicles.

(3) (a) The Corporation may appoint with or without remuneration such officers as may be necessary for the superintendence of any parking place provided or set apart under this Act and for securing the observance of any regulations relating thereto.

(b) A copy of any regulations made under this Act and applying to a parking place shall be exhibited on or as nearly as may be adjacent to the parking place to which they relate.

(4) Land may be acquired by the Corporation for the purposes of this section as if those purposes were purposes of the Public Health Act 1875 and the provisions of sections 175 to 177 of that Act which relate to the purchase taking on lease sale letting or exchange of lands (except such of those provisions as relate to the acquisition of land otherwise than by agreement) shall accordingly extend to the purposes of this section.

(5) Subject to the consent of the Minister of Health and to such conditions as he may impose the Corporation may appropriate for the purpose of this section any land vested in them and not required by them for the purposes for which the same was acquired.

(6) (a) Where the Corporation propose to acquire or appropriate land for the purposes of this section notice of the proposal shall be published in at least one newspaper circulating within the city and shall be posted for not less than fourteen days on the land proposed to be acquired as a parking place.

(b) Every such notice shall contain—

(i) a description of the area proposed to be acquired or appropriated or set apart as a parking place ;

(ii) a statement of the date (not being less than twenty-eight days from the date of the notice)

A.D. 1925.

by which any person affected by the proposal may make objections or representations to the Corporation thereon in writing; and

- (iii) an intimation that an appeal to a court of summary jurisdiction may be made against the proposed acquisition or appropriation of the land by any person thereby aggrieved.

(c) The Corporation shall consider any objection or representation duly made to them as aforesaid and shall notify their decision to the person making the same.

(d) Any person deeming himself aggrieved by the decision of the Corporation so notified to him may within twenty-one days after the receipt of such notification appeal to a court of summary jurisdiction who may make such order in the matter and may attach such conditions thereto as they may deem proper and may make such order as to costs as they think fit and any such costs shall be recoverable as a civil debt.

(7) The expenses incurred by the Corporation in the exercise of their powers under this section shall be defrayed as part of the expenses of the execution of the Public Health Acts and for that purpose money may be borrowed by the Corporation in the like manner and subject to the like conditions as for the purposes of those Acts.

(8) In this section the word "vehicle" does not include any hackney carriage or omnibus as defined in the Town Police Clauses Acts 1847 and 1889 which is licensed to ply for hire within the city.

(9) The powers conferred by this section shall only be exercised where such exercise is reasonably required for the purpose of relieving congestion or facilitating traffic in the city.

190.—(1) All steam or waste gas ejected from any stationary engine or the boiler or condensers thereof and all condensing water above a temperature of one hundred and ten degrees Fahrenheit so ejected and all spent and ejected steam arising or produced in any trade business or manufacture shall be so discharged as not to be an annoyance to the public. Ejection of steam and waste gas to annoyance of public.

(2) Any person who shall cause or permit steam or waste gas to be ejected or discharged contrary to the

A.D. 1925.

provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Silencers
for internal
combustion
engines.

191.—(1) Every person who uses a stationary internal combustion engine shall provide and use an effective silencer on the exhaust of such engine and shall at all times at his own expense keep such silencer in proper repair.

(2) The Corporation shall have access to and be at liberty to take off remove test inspect and replace any such silencer at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the silencer be found in proper order but otherwise at the expense of the person aforesaid :

Provided that nothing contained in this subsection shall apply to any stationary internal combustion engine belonging to any railway company and used by them for the purposes of their railway undertaking.

(3) Any person who shall use a stationary engine or permit the same to be used contrary to the provisions of this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

Byelaws as
to bicycles
&c. on
certain foot-
paths.

192. The Corporation may make byelaws prohibiting or restricting the use by persons riding bicycles tricycles or other similar vehicles on any footpaths specified and defined in such byelaws.

Notice of
processions
to be given.

193.—(1) Any person or persons intending to organise or form a public or ceremonial procession or a circus procession or procession of wild animals through the streets of the city (other than a public or ceremonial procession which is regularly held through such streets) shall give written notice thereof and of the route proposed to be taken and of the time at which it will take place to the chief constable by leaving such notice at the central police station in the city twenty-four hours at least (exclusive of Sundays) previous to the time fixed for such procession to pass through the streets.

(2) If any such procession passes through the streets of the city without such notice having been previously given or otherwise than in accordance with such notice

the person or persons organising or conducting such procession or any or either of them shall be liable to a penalty not exceeding five pounds each. A.D. 1925.
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194. Every person who shall on Sundays in any street or public place within the city call or shout or ring any bell or use any noisy instrument for the purpose of selling or advertising any newspaper journal or serial shall for every such offence be liable to a penalty not exceeding forty shillings. Penalty for crying newspapers.

195. Any property found and handed to a police constable of the city shall be taken to a place to be appointed for the purpose by the Corporation and if the same be not claimed by the owner within three months after the finding thereof the Corporation shall give notice in writing to the finder and if such property be not claimed by the owner or the finder within a further period of three months it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the proceeds thereof carried to the city fund. Lost property.

PART XI.

RATING.

196. This Part of this Act shall come into operation as from the thirty-first day of March nineteen hundred and twenty-six. Commencement of this Part of Act.

197.—(1) All expenses of the Corporation which if this Act had not been passed would have been payable out of and all rates charges damages penalties and other moneys which if this Act had not been passed would have been paid or carried to the credit of the district fund or general district rate shall be charged on and defrayed out of or paid and carried to the credit of the city fund and the city rate and in any case for which no specific provision is made in this Part of this Act any reference to the district fund or general district rate in any Act or Provisional Order in force in the city or in any mortgage of or charge on such fund or rate granted by the Corporation in pursuance of the provisions of any such Act or Order shall be deemed to be a reference to the city fund and the city rate. All expenses of Corporation to be paid out of city fund and rate.

A.D. 1925.

(2) The district fund shall be closed and any balance standing to the credit or to the debit of the district fund or the general district rate respectively shall be transferred to the credit or the debit (as the case may be) of the city fund but any moneys owing to the Corporation in respect of or in connection with the district fund or the general district rate shall notwithstanding the provisions of this Act continue to be payable to and recoverable by the Corporation as if this Act had not been passed and when received by the Corporation shall be carried to the credit of the city fund.

(3) The Corporation may make and levy any city rate prospectively in order to raise money to pay charges and expenses to be incurred thereafter or retrospectively in order to raise money to pay charges and expenses already incurred.

Contribu-
tion to city
rate to be
paid out of
poor rate.

198. The contribution of the parish to the city rate shall be paid by the overseers out of the poor rate and the provisions of section 145 (Collection of borough rate in undivided parish) of the Municipal Corporations Act 1882 shall (subject to the provisions of this Part of this Act) apply to the said contribution.

Poor rate to
be called
“the con-
solidated
rate.”

199. The poor rate (inclusive of the contributions to the city fund levied as part thereof in pursuance of the provisions of this Act) shall be called “the consolidated rate” but except as expressly provided by this Act that rate shall continue to be subject to all Acts passed and to be passed relating to the poor rate and to be made assessed levied and recovered as the poor rate.

Differential
rating for
certain
classes of
heredita-
ments.

200. The provisions contained in this section shall have effect with respect to the consolidated rate to be made and levied by the overseers (that is to say):—

- (1) The owner of any tithes or any tithe commutation rentcharge or the occupier of any land used as arable meadow or pasture ground only or as woodlands allotments orchards market gardens or nursery grounds and the occupier of any land covered with water or used only as a canal or towing path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed

A D. 1925.
—

to the consolidated rate in respect of such hereditaments on the full rateable value thereof but (subject as next hereinafter provided) shall be liable to pay in each year in respect of such hereditaments a rate calculated on the basis of sixty per centum only of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section :

- (2) During the continuance of the Tithe Rentcharge (Rates) Act 1899 such Act shall have effect within the city as if the following provision were substituted for section 1 thereof (that is to say) :—

“ The owner of tithe rentcharge attached to a benefice shall be liable to pay only three-fifths of the amount payable under subsection (1) of the section of the Bath Corporation Act 1925 whereof the marginal note is ‘ Differential rating for certain classes of hereditaments ’ in respect of any rate which is assessed on him as owner of that tithe rentcharge and the remaining two-fifths thereof shall on demand being made by the collector of the rate on the inspector of taxes for the city or any district therein be paid by the Commissioners of Inland Revenue out of the sums payable by them to the local taxation account on account of estate duty grant ” :

- (3) (a) During the continuance of the Agricultural Rates Acts 1896 and 1923 the occupier of any agricultural land as defined in the Agricultural Rates Act 1896 shall be liable to pay in each year in respect of such land a rate calculated on the basis of one-fourth only (instead of sixty per centum) of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section ;

(b) On the expiration of the Agricultural Rates Act 1923 the words “ thirty-six per centum ” shall during the continuance of the Agricultural Rates Act 1896 be substituted for the words “ one-fourth ” in paragraph (a) of this subsection :

A.D. 1925.

(4) Nothing in this section shall in any way affect—

(a) The share of the annual grant payable under the Agricultural Rates Act 1896 to any spending authority or save as expressly provided in this Act the operation of that Act; or

(b) The operation of the Agricultural Rates Act 1923 or the power of the Minister of Health to estimate as respects each half year after the commencement of this Part of this Act the amount of the deficiency which would have arisen by reason of section 1 of that Act if this Act had not been passed in the produce of any rate for the purpose of the issue from the local taxation account of the share of any spending authority in the additional annual grant under the Agricultural Rates Act 1923; or

(c) The operation of the Ecclesiastical Tithe Rentcharges (Rates) Acts 1920 and 1922; or

(d) The amount of the contribution for any purposes to be made by the parish out of the poor rate:

(5) (a) If any occupier referred to in subsection (1) of this section claims that in respect of any rate made or levied he is not receiving the full benefit to which he is entitled under the said subsection he may appeal to the next court of quarter sessions holden not less than twenty-one days after the demand of the rate and according to the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such quarter sessions unless fourteen days' notice in writing of such appeal and of the ground thereof be given by the appellant to the Corporation and the overseers;

(b) On appeals under this subsection the court to which such appeal shall be made shall have power to determine the amount payable by the occupier in respect of such rate and to award costs between the parties to the appeal.

201. The following provisions shall have effect in the application of the Poor Rate Assessment and Collection Act 1869 (in this section hereinafter called "the said Act") within the city and the parish:—

A.D. 1925.
—
Application
of Poor Rate
Assessment
and Collec-
tion Act
1869.

- (1) The following section shall be substituted for section 3 of the said Act namely:—

"If the owner of any hereditament the rateable value of which does not exceed ten pounds or of any premises which are let in separate apartments or of which the rents are collected weekly is willing to enter into an agreement in writing with the overseers to become liable to them for the consolidated rate assessed in respect of such hereditament or premises for any term not being less than one year from the date of such agreement and to pay the consolidated rate where the hereditament or premises is or are occupied or not the overseers may agree with the owner to receive the consolidated rates from him and to allow to him a commission of such amount not exceeding twenty per centum per annum on the amount thereof as the Corporation may from time to time determine":

- (2) Section 4 of the said Act shall be read and have effect as if the words "all or any of the classes of hereditaments or premises referred to in subsection (1) of the section of the Bath Corporation Act 1925 of which the marginal note is 'Application of Poor Rate Assessment and Collection Act 1869'" were inserted therein instead of the words "all rateable hereditaments to which section 3 of this Act extends":
- (3) The abatement and deduction and the further abatement and deduction which may be allowed under section 4 of the said Act of fifteen per centum and fifteen per centum respectively may be of such amounts not exceeding ten per centum and ten per centum respectively as the Corporation may from time to time determine:
- (4) The amount of such commission or abatement and deduction as aforesaid which may be from

A.D. 1925.

time to time allowed as aforesaid may vary according to the rateable value of the hereditament or premises to which for the time being it shall be determined by the Corporation to apply provided that such amount shall be the same for the time being in the case of all hereditaments and premises for the time being of a like rateable value :

- (5) The owner of any hereditament shall not be entitled to any abatement or deduction under the said section 4 as amended by this section unless he shall pay the rate (in respect of which any such abatement or deduction might be made) within six months after such rate shall have been made if made for a period of one year or within three months after the rate shall have been made if made for any less period and in either case within two months after the same shall have been demanded whichever shall be the later :
- (6) Notwithstanding anything in this Part of this Act contained the provisions of this section shall come into operation on the passing of this Act but so that any resolution thereafter passed by the Corporation under the said provisions and any agreement with or notice by any owner thereafter made or given under either of the said sections 3 and 4 of the said Act shall not take effect until after the commencement of this Part of this Act and any agreement with or notice given by any owner under either of the said sections in force at the passing of this Act shall be and the same are hereby determined on and from the commencement of this Part of this Act.

Service of rate
demands by
post.

202. The provisions of section 267 (Service of notices) of the Public Health Act 1875 shall apply to demand notes for the consolidated rate.

Water rate
may be col-
lected with
consolidated
rate.

203.—(1) Any water rate or charge payable to the Corporation may be collected together with the consolidated rate and the same books may be used for the said water rate and charge and the consolidated rate.

(2) The consolidated rate and the demand note and any other necessary documents to be used for the

purposes of or in connection with the consolidated rate and water rate or charge shall be in such form as the Minister of Health may from time to time prescribe. A.D. 1925.
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(3) The Corporation may demand water rates and charges by half-yearly instalments in advance on the thirty-first day of March and the thirtieth day of September in each year but so that the same shall not be recoverable until the expiration of two months from the said thirty-first day of March and thirtieth day of September respectively.

204. For the purpose of section 133 (Until completion of works promoters shall make good any deficiency of land tax and poor's rate caused by lands being taken) of the Lands Clauses Consolidation Act 1845 the poor's rate shall be deemed to be one-half of the amount in the pound of the consolidated rate. As to section 133 of Lands Clauses Consolidation Act 1845.

205. No warrant of commitment in respect of non-payment of the consolidated rate shall be issued against any person who shall satisfy the court that his failure to pay the said rate is due to circumstances over which he had or has no control and that he has not divested himself of means for the purpose of evading payment of the said rate. As to recovery of consolidated rate.

206. Section 220 (Description of owner or occupier) and section 221 (Rates may be amended) of the Public Health Act 1875 shall apply to the city in respect of the consolidated rate as if the overseers were an urban authority and the rate therein mentioned were the consolidated rate and the said section 221 shall extend to enable the overseers to amend any rate made by them in pursuance of this Act so as to make the assessment to such rate accord with any new or supplementary valuation list made during the currency of such rate. Certain sections of Public Health Act 1875 to apply.

207.—(1) The overseers may by notice in writing require the owner or occupier or reputed owner or occupier of any hereditament in the parish (other than land used as arable meadow or pasture ground only or as woodlands) to send to them a return in writing in the form set forth in the Fourth Schedule to this Act or to the like effect and containing the particulars therein mentioned or referred to or such of them as the overseers may require : Overseers may require returns.

Provided that (except for purposes connected with the preparation of and preliminary to a general

A.D. 1925. revaluation for rating) the powers conferred by this section shall only be exercised—

- (a) Upon any change in the occupation or ownership of any hereditament; or
- (b) Upon any change in the nature or use of any hereditament whether by way of addition to or adaptation of premises or otherwise such as may affect the value of the hereditament; or
- (c) In the case of any hereditament in respect of which the overseers are of opinion that special circumstances exist which make it desirable that a return should be rendered in accordance with the provisions of this section.

(2) Any person who wilfully refuses or neglects to make a return lawfully required under this section within fourteen days after receipt of such notice as aforesaid shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds and any person who wilfully makes or causes to be made a false return shall be liable to a penalty not exceeding ten pounds.

(3) The overseers shall whenever required by the assessment committee of the Bath Poor Law Union permit the duly authorised officer of such committee to have access to the returns or any of them obtained by the overseers under the provisions of this section for the purpose of inspecting the same and making copies thereof.

(4) Nothing in this section shall require a railway company to include in any return which they may be required to send to the overseers particulars with respect to their running lines sidings or stations or any hereditaments therein.

City rate
may include
working
balance.

208. The purposes to which the city fund is applicable shall include the provision of a working balance for the payment of current expenses that may be incurred by the Corporation in the exercise or performance of the powers and duties the cost of which is charged on the city fund and the Corporation may (in estimating the amount sufficient for those purposes and in ordering the city rate to be made) include such a sum as they may consider to be necessary for the provision of such working balance.

PART XII.

A.D. 1925.

FINANCIAL AND MISCELLANEOUS.

209.—(1) The Corporation may from time to time Power to
independently of any other borrowing power borrow borrow.
at interest for and in connection with the purposes
mentioned in the first column of the following table
the respective sums mentioned in the second column
thereof and in order to secure the repayment thereof
and the payment of interest thereon they may mortgage
or charge the city fund and city rate and they shall
pay off all moneys so borrowed within the respective
periods (each of which is referred to as “the prescribed
period” in certain of the enactments extended and
applied to and for the purposes of this Act by the
section of this Act of which the marginal note is
“Application of provisions of Act of 1903”) mentioned
in the third column thereof (namely):—

1	2	3
Purpose.	Amount.	Period for Repayment.
(a) The purchase of lands for the construction of the street works authorised by this Act.	The sum requisite.	Sixty years from the date or dates of borrowing.
(b) The construction of the street works authorised by this Act.	£150,000	Forty years from the date or dates of borrowing.
(c) The purchase of the undertakings of the bridge-owners and the payment of the costs and expenses incident to such purchase and to the transfer of such undertakings to the Corporation (other than the costs of this Act) and the payment of any other sum payable by the Corporation to the bridge-owners under the provisions of this Act.	The sum requisite.	Sixty years from the date or dates of borrowing.
(d) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act.

A.D. 1925.

(b) The Corporation may also borrow such further moneys as may be necessary for the purpose of providing a fund for working capital—

(i) as respects the electricity undertaking with the consent of the Electricity Commissioners;

(ii) as respects any undertaking with respect to which any deficiency is required to be defrayed out of any fund for which a rate is leviable by or under the direction of the Corporation (other than any account relating to the electricity undertaking) with the consent of the Minister of Health.

(c) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister or Commissioners with whose consent it is borrowed and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(d) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister or Commissioners with whose consent the money is borrowed.

(3) The provisions of this section prescribing the fund and rate which may be mortgaged or charged shall not limit the powers conferred upon the Corporation by the section of this Act of which the marginal note is "Power to use one form of mortgage for all purposes."

Application
of moneys
borrowed.

210. All moneys borrowed under the provisions of this Act shall be applied only to the purposes for which they are authorised to be borrowed and (except in the case of money borrowed for current expenses) to which capital is properly applicable.

Expenses of
execution of
Act.

211. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the city fund.

Interest on
mortgages
held jointly.

212. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any

interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them. A.D. 1925.

213. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation. Receipt in case of persons not sui juris.

214. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875) except upon the production to and temporary deposit with the treasurer of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited. Evidence of transfer or transmission of securities.

215.—(1) The Corporation shall establish a reserve fund to provide against the depreciation of investments and securities held for the sinking funds of the Corporation and any fund so established before the passing of this Act shall be deemed to have been lawfully established. Reserve fund to meet depreciation of investments.

(2) The Corporation shall carry to such fund such annual or other payments as appear to them to be required for enabling the fund to satisfy the purposes for which it is established :

Provided that if it appears to the Minister of Health that any such payments are required for the purpose aforesaid it shall be the duty of the Corporation to make such payments.

(3) The Corporation may invest such reserve fund and the interest on the investments of such reserve fund in statutory securities.

(4) Particulars of any such reserve fund shall be furnished to the Minister of Health and shall form part of the return required to be made to him under the section of this Act of which the marginal note is "Return to Minister of Health with respect to repayment

A.D. 1925. of debt " and the provisions of that section shall apply as if such reserve fund were a sinking fund within the meaning of that section.

Use of
moneys
forming part
of sinking
and other
funds.

216. The Corporation may use for the purpose of any statutory borrowing power possessed by them any moneys forming part of any fund accumulated for the redemption of debt or as a reserve or renewals fund (in this section respectively referred to as "the lending fund") and not for the time being required for the purpose for which the moneys have been accumulated subject to the following conditions :—

- (1) The moneys so used shall be repaid by the borrowing fund to the lending fund as and when required or determined by the Corporation within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable. Provided that the Corporation may if they so determine repay to the lending fund the amount so used at any time within the period aforesaid :
- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid to the fund and such interest shall be calculated at a rate per centum per annum to be determined by the Corporation and to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power :
- (3) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to the re-borrowing of sums raised under the statutory borrowing power shall apply thereto.

Power to
re-borrow.

217.—(1) The Corporation shall have power—

- (a) To borrow for the purpose of paying off any moneys previously borrowed under any

statutory borrowing power which are intended A.D. 1925.
forthwith to be repaid; or

- (b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) by instalments or annual payments; or
- (b) by means of a sinking fund; or
- (c) out of moneys derived from the sale of land; or
- (d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) The following enactments are hereby repealed :—

Section 36 (Power to re-borrow) of the Bath Act 1879;

Article VI. (Power to re-borrow) of the Bath Order (No. 3) 1899;

Section 47 (Power to re-borrow) of the Act of 1903 ;

Article VII. (Power to re-borrow) of the Bath Order (No. 2) 1910.

A.D. 1925.

Power to
use one
form of
mortgage
for all pur-
poses.

218.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Fifth Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the

A.D. 1925.

parties thereto as stated in the deed Every such register shall be open to public inspection during office hours at the said office without fee or reward and the town clerk or other person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Fifth Schedule to this Act or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

(12) Sections 79 (Mortgages and bonds to be in the forms of Schedules (A) and (B)) and 82 (Register of mortgages and bonds to be kept) of the Act 9 & 10 Victoria c. ccxx. are hereby repealed.

(13) Sections 236 to 238 of the Public Health Act 1875 shall not apply to any mortgages granted by the Corporation after the passing of this Act.

A.D. 1925.

Power to
invest all
sinking
funds in
statutory
securities.

219. When under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of moneys borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

Period for
repayment
of loans
under
Municipal
Corporations
Act 1882.

220. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that Act shall be repaid within such period not exceeding sixty years as the Minister of Health shall in each case prescribe.

As to sec-
tion 234 of
Public
Health Act
1875.

221. In calculating under subsection (2) of section 234 of the Public Health Act 1875 the amount which the Corporation may borrow the amount of any sinking fund or redemption fund accumulated for the purpose of providing for the repayment of loans contracted by the Corporation under the Sanitary Acts and the Public Health Act 1875 shall be deducted from the total debt of the Corporation under those Acts.

Return to
Minister of
Health with
respect to
repayment
of debt.

222.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

A.D. 1925.
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(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) The provisions of this section shall extend and apply to any annual returns required to be made to the Minister with regard to the repayment of debt by any provisions of any Acts or Provisional Orders now in force in the city or by any regulations made thereunder notwithstanding anything contrary to or inconsistent therewith in any such Act Order or regulation.

223.—(1) The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in lieu of the auditors appointed under the Municipal Corporations Acts Any auditor or auditors appointed by the Corporation under the provisions of this section and for the time being holding office is or are in this section referred to as “the appointed auditor.”

Appointed
auditors.

(2) If and while the Corporation exercise the powers of subsection (1) of this section section 25 (Borough auditors) of the Municipal Corporations Act 1882 shall not apply within the city.

(3) Every appointment of an auditor or auditors under this section shall be in writing under the seal of the Corporation and may be for such term and subject to such conditions as the Corporation may think fit.

A.D. 1925.

(4) Subsection (1) of section 27 of the Municipal Corporations Act 1882 shall apply and have effect as if the appointed auditor had been referred to therein instead of the city auditors and in addition the appointed auditor shall be entitled to require from any officer of the Corporation all such papers books accounts vouchers sanctions for loans information and explanations as may be necessary for the performance of his duties.

(5) The appointed auditor shall include in or append to any certificate given by him with reference to the accounts of the Corporation such observations and recommendations (if any) as he may deem necessary or expedient with respect to the accounts and any matter arising thereout or in connection therewith.

Subscrip-
tions to
local gov-
ernment
associations
and other
expenses.

224.—(1) The Corporation may pay out of the city fund as expenses incurred by them under the Municipal Corporations Act 1882—

(a) Reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings ;

(b) The reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the city.

(2) The provisions of section 131 (Power of local authority to provide hospitals) of the Public Health Act 1875 shall be extended so as to enable the Corporation to subscribe to any hospital infirmary nursing institution or other institution of a similar character such sum or

sums as they may from time to time think fit and to charge the amount of any such subscription to or apportion the same among all or any of their funds and revenues.

A.D. 1925.

(3) The Corporation may also subscribe to any charity philanthropic association or society or other associations institutions or societies rendering national or public service such sum or sums as they may from time to time think fit and may charge the amount of any such subscription to or apportion the same among all or any of their funds and revenues.

(4) Provided that the total amount subscribed by the Corporation under the provisions of subsections (2) and (3) of this section shall not in any one year exceed the amount which would be produced by the levying of a city rate of one half-penny in the pound.

225.—(1) The Corporation may if they think fit in cases not within the Workmen's Compensation Act 1906 or the School Teachers (Superannuation) Act 1918 or any other Act for the time being in force relating to the superannuation of teachers grant a gratuity of any sum (not exceeding two years' pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age sickness or other infirmity or to the widow or family of any such officer or servant who may die in their service.

Power to
grant gratu-
ities in cer-
tain cases.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

(3) In and for the purposes of this section the expression "officers or servants" shall include any teacher who at the date of the passing of this Act is or shall thereafter be permanently and exclusively employed by the Corporation as the local education authority for the city or permanently and exclusively employed in any public elementary school in the city (whether provided by the Corporation as the local education authority or not so provided) or permanently and exclusively employed in any school college or hostel provided by the Corporation as the local education authority for the purposes of higher education.

A.D. 1925.

For better
protection
and pre-
servation of
baths and
springs.

226.—(1) (a) In this subsection “the signed plan” means the plan signed in triplicate by Sir Thomas Robinson the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred one of which plans has been deposited in the Parliament Office of the House of Lords one in the Private Bill Office of the House of Commons and one with the town clerk at his office.

(b) Without the previous consent in writing of the Corporation it shall not be lawful for any person to open dig sink or deepen any pit or well or open or work any mine or quarry or make any excavation or opening within the area in the city which is edged blue on the signed plan to a depth exceeding twenty feet below the surface of the natural ground.

(c) Any person acting in contravention of this subsection shall be liable to a penalty of fifty pounds and a daily penalty of ten pounds but this provision shall be without prejudice to any other remedy against such person whether by proceedings for injunction or damages or otherwise.

(d) A copy of the signed plan shall be at all reasonable times open for the inspection of the public at the office of the town clerk without charge.

(e) The Corporation may refuse their consent under this subsection if it shall appear that the opening digging or other act therein referred to is likely to cause injury to or affect any of the hot baths or springs belonging to the Corporation :

Provided that if any difference arises between the Corporation and any person to whom subsection (1) applies as to whether any of the said hot baths or springs is likely to be injured or affected such difference shall be referred to and determined by a geologist to be agreed upon between the parties or failing such agreement by a geologist to be appointed on the application of either party by the President of the Incorporated Institution of Mining and Metallurgy and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

(2) (a) If it appears to a court of summary jurisdiction on complaint by or on behalf of the Corporation that any person at any point in the city is opening digging

A.D. 1925.
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sinking or deepening any pit or well or is opening or working any mine or quarry or is making any excavation or opening on any lands in the city or has done or is about to do any of the said acts in such a manner as to cause injury to or affect any of the hot baths or springs belonging to the Corporation the court may (and in cases to which subsection (1) of this section applies notwithstanding any such consent or determination as is referred to in that subsection) make an order requiring such person within the period therein prescribed to discontinue such opening digging sinking or deepening as aforesaid and if any such pit well mine quarry excavation or opening has been made to fill up the same and remedy any injury done to any of the said hot baths or springs.

(b) Any person who fails to comply with any such order shall be liable to a penalty of fifty pounds and to a daily penalty of ten pounds.

(c) It shall be lawful for the Corporation upon the expiration of the prescribed period to enter upon any lands where such excavation or opening shall have been made and to fill up the same and remedy any injury that may have been done to any of the hot baths or springs of the Corporation and the Corporation may recover summarily any expenses incurred reasonably by them in so doing from the person who shall have failed to comply with such order.

(3) (a) The foregoing provisions in this section shall not prevent any railway company or the Bath Gas Light and Coke Company from duly carrying out any powers in connection with their railway undertaking or gas undertaking (as the case may be) conferred upon it by Parliament prior to the passing of this Act. Provided that if any such company shall in the exercise of such powers interfere with or encounter any hot springs they shall forthwith give notice in writing thereof to the Corporation who shall thereupon have the right to inspect at all reasonable times the works of the company and the hot springs interfered with or encountered thereby and such company shall with all possible despatch and to the reasonable satisfaction of the Corporation carry out such works as shall be reasonably required by the Corporation for the preservation of such springs and for protecting the same from injury or interference and any expense reasonably incurred by such company in so doing which

A.D. 1925. — would not have been incurred by them except for the provisions of this subsection shall be repaid to the company by the Corporation.

(b) Any question arising between the Corporation and any such company under the provisions of this subsection shall be referred to and determined by an engineer to be agreed upon between the parties or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

(4) It shall be lawful for the Corporation or any person duly authorised by them at all reasonable times to enter into and upon any lands within the city where they have reason to believe that any mine quarry pit well or excavation is being or has been opened sunk used or made whereby any of the hot baths and springs of the Corporation may be or might have been endangered injured destroyed or affected for the purpose of inspecting the same and making such examination as they shall consider necessary without being liable for any action of trespass or other proceeding in respect of such entry inspection or examination.

Application
of provi-
sions of Act
of 1903.

227. The following provisions of the Act of 1903 shall with all necessary modifications extend and apply to and for the purposes of this Act as if the same were re-enacted in this Act (namely)—

Section 38. (Certain regulations of Public Health Act as to borrowing not to apply);

Section 39. (Mode of raising money);

Section 42. (Mode of payment off of money borrowed);

Section 43. (Sinking fund);

Section 44. (Protection of lender from necessity of inquiry);

Section 45. (Corporation not to regard trusts);

Section 46. (Appointment of receiver);

Section 53. (Inquiries by Local Government Board);

Section 55. (Confirmation of byelaws);

Section 56. (Recovery of penalties).

A.D. 1925.

Provided that—

- (a) In its application to the provisions of this Act the said section 43 shall be read and have effect as if the words “three pounds
“ten shillings per centum per annum or such
“other rate as may from time to time be ap-
“proved by the Minister of Health” were
therein inserted instead of the words “three
pounds per centum per annum”;
- (b) In its application to the provisions of this Act the said section 53 shall be read and have effect as if the words “five guineas” were substituted therein for the words “three guineas”; and
- (c) The said section 55 shall have effect as if the words “except where otherwise provided
“Provided that as respects byelaws made
“under the section of this Act of which the
“marginal note is ‘Byelaws as to bicycles
“&c. on certain footpaths’ the Secretary of
“State shall be substituted for the Minister
“of Health and as respects byelaws made
“under the sections of this Act of which the
“marginal notes are ‘Byelaws as to bridges’
“and ‘Power to require intending passengers
“to wait in lines or queues’ the Minister of
“Transport shall be substituted for the
“Minister of Health” were added at the end thereof.

228. The Corporation may convert any clinkers or other refuse or surplus material or product arising in connection with their refuse destructor or destructors into slabs of artificial stone bricks concrete mortar material for filtration or percolation purposes at sewage disposal works and other materials and may construct such buildings and works and may in connection therewith provide and erect such machinery plant and appliances as may be required and any such slabs bricks concrete mortar or other materials so produced may be utilised by the Corporation for making and repairing streets or for any other purposes connected with the work of the Corporation for which they may be suitable or may be sold by the Corporation who shall carry the

Power to
convert
destructor
refuse into
slabs and
other
materials
and to use
and sell
such
materials.

A.D. 1925. — proceeds arising from any sales thereof to the credit of the destructor account.

For further protection of Great Western Railway Company.

229. The provisions of subsections (3) and (11) of the section of this Act of which the marginal note is "For protection of the Great Western Railway Company" shall so far as applicable apply to any works carried out under the provisions of the section of this Act of which the marginal note is "Power to maintain bridges &c. and charge tolls" and in respect of Works Nos. 13 and 14 by this Act authorised so far as they affect the towpath and other works of the Great Western Railway Company constituting the River Avon Navigation.

Service of summons on members of Council.

230. Notwithstanding anything contained in the Second Schedule of the Municipal Corporations Act 1882 the summons to members of the council may be delivered at the usual place of abode of every member of the council by post by prepaid letter at the ordinary rate of postage.

Delegation of certain powers to committees.

231. The powers and duties conferred and imposed upon the Corporation by Parts VI. VII. VIII. IX. and X. of this Act shall be deemed to be purposes which may (if the Corporation think fit) be regulated and managed by means of committees appointed by the Corporation in pursuance of section 22 of the Municipal Corporations Act 1882.

Transfer of powers of vestry.

232. All powers of the vestry under the Burial Acts are hereby transferred to the council as the burial board for the city.

Expenses may be declared private improvement expenses.

233. The Corporation may declare any expenses incurred by them under the provisions of this Act which are recoverable from the owner or owners of any premises to be private improvement expenses and thenceforth those expenses may be recovered and shall be charged upon the premises in respect of which they were incurred in accordance with the provisions of section 257 of the Public Health Act 1875.

Application of Arbitration Act 1889.

234. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be subject to the provisions of the Arbitration Act 1889.

235. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part VII. (Streets buildings sewers and drains) and Part VIII. (Infectious disease and sanitary matters) of this Act and of the section of this Act of which the marginal note is "For better protection and preservation of baths and springs" as if those purposes had been mentioned in the said section 102.

A.D. 1925.

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Power to
enter pre-
mises.

236. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under Part VII. (Streets buildings sewers and drains) and Part VIII. (Infectious disease and sanitary matters) of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such work.

Penalty on
occupier
refusing exe-
cution of
Act.

237. Whenever the Corporation or the surveyor under any enactment or byelaw for the time being in force within the city execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as

In execut-
ing works
for owner
Corporation
liable for
negligence
only.

A.D. 1925. aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

As to breach of conditions of consent of Corporation.

238. Where under this Act or under any general or local Act for the time being in force in the city the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Consents of Corporation to be in writing.

239. All consents given by the Corporation under the provisions of this Act or of any local Act Provisional Order byelaw or regulation for the time being in force within the city shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

Evidence of appointments authority &c.

240. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council under this Act or under any general or local Act for the time being in force in the city it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Damages and charges to be settled by justices.

241. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled or determined by a court of summary jurisdiction before whom any offender is convicted.

242. Where under the provisions of this Act or any local Act in force in the city the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall save as in this Act expressly provided be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

A.D. 1925.

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Apportion-
ment of ex-
penses in
case of joint
owners.

243. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

244. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the city.

Informa-
tions by
whom to be
laid.

245. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Saving for
indict-
ments &c.

246. Where the payment of more than one sum by any person is due under this Act any summons or warrant issued for the purposes of this Act in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Summons or
warrant
may contain
several
sums.

247. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval

As to
appeal.

A.D. 1925. — of or by the Corporation or of or by any officer of the Corporation under the provisions of Part VII. (Streets buildings sewers and drains) Part VIII. (Infectious disease and sanitary matters) Part IX. (Maternity homes) or Part X. (Hackney carriages and police) of this Act or by any conviction or order made by a court of summary jurisdiction under the said provisions may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal.

Application
of section 265
of Public
Health Act
1875.

248. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein.

Judges &c.
not dis-
qualified.

249. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Compensa-
tion how to
be deter-
mined.

250. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

Inquiries by
Minister of
Transport.

251. In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Act or any existing Act or Order of the Corporation the provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

Powers of
Act cumula-
tive.

252. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee

appointed by them by Act of Parliament charter law A.D. 1925.
or custom and the Corporation or such committee
(as the case may be) may exercise such other powers
and be entitled to such other rights and remedies as if
this Act had not been passed Provided that no person
shall incur more than one penalty (other than a daily
penalty for a continuing offence) for the commission of
the same offence.

253. Nothing in this Act affects prejudicially any Crown
estate right power privilege or exemption of the rights.
Crown.

254. All the costs charges and expenses preliminary Costs of
to and of and incidental to the preparing applying Act.
for obtaining and passing of this Act as taxed by the
taxing officer of the House of Lords or of the House
of Commons shall be paid by the Corporation out of
the city fund and city rate or out of moneys to be
borrowed under this Act for that purpose.

A.D. 1925.

The SCHEDULES referred to in the
foregoing Act.

FIRST SCHEDULE.

DESCRIPTIONS OF PROPERTIES IN CITY OF WHICH PORTIONS ONLY MAY BE REQUIRED BY THE CORPORATION.

Work.	Numbers on Deposited Plans.							
Work No. 3	-	-	-	-	-	-	-	39.
Work No. 6	-	-	-	-	-	-	-	10 to 14.
Work No. 8	-	-	-	-	-	-	-	22.
Work No. 9	-	-	-	-	-	-	-	1 2 3.
Work No. 12	-	-	-	-	-	-	-	1.
Work No. 14	-	-	-	-	-	-	-	1.
Work No. 18	-	-	-	-	-	-	-	13 to 41.

SECOND SCHEDULE.

PART I.

AN AGREEMENT made the fourteenth day of July nineteen hundred and twenty-five between THE MAYOR ALDERMEN AND CITIZENS OF THE CITY OF BATH (hereinafter called "the Corporation") of the one part and THE BATHWICK BRIDGE COMPANY LIMITED whose registered office is at 13 Queen Square Bath aforesaid (hereinafter called "the Company") of the other part.

WHEREAS the Corporation are promoting in the present session of Parliament a Bill (hereinafter referred to as "the Bill") for an Act the short title of which is intended to be the Bath Corporation Act 1925 whereby among other things the Corporation seeks power to acquire the undertakings of certain owners of bridges in the city of Bath including the bridge known as the

Bathwick Bridge and to purchase the undertaking of the A.D. 1925.
Company:

And whereas the Company was incorporated under Part VII. of the Companies Act 1862 and is the owner in fee simple of the Bathwick Bridge aforesaid and other the property hereinafter mentioned and included in the undertaking of the Company:

And whereas the Company has presented a petition to the House of Commons praying to be heard in opposition to the Bill but has agreed to withdraw the petition upon such agreement being entered into as is hereinafter contained:

Now these presents witness and it is hereby mutually agreed as follows that is to say:—

1. The Company shall sell and the Corporation shall buy for the sum of fifteen thousand pounds the undertaking of the Company freed and discharged from all charges debts and liabilities of the Company except as provided by clause 10 hereof The expression “the undertaking of the Company” in this agreement includes the bridge in the city of Bath known as the Bathwick Bridge together with any lands at the date of this agreement belonging to the Company in connection therewith and the toll-house lodges and appurtenances of the said bridge belonging to or therewith used or enjoyed at that date and all or any real and personal property assets effects and rights of charging tolls and other the undertaking of the Company in relation to the said bridge except any reserve funds cash in hand or at the bank the minute books of the Company and of the directors thereof the books of account belonging to the Company and any books and papers relating exclusively to the shareholders in and the constitution of the Company.

2. The Company shall not issue create or grant any debenture mortgage or charge affecting the undertaking of the Company nor except in the ordinary course of business vary the existing tolls or charges for the use of the said bridge.

The Company shall give instructions to their toll-keepers to strictly maintain and enforce the restrictions as to the user of the said bridge at present in operation but the Corporation shall be at liberty at their own expense to arrange for additional supervision and the Company will afford all reasonable facilities therefor.

3. The purchase shall be completed and the said purchase price paid on the thirtieth day of September or the thirty-first day of December whichever shall first occur after the expiration of one calendar month from the day upon which the Bill shall receive the Royal Assent (such day for completion being hereinafter called “the day of transfer”) and the Company shall (save as hereinafter mentioned) carry on their business as heretofore until the day of transfer and for their own profit.

A D. 1925;
—

4. Upon payment of the said sum of fifteen thousand pounds the undertaking of the Company shall be transferred to and vested in the Corporation free from all charges debts and liabilities upon or affecting the same in the hands of the Company.

5. The hereditaments comprised in the undertaking are sold subject to and with the benefit of the tenancies specified in the schedule hereto and subject to all easements and rights (if any) affecting the hereditaments.

6. All contracts and agreements which the Company shall have entered into before the day of transfer and which may be subsisting on that day shall be taken over and performed and fulfilled by the Corporation who shall indemnify the Company from all claims and demands thereunder provided that the Company shall not without the consent in writing of the Corporation enter into any new contract or agreement after the date hereof except in the ordinary course of business.

7. The title of the Company shall be accepted without objection or requisition.

8. If from any cause whatever other than non-completion caused by wilful default of the Company the purchase money shall not be paid on the day of transfer the Corporation shall pay to the Company interest thereon at the rate of six per centum per annum computed from that day until the day of actual payment.

9. The Company shall be entitled to all tolls rents profits receipts and sums of money accruing due in respect of the undertaking of the Company up to and including the day of transfer and the Company shall discharge pay or satisfy all charges debts liabilities rates taxes assessments and outgoings upon or affecting the said undertaking which at the day of transfer shall remain undischarged unpaid or unsatisfied except as provided by clause 10 hereof From and after the day of transfer all liabilities and outgoings shall be borne and paid by the Corporation who shall be entitled as from that day to all tolls rents profits receipts and sums of money in respect of the said undertaking So far as may be necessary for the purpose of this clause such liabilities outgoings tolls rents profits receipts and sums of money shall be apportioned between the Company and the Corporation as on the day of transfer.

10. The Company shall maintain and carry on the undertaking of the Company as heretofore in the ordinary course of business up to the day of transfer and shall be entitled to enter into any contracts agreements liabilities or other obligation in respect of such undertaking as shall be reasonably required for the purpose notwithstanding that the same may extend beyond the appointed day If after the date of this agreement the

A.D. 1925.

Company shall incur any capital expenditure in respect of the undertaking of the Company the Corporation shall on the day of transfer repay to the Company the amount of such capital expenditure together with interest thereon calculated at the rate of six per centum per annum from the date on which such capital expenditure was made For the purpose of this clause any sum or sums expended upon the said bridge or other property of the Company in connection therewith shall be deemed to represent capital expenditure if it or they exceeds in all the sum of fifty pounds Provided that before incurring any capital expenditure the Company shall obtain the consent of the town clerk of Bath thereto but such consent shall not be refused in the case of any expenditure which shall be reasonably necessary and any question as to any such expenditure being reasonably necessary shall in case of difference be decided by arbitration in manner hereinafter provided.

11. The receipt of two directors of the Company for any money payable to the Company under this agreement shall be a complete and sufficient discharge to the Corporation for such money and the Corporation shall not be bound to see to the application or be answerable for the loss or misapplication of all or any part or parts of such money.

12. The Bill shall be amended so as to provide for the confirmation of this agreement and making the same binding on the Corporation and the Company and so as to carry out the terms of this agreement and the Corporation will use its best endeavours to procure the passing into law in the present session of Parliament of the Bill as so amended.

13. The Company will at the request of the Corporation use its best endeavours to assist the Corporation in procuring the passing of the Bill as so amended by furnishing evidence in support but all costs properly incurred of or in relation to the procuring and giving of such evidence shall be paid to the Company by the Corporation.

14. The Corporation shall also pay to the Company all costs charges and expenses incurred by the Company in relation to the preparation and execution of this agreement and of any deeds instruments acts or things which may be necessary or proper to be made executed or done for carrying the same into effect but the Company shall bear its own costs of its said petition and the withdrawal thereof.

15. This agreement is made subject to the approval of Parliament and to such alterations as Parliament may think fit to make therein but in the event of a Committee of either House of Parliament making any material alteration in this agreement it shall be competent to either party hereto by notice in writing to that effect given to the other party to withdraw this agreement from the Bill and the same shall thereupon be

A.D. 1925. absolutely determined save as to the payments of costs charges and expenses under clauses 13 and 14 hereof.

16. If the Bill (including any amendments which may be agreed with the Company) be not passed by Parliament in the present session this agreement shall be void and of no effect save as to the payment of costs charges and expenses under clauses 13 and 14 hereof.

17. If any question difference or dispute shall arise with reference to this agreement or the construction thereof or as to anything herein contained or as to the rights liabilities or duties of any party hereunder the same shall be referred to an arbitrator to be appointed (failing agreement) by the President for the time being of the Society of Parliamentary Agents and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference and arbitration and to this agreement as if it were a submission to arbitration under that Act.

In witness whereof the Corporation and the Company have hereunto set their respective common seals the day and year first before written.

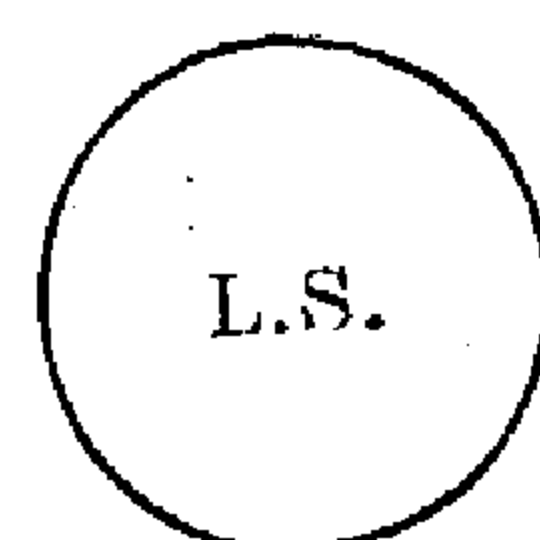
The Schedule above referred to

Yearly tenancy of No. 2 Lodge by Thomas Lane at a rent of sixteen pounds eighteen shillings per annum.

The like No. 3 Lodge by Thomas William Harvey at a rent of sixteen pounds eighteen shillings per annum.

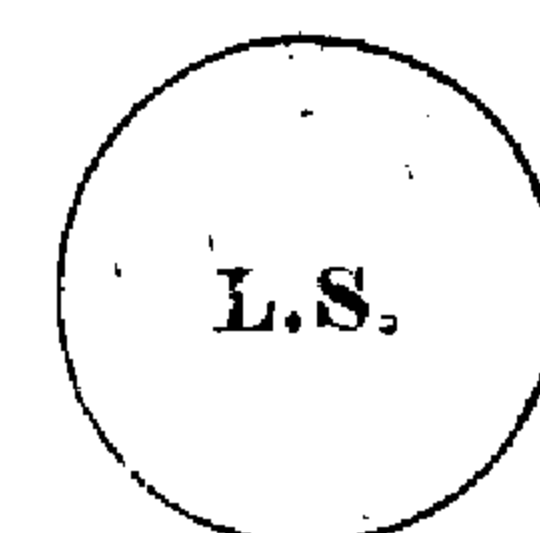
The like No. 4 Lodge by Arthur Walter Blackwell at a rent of sixteen pounds eighteen shillings per annum.

The corporate common seal of the mayor
aldermen and citizens of the city of
Bath was hereunto affixed in the
presence of



J. BASIL OGDEN
Town Clerk.

The common seal of the Bathwick Bridge
Company Limited was hereunto affixed
in the presence of



F. H. MILSOM
EGBERT LEWIS } Directors.
A. M. KING
Secretary.

PART II.

A.D. 1925,

AN AGREEMENT made the fourteenth day of July nineteen hundred and twenty-five between THE MAYOR ALDERMEN AND CITIZENS OF THE CITY OF BATH (hereinafter called "the Corporation") of the one part and THE NORTH PARADE BRIDGE COMPANY (OF BATH) LIMITED whose registered office is at No. 13 Queen Square in Bath aforesaid (hereinafter called "the Company") of the other part.

WHEREAS the Corporation are promoting in the present session of Parliament a Bill (hereinafter referred to as "the Bill") for an Act the short title of which is intended to be the Bath Corporation Act 1925 whereby among other things the Corporation seeks power to acquire the undertakings of certain owners of bridges in the city of Bath including the bridge known as the North Parade Bridge and to purchase the undertaking of the Company :

And whereas the Company was incorporated under Part VII. of the Companies Act 1862 and is the owner in fee simple of the North Parade Bridge aforesaid and other the property hereinafter mentioned and included in the undertaking of the Company :

And whereas the Company has presented a petition to the House of Commons praying to be heard in opposition to the Bill but has agreed to withdraw the petition upon such agreement being entered into as is hereinafter contained :

Now these presents witness and it is hereby mutually agreed as follows that is to say :—

1. The Company shall sell and the Corporation shall buy for the sum of eleven thousand nine hundred pounds the undertaking of the Company freed and discharged from all charges debts and liabilities of the Company except as provided by clause 10 hereof The expression "the undertaking of the Company" in this agreement includes the bridge in the city of Bath known as the North Parade Bridge together with the approach to such bridge from the Pulteney Road and any lands at the date of this agreement belonging to the Company in connection therewith and the toll-house lodges and appurtenances of the said bridge belonging to or therewith used or enjoyed at that date and all or any real and personal property assets effects and rights of charging tolls and other the undertaking of the Company in relation to the said bridge except any reserve funds cash in hand or at the bank the minute books of the Company and of the directors thereof the books of account belonging to

A.D. 1925. — the Company and any books and papers relating exclusively to the shareholders in and the constitution of the Company.

2. The Company shall not issue create or grant any debenture mortgage or charge affecting the undertaking of the Company nor except in the ordinary course of business vary the existing tolls or charges for the use of the said bridge.

The Company shall give instructions to their toll-keeper to strictly maintain and enforce the restrictions as to the user of the said bridge at present in operation but the Corporation shall be at liberty at their own expense to arrange for additional supervision and the Company will afford all reasonable facilities therefor.

3. The purchase shall be completed and the said purchase price paid on the thirtieth day of September or the thirty-first day of December whichever shall first occur after the expiration of one calendar month from the day upon which the Bill shall receive the Royal Assent (such day for completion being hereinafter called "the day of transfer") and the Company shall (save as hereinafter mentioned) carry on their business as heretofore until the day of transfer and for their own profit.

4. Upon payment of the said sum of eleven thousand nine hundred pounds the undertaking of the Company shall be transferred to and vested in the Corporation free from all charges debts and liabilities upon or affecting the same in the hands of the Company.

5. The hereditaments comprised in the undertaking are sold subject to and with the benefit of the lease agreements and tenancies specified in the schedule hereto and subject to all easements and rights (if any) affecting the hereditaments.

6. All contracts and agreements which the Company shall have entered into before the day of transfer and which may be subsisting on that day shall be taken over and performed and fulfilled by the Corporation who shall indemnify the Company from all claims and demands thereunder. Provided that the Company shall not without the consent in writing of the Corporation enter into any new contract or agreement after the date hereof except in the ordinary course of business.

7. The title of the Company shall be accepted without objection or requisition.

8. If from any cause whatever other than non-completion caused by wilful default of the Company the purchase money shall not be paid on the day of transfer the Corporation shall pay to the Company interest thereon at the rate of six per centum per annum computed from that day until the day of actual payment.

A.D. 1925.

9. The Company shall be entitled to all tolls rents profits receipts and sums of money accruing due in respect of the undertaking of the Company up to and including the day of transfer and the Company shall discharge pay or satisfy all charges debts liabilities rates taxes assessments and outgoings upon or affecting the said undertaking which at the day of transfer shall remain undischarged unpaid or unsatisfied except as provided by clause 10 hereof From and after the day of transfer all liabilities and outgoings shall be borne and paid by the Corporation who shall be entitled as from that day to all tolls rents profits receipts and sums of money in respect of the said undertaking So far as may be necessary for the purpose of this clause such liabilities outgoings tolls rents profits receipts and sums of money shall be apportioned between the Company and the Corporation as on the day of transfer.

10. The Company shall maintain and carry on the undertaking of the Company as heretofore in the ordinary course of business up to the day of transfer and shall be entitled to enter into any contracts agreements liabilities or other obligation in respect of such undertaking as shall be reasonably required for the purpose notwithstanding that the same may extend beyond the appointed day If after the date of this agreement the Company shall incur any capital expenditure in respect of the undertaking of the Company the Corporation shall on the day of transfer repay to the Company the amount of such capital expenditure together with interest thereon calculated at the rate of six per centum per annum from the date on which such capital expenditure was made For the purpose of this clause any sum or sums expended upon the said bridge or other property of the Company in connection therewith shall be deemed to represent capital expenditure if it or they exceeds in all the sum of fifty pounds Provided that before incurring any capital expenditure the Company shall obtain the consent of the town clerk of Bath thereto but such consent shall not be refused in the case of any expenditure which shall be reasonably necessary and any question as to any such expenditure being reasonably necessary shall in case of difference be decided by arbitration in manner hereinafter provided.

11. The receipt of two directors of the Company for any money payable to the Company under this agreement shall be a complete and sufficient discharge to the Corporation for such money and the Corporation shall not be bound to see to the application or be answerable for the loss or misapplication of all or any part or parts of such money.

12. The Bill shall be amended so as to provide for the confirmation of this agreement and making the same binding on the Corporation and the Company and so as to carry out the terms

A.D. 1925. — of this agreement and the Corporation will use its best endeavours to procure the passing into law in the present session of Parliament of the Bill as so amended.

13. The Company will at the request of the Corporation use its best endeavours to assist the Corporation in procuring the passing of the Bill as so amended by furnishing evidence in support but all costs properly incurred of or in relation to the procuring and giving of such evidence shall be paid to the Company by the Corporation.

14. The Corporation shall also pay to the Company all costs charges and expenses incurred by the Company in relation to the preparation and execution of this agreement and of any deeds instruments acts or things which may be necessary or proper to be made executed or done for carrying the same into effect but the Company shall bear its own costs of its said petition and the withdrawal thereof.

15. This agreement is made subject to the approval of Parliament and to such alterations as Parliament may think fit to make therein but in the event of a Committee of either House of Parliament making any material alteration in this agreement it shall be competent to either party hereto by notice in writing to that effect given to the other party to withdraw this agreement from the Bill and the same shall thereupon be absolutely determined save as to the payment of costs charges and expenses under clauses 13 and 14 hereof.

16. If the Bill (including any amendments which may be agreed with the Company) be not passed by Parliament in the present session this agreement shall be void and of no effect save as to the payment of costs charges and expenses under clauses 13 and 14 hereof.

17. If any question difference or dispute shall arise with reference to this agreement or the construction thereof or as to anything herein contained or as to the rights liabilities or duties of any party hereunder the same shall be referred to an arbitrator to be appointed (failing agreement) by the President for the time being of the Society of Parliamentary Agents and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference and arbitration and to this agreement as if it were a submission to arbitration under that Act.

In witness whereof the Corporation and the Company have hereunto set their respective common seals the day and year first before written.

The SCHEDULE above referred to.

A.D. 1925.

Agreement dated the twenty-eighth day of January nineteen hundred and twenty-four between the Company and Frederick John Walsh for the tenancy of the South Lodge North Parade Bridge at a rent of sixteen pounds per annum.

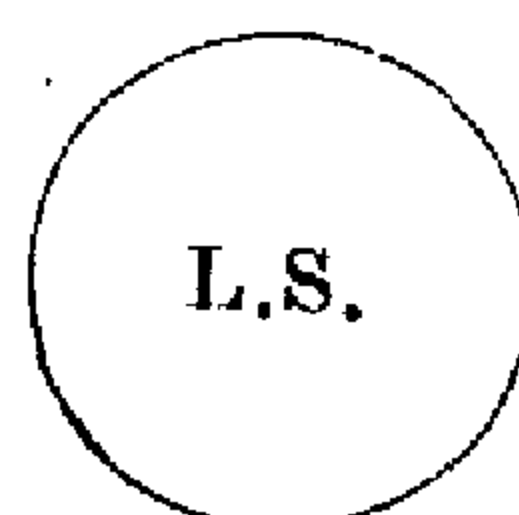
Agreement dated the nineteenth day of December nineteen hundred and thirteen between the Company of the one part and Thomas Vincent and Walter Farley Long of the other part for wayleave for a gas pipe at an acknowledgment rent of one shilling per annum.

Tenancy (yearly) by the Bath Art Craft Limited of the North Lodge North Parade Bridge at a rent of ten pounds sixteen shillings per annum.

Tenancy (yearly) by the Bath Art Craft Limited of four arches at the North Parade Bridge at a rent of two pounds one shilling per annum.

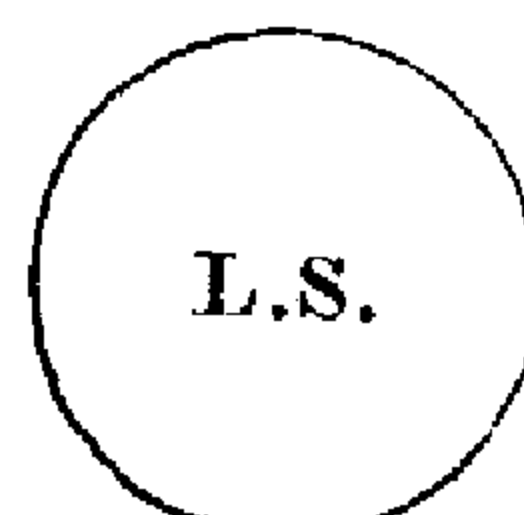
Lease dated the twenty-fourth day of April nineteen hundred and twenty-two between the Company and the Bath Art Craft Limited of a piece of land for a new entrance to the county rink for a term of nine hundred and fifteen years from the nineteenth day of December nineteen hundred and twenty-one at a rent of one shilling per annum.

The corporate common seal of the mayor
aldermen and citizens of the city of
Bath was hereunto affixed in the
presence of



J. BASIL OGDEN
Town Clerk.

The common seal of the North Parade
Bridge Company (of Bath) Limited
was hereunto affixed in the presence
of



GEO. F. POWELL }
H. BRICE MUNDY } Directors.
A. M. KING
Secretary.

A.D. 1925.

PART III.

AN AGREEMENT made the twenty-first day of July nineteen hundred and twenty-five between THE MAYOR ALDERMEN AND CITIZENS OF THE CITY OF BATH (hereinafter called "the Corporation") of the one part and THE WIDCOMBE BRIDGE COMPANY LIMITED whose registered office is at the Widcombe Bridge in the City of Bath (hereinafter called "the Company") of the other part.

WHEREAS the Corporation are promoting in the present session of Parliament a Bill (hereinafter referred to as "the Bill") for an Act the short title of which is intended to be the Bath Corporation Act 1925 whereby among other things the Corporation seeks power to acquire the undertakings of certain owners of bridges in the city of Bath including the bridge known as the Widcombe Bridge and to purchase the undertaking of the Company :

And whereas the Company was incorporated under Part VII. of the Companies Act 1862 and is the owner in fee simple of the Widcombe Bridge aforesaid and other the property hereinafter mentioned and included in the undertaking of the Company :

And whereas the Company has presented a petition to the House of Commons praying to be heard in opposition to the Bill but has agreed to withdraw the petition upon such agreement being entered into as is hereinafter contained :

Now these presents witness and it is hereby mutually agreed as follows that is to say :—

1. The Company shall sell and the Corporation shall buy for the sum of twelve thousand pounds the undertaking of the Company freed and discharged from all charges debts and liabilities of the Company except as provided by clauses 4 and 9 hereof The expression "the undertaking of the Company" in this agreement includes the bridge in the city of Bath known as the Widcombe Bridge together with the approach to such bridge from Claverton Street and any lands at the date of this agreement belonging to the Company in connection therewith and the toll-house and appurtenances of the said bridge belonging to or therewith used or enjoyed at that date (but subject to all easements and rights (if any) affecting the same) and all or any real and personal property assets effects and rights of charging tolls and other the undertaking of the Company in relation to the said bridge except any reserve funds cash in hand or at the bank minute books of the Company and of the directors thereof the books of

account belonging to the Company and any books documents and papers relating exclusively to the shareholders in and the constitution of the Company.

A.D. 1925.
—

2. The Company shall not issue create or grant any debenture mortgage or charge affecting the undertaking of the Company nor except in the ordinary course of business vary the existing tolls or charges for the use of the said bridge.

The Company shall give instructions to their toll-keeper to strictly maintain and enforce the restrictions as to the user of the said bridge at present in operation but the Corporation shall be at liberty at their own expense to arrange for additional supervision and the Company will afford all reasonable facilities therefor.

3. The purchase shall be completed and the said purchase price paid on the thirtieth day of September or the thirty-first day of December whichever shall first occur after the expiration of one calendar month from the day upon which the Bill shall receive the Royal Assent (such day for completion being hereinafter called "the day of transfer") and the Company shall (save as hereinafter mentioned) carry on their business as heretofore until the day of transfer and for their own profit.

4. Upon payment of the said sum of twelve thousand pounds the undertaking of the Company shall be transferred to and vested in the Corporation free from all charges debts and liabilities upon or affecting the same in the hands of the Company except a sum of ten pounds per annum payable to the successors in title of the late Thomas William Player Isaac pursuant to the provisions of an indenture dated the seventh day of October eighteen hundred and sixty-two and made between Henry William Hickes of the first part the said Thomas William Player Isaac of the second part Samuel George Mitchell of the third part George Bruce of the fourth part and James Lister Smith of the fifth part which said annual sum is now charged upon the assets of the undertaking.

5. All contracts and agreements which the Company shall have entered into before the day of transfer and which may be subsisting on that day shall be taken over and performed and fulfilled by the Corporation who shall indemnify the Company from all claims and demands thereunder Provided that the Company shall not without the consent in writing of the Corporation enter into any new contract or agreement after the date hereof except in the ordinary course of business.

6. The title of the Company shall be accepted without objection or requisition.

A.D. 1925.

7. If from any cause whatever other than non-completion caused by wilful default of the Company the purchase money shall not be paid on the day of transfer the Corporation shall pay to the Company interest thereon at the rate of six per centum per annum computed from that day until the day of actual payment.

8. The Company shall be entitled to all tolls rents profits receipts and sums of money accruing due in respect of the undertaking of the Company up to and including the day of transfer and the Company shall discharge pay or satisfy all charges debts liabilities rates taxes assessments and outgoings upon or affecting the said undertaking which at the day of transfer shall remain undischarged unpaid or unsatisfied except as provided by clause 9 hereof From and after the day of transfer all liabilities and outgoings shall be borne and paid by the Corporation who shall be entitled as from that day to all tolls rents profits receipts and sums of money in respect of the said undertaking So far as may be necessary for the purpose of this clause such liabilities outgoings tolls rents profits receipts and sums of money shall be apportioned between the Company and the Corporation as on the day of transfer.

9. The Company shall maintain and carry on the undertaking of the Company as heretofore in the ordinary course of business up to the day of transfer and shall be entitled to enter into any contracts agreements liabilities or other obligation in respect of such undertaking as shall be reasonably required for the purpose notwithstanding that the same may extend beyond the appointed day If after the date of this agreement the Company shall incur any capital expenditure in respect of the undertaking of the Company the Corporation shall on the day of transfer repay to the Company the amount of such capital expenditure together with interest thereon calculated at the rate of six per centum per annum from the date on which such capital expenditure was made For the purpose of this clause any sum or sums expended upon the said bridge or the property of the Company in connection therewith shall be deemed to represent capital expenditure if it or they exceeds in all the sum of fifty pounds Provided that before incurring any capital expenditure the Company shall obtain the consent of the town clerk of Bath thereto but such consent shall not be refused in the case of any expenditure which shall be reasonably necessary and any question as to any such expenditure being reasonably necessary shall in case of difference be decided by arbitration in manner hereinafter provided.

10. The receipt of two directors of the Company for any money payable to the Company under this agreement shall be a complete and sufficient discharge to the Corporation for such

money and the Corporation shall not be bound to see to the application or be answerable for the loss or misapplication of all or any part or parts of such money.

11. The Bill shall be amended so as to provide for the confirmation of this agreement and making the same binding on the Corporation and the Company and so as to carry out the terms of this agreement and the Corporation will use its best endeavours to procure the passing into law in the present session of Parliament of the Bill as so amended.

12. The Company will at the request of the Corporation use its best endeavours to assist the Corporation in procuring the passing of the Bill as so amended by furnishing evidence in support but all costs properly incurred of or in relation to the procuring and giving of such evidence shall be paid to the Company by the Corporation.

13. The Corporation shall also pay to the Company all costs charges and expenses incurred by the Company in relation to the preparation and execution of this agreement and of any deeds instruments acts or things which may be necessary or proper to be made executed or done for carrying the same into effect but the Company shall bear its own costs of its said petition and the withdrawal thereof.

14. This agreement is made subject to the approval of Parliament and to such alterations as Parliament may think fit to make therein but in the event of a committee of either House of Parliament making any material alteration in this agreement it shall be competent to either party hereto by notice in writing to that effect given to the other party to withdraw this agreement from the Bill and the same shall thereupon be absolutely determined save as to the payment of costs charges and expenses under clauses 12 and 13 hereof.

15. If the Bill including any amendments which may be agreed with the Company be not passed by Parliament in the present session this agreement shall be void and of no effect save as to the payment of costs charges and expenses under clauses 12 and 13 hereof.

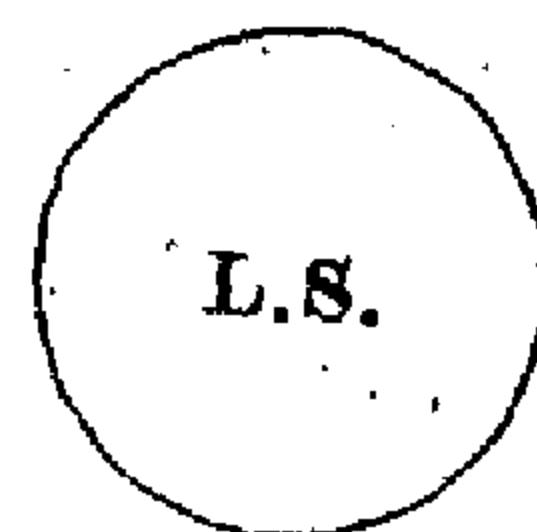
16. If any question difference or dispute shall arise with reference to this agreement or the construction thereof or as to anything herein contained or as to the rights liabilities or duties of any party hereunder the same shall be referred to an arbitrator to be appointed (failing agreement) by the President for the time being of the Society of Parliamentary Agents and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference and arbitration and to this agreement as if it were a submission to arbitration under that Act.

A.D. 1925,

In witness whereof the Corporation and the Company have hereunto set their respective common seals the day and year first before written.

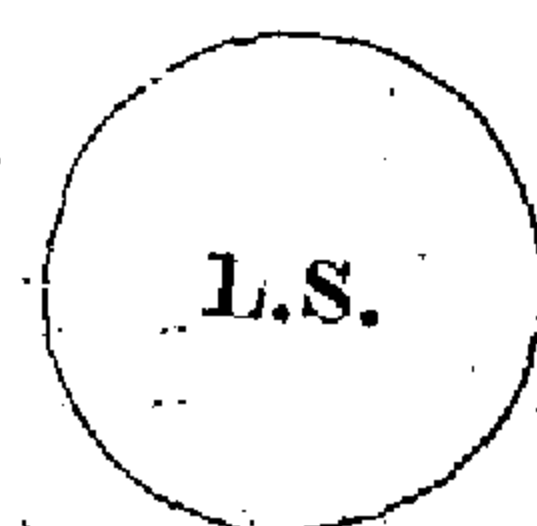
The corporate common seal of the mayor
aldermen and citizens of the city of
Bath was hereunto affixed in the
presence of

J. BASIL OGDEN
Town Clerk.



The common seal of the Widcombe Bridge
Company Limited was hereunto
affixed in the presence of

J. W. HOOPER }
F. E. LAMBERT } Directors.
F. E. LAMBERT
Secretary.



THIRD SCHEDULE.

TOLLS WHICH MAY BE CHARGED FOR THE USE OF EACH
BRIDGE IN ACCORDANCE WITH THE SECTION OF
THIS ACT OF WHICH THE MARGINAL NOTE IS "POWER
TO MAINTAIN BRIDGES &C. AND CHARGE TOLLS."

	Each journey.
For every person over 5 years of age (including persons accompanying any vehicle referred to herein in any capacity) - - -	$\frac{1}{2}d.$
For every bicycle or tricycle propelled by mechanical power (including a bicycle or tricycle with an auto-wheel whether drawn up or on the ground) - - -	$1d.$
For every other bicycle or tricycle - - -	$\frac{1}{2}d.$
For every side-car or trailer to any bicycle or tricycle - - -	$\frac{1}{2}d.$
For every other vehicle propelled by mechanical power - - -	$1\frac{1}{2}d.$

	Each journey.	A.D. 1925.
For every trailer drawn by any such last-mentioned vehicle - - - - -	1½d.	
For every handcart handtruck mailcart perambulator wheelbarrow or other similar vehicle - - - - -	½d.	
For every wheelchair or other similar vehicle -	1d.	
For every vehicle drawn by one horse or other animal - - - - -	1½d.	
For every vehicle drawn by two horses or other animals - - - - -	2½d.	
For every vehicle drawn by three horses or other animals - - - - -	3½d.	
For every vehicle drawn by four horses or other animals - - - - -	4½d.	
For every animal laden or unladen and not drawing a vehicle (other than dogs and those mentioned below) - - - - -	1d.	
For every bull cow or bullock - - - - -	1d.	
For sheep lambs calves and pigs - - - - -	3d. for 20 and proportionately to nearest ½d. for any fraction of 20.	

FOURTH SCHEDULE.

RETURN OF RENT OR ANNUAL VALUE AND OF OTHER PARTICULARS TO BE RENDERED UNDER THE BATH CORPORATION ACT 1925.

1. Name of the street or road &c. in which the property is situate . Number of the house (If not numbered state the name by which known.) Whether occupied with or without stables or other premises as part of the same property . - - The quantity of land (if any) and how used.	
2. Full Christian name and surname of occupier - - - - -	

A.D. 1925.

3. Name and address of owner or immediate lessor - - - (If not known state the name and address of the agent or person to whom the rent is paid.)	
4. Whether the property is occupied— (a) Wholly as a private residence - - - - - or (b) Partly as a dwelling-house and partly for trade or business purposes - - - - - or (c) Solely for trade or business purposes with no person residing on the premises other than a caretaker - - - (Number of rooms set apart for the use of the caretaker (if any) and on which floor.) (d) Nature of the business (if any) -	(a) (b) (c) (d)
5. If the occupation is in respect of part only of a house or premises state the extent and on which floor or floors - - - - -	
6. Amount of rent - - - - - or if ground rent only is paid state its amount - - - - -	£ per £ per
7. Whether the property is held under lease or agreement for a period of years - - - - - or by the year quarter month or week - - - - -	
8. (a) Date of commencement of term of lease or agreement - - - (b) Term of years for which granted (c) Whether granted for any consideration in money in addition to the rent or upon any condition as to laying out money in building rebuilding or improvements - - - - - (If none insert "None.")	(a) (b) (c)
	Amount paid for lease £

		A.D. 1925.
9. If the occupier is the owner or has purchased the lease the full annual value should be stated i.e. the amount at which the property is worth to be let by the year the owner keeping it in repair - - - - -	} Annual Value £	
10. (a) Amount of land tax (if any) - (b) Amount of tithe rentcharge or of any rate or assessment in lieu of tithes paid in the year 19 (State in each case whether borne by the landlord or tenant.)		(a) £ . Borne by the (b) £ . Borne by the
11. Whether all usual tenant's rates and taxes are paid and borne by the occupier in addition to the rent - - - - -		
12. Whether the landlord or the tenant undertakes to bear the cost of repairs insurance and other expenses necessary to maintain the property - - - - - (If each undertakes to bear part only of the cost of repairs state the particulars.)		

DECLARATION.

I declare that the foregoing particulars are in every respect fully and truly stated to the best of my judgment and belief.

FIFTH SCHEDULE.

REFERRED TO IN THE SECTION OF THE FOREGOING ACT OF WHICH THE MARGINAL NOTE IS "POWER TO USE ONE FORM OF MORTGAGE FOR ALL PURPOSES."

FORM OF MORTGAGE.

CITY OF BATH.

By virtue of the Bath Corporation Act 1925 and of other their powers in that behalf them enabling the mayor aldermen

A.D. 1925. and citizens of the city of Bath (hereinafter referred to as "the Corporation") in consideration of the sum of

_____ pounds
(hereinafter referred to as "the principal sum") paid to the treasurer of the city by

(hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the funds rates and revenues of the Corporation as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said funds rates and revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of _____ per centum per annum from the _____ day of _____ nineteen hundred and _____ until payment of the principal sum such interest to be paid half-yearly on the _____ day of _____ and the _____ day of _____ in each year And it is hereby agreed that the principal sum shall be repaid at the guildhall in the said city [(subject as hereinafter provided) on the _____ day of _____ nineteen hundred and _____ or (if not repaid on that date) at any time thereafter on the expiration of six calendar months' notice in writing by the Corporation to the mortgagee or by the mortgagee to the Corporation] [by _____]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Corporation and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the town clerk of the city for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this _____ day of _____ nineteen hundred and _____.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named _____
consenting the within-mentioned time for repayment of the

within-mentioned principal sum of _____ day of _____ A.D. 1925.
is hereby extended to the _____ [and the
nineteen hundred and _____
interest to be paid thereon on and from the _____
day of _____ nineteen hundred and _____
is hereby declared to be at the rate of _____
per centum per annum].

Dated this _____ day of _____
nineteen hundred and _____

FORM OF TRANSFER OF MORTGAGE.

I [the within-named] _____ [of
_____] in
consideration of the sum of _____
pounds paid to me by _____
of _____
(hereinafter referred to as "the transferee") do hereby transfer
to the transferee [his] executors administrators and assigns [the
within-written security] [the mortgage number _____
of the funds rates and revenues of the mayor aldermen and
citizens of the city of Bath bearing date the _____ day of _____
] and all my right and interest under the same
subject to the several conditions on which I hold the same at
the time of the execution hereof and I the transferee for myself
my executors administrators and assigns do hereby agree to take
the said mortgage security subject to the same conditions.

Dated this _____ day of _____
nineteen hundred and _____

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